

TITLE 9 CONSTRUCTION CODES AND FIRE CODE*

***Cross reference(s)**--General provisions, Tit. 1; licenses, business regulations and business taxes, Tit. 2; public safety, morals and welfare, Tit. 3; public property, Tit. 4; regulation of buildings, mobilehome and special occupancy parks and trailer coaches, Tit. 5; health and sanitation, Tit. 6; highways and traffic, Tit. 7; zoning and land use regulations, Tit. 8.

DIVISION 1. ADMINISTRATION OF COUNTY BUILDING, RESIDENTIAL, ELECTRICAL, PLUMBING, MECHANICAL, ENERGY EFFICIENCY AND GREEN BUILDING CODES

CHAPTER 1. COUNTY ADOPTION OF CHAPTER 1, DIVISION II, CALIFORNIA BUILDING CODE WITH COUNTY AMENDMENTS

SEC. 91.1.001. ADOPTION OF ADMINISTRATION PROVISIONS.

Pursuant to section 17958 of the California Health and Safety Code, the California Building Standards Code (CBSC) becomes effective as to the County of San Diego 180 days after publication by the California Building Standards Commission. Chapter 1, Division II of the California Building Code is not part of the CBSC, but may be adopted by a local jurisdiction. The County adopts portions of Chapter 1, Division II in this chapter and modifies, adds and deletes sections where necessary to carry out the intent and purpose of this chapter. This chapter follows the numbering system used in Chapter 1, Division II as closely as possible. The adopted portions and the County's modifications, additions and deletions, listed below, shall be used to administer and enforce the County Building, Residential, Electrical, Plumbing, Mechanical, Energy Efficiency, and Green Building Codes contained in sections 92.1.01 et seq., 92.2.001 et seq., 93.1.001 et seq., 94.1.001 et seq., 95.1.001 et seq., 96.1.001 et seq. and 97.1.001 et seq. respectively.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.101.2. SCOPE.

This chapter shall apply to the construction, alteration, moving, demolition, repair and use of any building or structure and the installation, alteration, repair or replacement of all electrical, plumbing and mechanical systems, within the unincorporated area of the County, unless specifically exempted in this chapter. This chapter shall be a part of and shall apply to the County Building Code, County Residential Code, County Electrical Code, County Plumbing Code, County Mechanical Code, County Energy Efficiency Code and County Green Building Code and those codes are incorporated as part of this chapter. This chapter is not intended to apply to structures and equipment preempted by State law from local regulation such as public utility towers and poles, mechanical equipment not specifically regulated by this chapter and hydraulic flood control structures. This chapter also does not apply to grading, which is regulated in Title 8, Division 7 of this code, but retaining walls and other structures that may be needed in connection with any grading are subject to the requirements of this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.101.2.1. APPENDICES.

Provisions in the appendices shall not apply unless specifically adopted by the County or State.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.101.3. INTENT.

The purpose of this chapter is to establish a uniform system to administer and enforce the County Building, Residential, Electrical, Plumbing, Mechanical, Energy Efficiency and Green Building Codes.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.102. RESOLUTION OF CONFLICTS AND EXISTING CONDITIONS.

(a) Where, in any specific case, any of the California Building, Residential, Electrical, Plumbing, Mechanical, Energy Efficiency or Green Building Codes are different from the version the County adopts, the County's shall govern. Where different sections of the County Code provide for different materials, methods of construction or other requirements, the most restrictive shall govern. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall apply. Where there is any disagreement between the building official and any fire department or fire protection district on any land use approval issue, the building official shall have the final authority to resolve the issue.

(b) The legal occupancy of any structure or the use of any electrical, plumbing or mechanical system, existing on the date of adoption of this chapter shall be allowed to continue without change unless the structure or system presents a hazard to life and property.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.103. DEPARTMENT OF PLANNING AND DEVELOPMENT SERVICES TO ADMINISTER AND ENFORCE.

The Director of the County Department of Planning and Development Services shall be responsible to administer and enforce this chapter and may appoint members of the Department and hire outside contractors to assist. The Director and any person appointed or hired by the Director to administer and enforce this chapter shall be referred to as the "building official."

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; amended by Ord. No. 10224 (N.S.), effective 10-25-12; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.1. DUTIES AND POWERS OF BUILDING OFFICIAL.

The building official shall administer and enforce this chapter. The building official may interpret this chapter and has the authority to make a final interpretation. The building official may adopt policies and procedures to clarify the application of this chapter. These policies and procedures shall conform to the intent and purpose of this chapter and shall not waive any requirement of this chapter. The building official duties shall include plan checking, inspections and code enforcement.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.2.1 APPLICATIONS AND PERMITS.

The building official shall receive applications, review plans, issue permits, inspect premises for which permits have been issued and enforce compliance with this chapter for:

- (a) The erection, alteration, demolition and moving of buildings and structures.
- (b) The installation of any electrical system, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and appurtenances thereto.
- (c) The installation, alteration, repair and replacement of any plumbing system, including equipment, appliances, fixtures, fittings and appurtenances, private sewage disposal system, and where connected to a water or sewage system, all aspects of a medical gas system.
- (d) The installation, alteration, repair and replacement of mechanical systems, including equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating and cooling, air-conditioning and refrigeration systems, incinerators and other energy related systems and installation of gas piping from the point of delivery, gas appliances and related accessories.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.2.2. SUBCONTRACTOR DISCLOSURE.

(a) The building official shall receive information for all subcontractors doing work on new projects requiring a permit. The requirements for disclosure are limited to the projects listed below and shall be provided after permit issuance but prior to the subcontractor starting work on a project:

- (1) All new commercial, residential tracts (five or more lots), and multifamily construction projects (5 or more units)
- (2) Commercial tenant improvement (renovation) projects that affect more than 10,000 square feet of space under the renovation
- (3) Projects associated with General Plan Amendments

(b) The following subcontractor data shall be submitted prior to subcontractor doing work on a permitted site:

- (1) General subcontractor data:
 - a. Subcontractor specialty
 - b. Full name & contact information for their company
 - c. Contractor license number
 - d. Workers compensation policy
- (2) Estimated Start and end dates of subcontractor work
- (3) Subcontractor address
- (4) Detailed scope of work done on job
- (5) Verification of Occupational Safety and Health Administration (OSHA) or wage violations
- (6) Subcontractor Disadvantaged Business Enterprise (DBE) status
- (7) Special safety licenses or training requirements for a subcontractor scope of work

(Added by Ord. No. 10793 (N.S.), effective 6-10-22; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.3. NOTICES AND ORDERS.

The building official shall issue all necessary notices or orders to ensure compliance with and enforce this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.4. INSPECTIONS.

The building official shall make all required inspections, or in the alternative may accept inspection reports from approved agencies or individuals. Inspection reports shall be in writing and be certified by a responsible officer of the approved agency or by the responsible individual. The building official may engage any expert opinion as deemed necessary to report upon an unusual technical issue that may arise.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.5. IDENTIFICATION.

The building official shall carry proper identification when conducting any inspection under this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.6. RIGHT OF ENTRY.

Where it is necessary to make an inspection to enforce this chapter or where the building official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this code or any other County ordinance or law the County enforces, which makes the structure or premises unsafe, dangerous or hazardous, the building official may enter the structure or premises at reasonable times to inspect or to perform the duties imposed by this chapter. If the structure or premises is occupied, the building official shall present proper identification to the occupant and request entry. If the structure or premises is unoccupied, the building official shall, before entry, make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the building official shall have recourse to the remedies provided by law to secure entry.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.7. DEPARTMENT RECORDS.

The building official shall keep and maintain records of applications received, permits and certificates issued, fees collected, inspection reports and notices and orders issued. The records shall be retained in the building official's records for the period required for retention of public records.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.8. IMMUNITIES.

The building official, member of the board of appeals and other person enforcing this chapter shall have all immunities as provided under federal, State and local law.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.9. APPROVED MATERIALS AND EQUIPMENT.

Materials, equipment and devices approved by the building official shall be constructed and installed in accordance with the approval.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.9.1. USED MATERIALS AND EQUIPMENT.

The use of used materials which meet the requirements of this code for new materials is allowed, but used equipment and devices shall not be reused unless approved by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.10. MODIFICATIONS.

Wherever there are practical difficulties involved in carrying out the provisions of this chapter, the building official may grant modifications for an individual case, upon application of the owner or owner's representative, provided the building official shall first find that a special individual reason makes the strict letter of this chapter impractical and the modification is in compliance with the intent and purpose of this chapter and that the modification does not lessen health, accessibility, life and fire safety or structural requirements. The details of action granting modifications shall be recorded and entered in the building official's files.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.10.1. MODIFICATIONS IN FLOOD HAZARD AREAS.

The building official may allow modifications for the following structures in flood hazard areas as established by section 1612.3 of the County Building Code:

(a) In Federal Emergency Management Agency (FEMA)-mapped alluvial fan areas, structures meeting all of the following:

(1) Raised on piers, columns, or stem walls oriented in the direction of flow and not impeding the flow of floodwater and debris;

(2) Having the lowest horizontal structural member elevated above the base flood depth as shown on the effective FEMA Flood Insurance Rate Map (FIRM) map; and

(3) Having the lowest floor elevated minimum one foot above the base flood depth as shown on the effective FEMA FIRM map.

(b) In FEMA-mapped alluvial fan areas, structures located on fill on a lot greater than one acre but less than five acres and not associated with a new development of greater than 50 lots and meeting all of the following:

(1) For one- and two-family dwelling units and accessory structures, elevated on fill with the lowest floor or slab minimum one foot above the base flood depth as shown on the effective FEMA FIRM map. For all other structures, elevated on fill with the lowest floor or slab minimum two feet above the base flood depth as shown on the effective FEMA FIRM map.

(2) Structure and associated fill do not divert floodwater flow or debris in a manner negatively affecting other lots, based on a site-specific review.

(Added by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.11. ALTERNATIVE MATERIALS, DESIGN AND METHODS OF CONSTRUCTION AND EQUIPMENT.

The provisions of this chapter are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this code, provided that the building official approves the alternative material or method. The building official may approve an alternative material, design or method of construction where the building official finds that the proposed design is satisfactory and conforms to the intent of this code and that the material, method or work offered is for the purpose intended and at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability and safety.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.11.1. RESEARCH REPORTS.

Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this chapter, shall consist of valid research reports from approved sources.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.11.2. TESTS.

Whenever there is insufficient evidence of compliance with this chapter, evidence that a material or method does not conform to the requirements of this chapter, or the building official needs to substantiate claims for alternative materials or methods, the building official may require tests as evidence of compliance to be made at no expense to the County. Test methods shall be as specified in this chapter or by other recognized test standards. In the absence of recognized and accepted test methods, acceptance of testing procedures and results shall be at the discretion of the building official. Tests shall be performed by an approved agency or individual. Reports of the tests shall be retained by the building official for the period required for retention of public records.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.104.12. FEES ESTABLISHED BY THE BOARD.

Unless this chapter provides otherwise, all fees required or authorized by this chapter shall be as prescribed by the Board of Supervisors.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105. PERMITS.

Any owner or owner's authorized agent who intends to construct, enlarge, alter, repair, move, demolish, change the use or occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical or plumbing system, the installation of which is regulated by this code, or to cause any such work to be performed, shall first make application to the building official and obtain the required permit.

(a) Except as provided in section 91.1.105.2, no person shall erect, construct, enlarge, alter, repair, maintain, move, improve, remove, convert or demolish a building or structure regulated by this chapter without a separate permit for each building or structure, issued by the building official. This section shall not be construed to require separate permits for a

dwelling and auxiliary buildings or structures on the same property which are described in a building permit application, plot plan and other drawings.

(b) No person shall construct a residential driveway and no person shall cause or allow a residential driveway to be constructed on property owned or controlled by the person without having obtained a permit as provided in this chapter. A person shall not be required to obtain a separate permit for a residential driveway ancillary or accessory to the construction of a single family dwelling or duplex.

(c) No person shall do any grading, for which a grading permit is required, without a grading permit issued as provided in Title 8, Division 7 of this code. When the grading permit is issued by the building official a building permit shall be obtained to cover all retaining walls, drainage structures and related items (other than standard terrace drains and similar facilities). The building permit fee shall be based on the total valuation of the retaining walls, drainage structures and related items.

(d) No permits shall be issued for construction on a site where a grading permit is required until the rough grading has been inspected and approved, acceptable compaction and other soil reports have been approved and until all plan check fees required under this code have been paid.

(e) No permit shall be issued on a site where grading or public improvements installation work is being performed subject to the approval of the Director of Public Works until the Director of Public Works notifies the Director of Planning and Development Services in writing that the grading or public improvement work has been satisfactorily completed.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; amended by Ord. No. 10179 (N.S.), effective 11-11-11; amended by Ord. No. 10224 (N.S.), effective 10-25-12; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.2. WORK EXEMPT FROM PERMIT.

Exemptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of this jurisdiction.

(a) Building: A building permit shall not be required for the following. Unless otherwise exempted by this code, separate electrical, plumbing and mechanical permits may be required for the below exempted items. It is the responsibility of any person performing the work and any person hiring another person to perform the work to ascertain whether a permit is required from the building official before the work begins.

(1) Patio covers, carports, and horse shade covers, when accessory to individual dwelling units and does not exceed 300 square feet of projected roof area.

(2) Recreation and athletic equipment, excluding buildings and swimming pools, accessory to individual dwelling units.

(3) One-story detached accessory structures, including sea cargo containers, used as non-habitable space, such as tool or storage sheds, playhouses, agricultural buildings and similar uses, provided the floor area does not exceed 120 square feet.

(4) Fences and free standing masonry walls, other than swimming pool barriers, not over 6 feet high. A building permit shall also not be required for open fences up to eight feet high provided the uppermost two feet consists only of barbed or razor wire and necessary support elements placed at an angle to the vertical for security purposes.

(5) Oil derricks.

(6) Moveable fixtures, cases, racks, counters and partitions not over 5 feet 9 inches high.

(7) Walls that retain not over three feet of soil as measured from the top of the footing to top of retained soil, are not more than 6 feet in total height as measured from the lowest finished grade, and have a level backfill with no other structures within 6 feet and not supporting a surcharge or impounding flammable liquids.

(8) Water tanks supported directly upon grade if the capacity does not exceed 5,000 gallons and the ratio of height to diameter or width does not exceed two to one, or the capacity does not exceed 10,000 gallons and the ratio of height to diameter or width does not exceed one and one-half to one.

(9) Decks, walks and driveways not more than 30 inches above adjacent grade and not over any basement or story below and are not part of an accessible route.

(10) Painting and papering and similar finish work.

(11) Temporary motion picture, television and theater stage sets and scenery.

(12) Window awnings on Group R-3 or Group U occupancies supported by an exterior wall that do not project more than 54 inches from the exterior wall and do not require additional support.

(13) Prefabricated swimming pools accessory to a Group R-3 occupancy that are less than 18 inches deep, do not exceed 5,000 gallons and are installed entirely above ground.

(14) Single pole television and radio antennas supported on roofs. Dish antennas supported on the ground when they comply with the accessory structure setback regulations of the County Zoning Ordinance.

(15) Public utility towers and poles.

(16) Any portable metal hanger less than 2,000 square feet in size, located on a County-owned airport used only for parking aircraft and bearing evidence of approval by the California Department of Motor Vehicles for movement on any highway. This structure shall, as an integral part of the basic construction, be equipped with a hitch or coupling device for towing. It shall accommodate, without further major structural change, wheel and axle assemblies which will provide this structure with a safe means of portability. No water, sanitary facilities or electrical installation shall be allowed in this structure and it shall be equipped with permanent ventilation as required for any Group S-2 occupancy.

(17) Electric light poles, flag poles and antennas, when accessory to individual dwelling units and not over 35 feet in height above finished grade when fully extended.

(18) Agricultural shade structures where the shade is provided by a fabric or plastic film material, and agricultural crop protection structures which are constructed exclusively with a framework of metal or plastic hoops that are covered with a flexible plastic film.

(b) Electrical: An electrical permit shall not be required for the following:

(1) Minor repair work such as repairing a snap switch, replacing a fuse, repairing a lamp socket or a receptacle.

(2) Replacing a lamp or connecting a portable appliance to a permanently installed, suitable receptacle.

(3) The installation, alteration or repair of wiring, devices, appliances or equipment for the operation of signals or the transmission of intelligence (not including the control of lighting or appliance circuits) where the wiring, devices, appliances or equipment operate at voltage not exceeding 25 volts between conductors and do not include generating or transforming equipment capable of supplying more than 50 watts of energy.

(4) The installation, alteration or repair of electric wiring, a device, an appliance or equipment installed by the United States, State of California, a school district, county, city or a "local agency" as defined in California Government Code section 53090, whose facility is exclusively for the production, generation, storage, or transmission of water, wastewater or electrical energy.

(5) Repair, installation or removal of any appliance used for household purposes in a residential building. A permit shall be required, however, for connecting such an appliance to the source of electrical energy, unless the connection is made to a permanently installed receptacle.

(6) Electrical equipment used for radio or television transmission. However, a permit is required for equipment or wiring for a power supply and the installation of a tower or antenna.

(7) The installation of any temporary system required for testing or servicing of electrical equipment and apparatus.

(c) Plumbing: A plumbing permit shall not be required for the following:

(1) Installing a replacement water heater with no change to the unit type or servicing utilities when performed by a California licensed plumbing contractor.

(2) Installing a toilet, bidet, showerhead or faucet inside a building when the installation is limited to repairing or replacing the fixture and is performed by the building owner or a plumbing contractor licensed by the State of California. The work shall be limited to plumbing on the service side of the fixture's water supply shut-off valve and shall not include work within any floor, ceiling, or wall cavity or include any fixture with a connection to a gas line or electrical service.

(3) Stopping a leak in a drain or water, soil, waste or vent pipe. If, however, a concealed trap, drain pipe, water, soil, waste or vent pipe becomes defective and it becomes necessary to remove and replace the defective material, the work shall be considered new work and require a permit and inspection under this chapter.

(4) Clearing a stoppage or repairing a leak in a pipe, valve or fixture or removing and reinstalling a water closet, as long as the repairs do not involve or require the replacement of or rearrangement of a valve, pipe or fixture.

(d) Mechanical: A mechanical permit shall not be required for the following:

(1) Replacing a faulty control, valve, drier or filter in any heating, ventilation, air conditioning or refrigeration equipment or repairing the equipment, as long as the work does not require removing the equipment from its installed position.

(2) Installing a temperature control, repairing a leak or recharging a refrigeration compressor or system.

(3) Servicing or repairing an ice machine.

(4) Repairing a unit refrigeration system freezer.

(5) Repairing any unit-system refrigeration or refrigerated drinking fountain.

(6) A portable heating appliance, ventilation equipment, cooling unit or evaporate cooler.

(7) A closed system of steam, hot or chilled water piping within any heating or cooling equipment regulated by this code.

(8) A self-contained refrigeration system.

(9) Replacing any part that does not alter its approval or make it unsafe.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.3. APPLICATION FOR A PERMIT.

To obtain a permit, the applicant shall file a written application on a form furnished by the building official for that purpose and pay all required fees. The application shall:

- (a) Identify and describe the work to be covered by the permit for which application is made.
- (b) Describe the land on which the proposed work is to be done by legal description, street address or similar description that will readily identify and definitely locate the proposed building or work.
- (c) Indicate the use and occupancy for which the proposed work is intended.
- (d) Be accompanied by construction documents and other information required by section 91.1.107- 91.1.107.2.
- (e) State the value of the proposed work.
- (f) Be signed by the applicant or the applicant's authorized agent.
- (g) Provide other data and information required by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.3.1. ACTION ON APPLICATION.

The building official shall examine a permit application and any amendment to the application within a reasonable time after filing. If the application or the construction documents do not conform to the requirements of this chapter or other applicable laws, the building official shall reject the application in writing and state the reasons for the rejection. If the building official is satisfied that the proposed work conforms to the requirements of this chapter and other applicable laws the building official shall issue a permit as soon as practicable.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.3.1.1. STREAMLINED PROCESSING OF SMALL RESIDENTIAL ROOFTOP SOLAR ENERGY AND ENERGY STORAGE PERMITS.

The building official shall follow a streamlined permitting process for a small residential rooftop solar energy and energy storage systems meeting all of the following requirements:

- (a) No larger than 38.4 kilowatts alternate current nameplate rating or 30 kilowatts thermal.
- (b) Installed on a single- or two-family dwelling.
- (c) Satisfying the information requirements specified in a checklist published on the County of San Diego website and substantially conforming to the most current version of the California Solar Permitting Guidebook adopted by the Governor's Office of Planning and Research.
- (d) Conforming to all applicable codes and ordinances adopted by the County of San Diego.

The County's streamlined permitting process shall substantially conform to the procedures for expedited processing as set forth in the most current version of the California Solar Permitting Guidebook adopted by the Governor's Office of Planning and Research. Solar energy and energy storage systems that meet the criteria under this section can use the County's online automated permitting platform to obtain the necessary permits. The County's streamlined permitting ordinance adoption process includes consultation and concurrence reviews by the County Fire Protection District, which coordinates with all unincorporated local fire departments. The consolidated streamline inspections ensure compliance with all the applicable codes and ordinances adopted by the County of San Diego.

(Added by Ord. No. 10395 (N.S.), effective 11-13-15; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.3.1.2. STREAMLINED PROCESSING OF ELECTRIC VEHICLE CHARGE STATION AND HYDROGEN-FUELING STATION PERMITS.

The building official shall follow a streamlined permitting process for electrical vehicle charge station system and hydrogen-fueling station meeting all of the following requirements:

(a) Satisfying the information requirements specified in the latest version of the checklist published on the County of San Diego website.

(b) Conforming to all applicable codes and ordinances adopted by the County of San Diego.

(Added by Ord. No. 10437 (N.S.), effective 9-2-16; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.4. VALIDITY OF PERMIT.

The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of this chapter or any other County ordinance. A permit presuming to give authority to violate or cancel the provisions of this chapter or any County ordinance shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the building official from requiring the correction of errors in the construction documents and other data. The building official is also authorized to prevent occupancy or use of a structure in violation of this chapter or of any other County ordinance.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.5. PERMIT EXPIRATION.

Every permit issued by the building official pursuant to this chapter shall expire and become null and void if any of the following occur:

(a) The building or work authorized by the permit has not commenced within two years of the date the permit was issued. Work shall be presumed to have commenced if the permittee has obtained a required inspection from the building official verifying that substantial progress has been made.

(b) The building or work authorized by the permit has stopped for a period of 180 days at any time after the work has commenced, unless the permittee is on active military duty, as described in section 91.1.109.5.10. Work shall be presumed to have stopped if the permittee has not obtained a required inspection from the building official verifying that substantial progress has been made.

(c) The building or work authorized by the permit has not been completed within three years from the date the permit was issued.

When a permit expires under this section, no building or work shall be done unless the permittee obtains a new permit or a renewal permit, as provided in sections 91.1.105.5.1-91.1.105.5.3.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.5.1. PERMITS WHERE WORK HAS NOT COMMENCED.

For a permit where work has not commenced within the period specified in section 91.1.105.5(a), a permittee may obtain a renewal permit provided:

(a) No changes have been made or will be made in the original plans and specifications for the work.

(b) Three years have not passed from the date the original permit was issued.

(c) The same edition of the County Building Code, County Residential Code, County Electrical Code, County Plumbing Code, County Mechanical Code, County Energy Efficiency Code and County Green Building Code ("County Construction Codes") are in effect as used in the original plan check and no relevant County ordinances, policies, rules or regulations have changed since the expiration of the permit. Where a later edition of the County Construction Codes have been adopted since the original plan check, renewal application shall be considered as a new plan check submittal. Accordingly, plans accompanying the renewal application shall reflect the requirements of the current County Construction Codes and relevant County ordinances, policies, rules or regulations in effect. A full new plan check fee shall be required and paid with the renewal application.

(d) After the plans have been approved, the applicant pays a fee equal to one-half the amount required for a new permit.

A person issued a renewal permit shall be required to show the building official substantial progress in the form of a valid inspection within the period specified in section 91.1.105.5(b). The first such period shall be measured from the date of renewal. A renewal permit issued under this section shall expire three years from the date the original permit was issued.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.5.2. PERMITS WHERE WORK HAS COMMENCED.

For a permit where work has commenced and stopped for a period exceeding that specified in section 91.1.105.5(b), a permittee may obtain a renewal permit provided:

- (a) No changes have been made or will be made in the original plans and specifications for such work.
- (b) Three years have not passed from the date the original permit was issued.
- (c) The applicant pays a fee equal to one-half the amount required for a new permit, except that where construction has progressed and has been approved to the point of requiring only a final inspection, the applicant shall pay a fee equal to one-quarter the amount required for a new permit.

A person issued a renewal permit shall be required to show the building official substantial progress in the form of a valid inspection within the period specified in section 91.1.105.5(b). The first such period shall be measured from the date of renewal. A renewal permit issued under this section shall expire three years from the date the original permit was issued.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.5.3. WORK AUTHORIZED BY THE PERMIT HAS NOT BEEN COMPLETED WITHIN THREE YEARS.

Where an applicant has not completed the work authorized by a permit within three years from the date the permit was issued, a renewal permit may be obtained as follows:

- (a) The applicant has commenced work based on the permit and the building official has approved the work.
- (b) No changes have been made or will be made in the original plans and specifications for the work.
- (c) The applicant shall pay a fee equal to the full amount required for a new permit, except that where the building official determines that work has progressed to a point that a lesser fee is warranted, the applicant shall pay the lesser fee.

A person issued a renewal permit shall be required to show the building official substantial progress in the form of a valid inspection within the period specified in section 91.1.105.5(b). The first such period shall be measured from the date of renewal. The maximum life of a permit renewal issued under this section shall be one year from the renewal date. The permit may be renewed for each year thereafter provided the applicant meets all requirements of this section at the time of each renewal.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.5.4. EXTENSION OF AN UNEXPIRED PERMIT.

A permittee holding an unexpired permit may apply for an extension of the time within which work pursuant to a permit may be extended on showing good cause why the work could not be completed with the time required by this chapter. The request for extension shall be in writing. The building official may grant a permittee a one-time extension under this section to complete the work for up to six months from the request without the permittee paying an additional fee, as long as the work will be completed within three years from the date the original permit was issued.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.6. SUSPENSION OR REVOCATION.

The building official may suspend or revoke a permit issued under this chapter wherever the required fees have not been paid or the permit was issued in error or on the basis of incorrect, inaccurate or incomplete information or in violation of this chapter or any other ordinance or regulation.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.7. PLACEMENT OF PERMIT.

The applicant shall keep the original or a copy of the permit on the site of the work until the project is completed.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.8. SOILS REPORT.

Whenever the building official has good cause to believe that the site upon which a building or structure is to be constructed contains expansive soil, uncompacted fill, or other soil problems which if not corrected would lead to structural defects if the proposed building or structure is constructed as proposed, the building official may require an applicant or a permittee provide a soil investigation and report. As used in this section, "expansive soil" means any soil which swells more than three percent when prepared and tested as provided in the American Society for Testing Materials "Test Method for Expansion Index of Soils" D4829-11 or some other recognized test approved by the building official. The report shall be prepared by a civil engineer or a soils engineer registered in the State of California and shall contain:

- (a) A certification that the engineer has investigated the soil on the property.
- (b) The location where all borings and excavations were made.
- (c) A summary of all field and laboratory tests conducted.
- (d) A statement of the qualities of the soil, its expansive characteristics, relative compaction and any soil problem which if not corrected may lead to structural defects of buildings or structures constructed or to be constructed on the site.
- (e) The engineer's recommended corrective action necessary to prevent structural damage to buildings or structures erected on-site.

The building official shall review the report and determine whether the action the engineer recommended will likely prevent structural damage to buildings or structures constructed or to be constructed on the site. If the building official agrees with the engineer's recommendation the building official shall require the applicant to follow the engineer's recommended corrective action during construction.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.9. DRIVEWAY PERMIT REQUIRED.

No person shall be issued a permit to erect, install, construct, move or place a commercial, industrial or multi-residential building on any premises unless the applicant obtains a driveway permit from the Department of Public Works for a commercial driveway or provides evidence that no new driveway will be established as a result of the applicant's proposed work.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.10. FLOOD HAZARD REPORT.

When an application for a permit is filed and it appears to the building official that there may be danger that the building or structure proposed to be erected, installed, constructed, reconstructed, enlarged, placed, altered, repaired, moved, removed, remodeled, improved, converted or equipped will be flooded or that the completion of the work will result in the flooding of other structures or property, the building official may refuse to issue the permit and refer the matter to the Department of Public Works for review. At the time of the referral, the applicant shall pay the established fee to the Department of Public Works for review of the flood hazard. The building official shall not issue the building permit until the Department of Public Works reviews the plans, finds that reasonably adequate protection for the buildings and structures in consideration has been provided and approves the plans. As used in this section reasonably adequate protection shall include, but not be limited to:

- (a) Design and anchorage to prevent flotation, collapse or lateral movement of the structure.
- (b) Use of construction materials and utility equipment that are resistant to flood damage.
- (c) Use of construction methods and practices that will minimize flood damage.
- (d) Design and/or locate electrical, heating, ventilation, plumbing, air conditioning equipment, and other service facilities to prevent water from entering or accumulating within the components during conditions of flooding.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.105.11. EMERGENCY BUILDING PERMITS.

The building official may establish procedures for issuing a permit to correct an emergency. The building official may verbally authorize work to proceed when there is an emergency, subject to the condition that the applicant for the emergency permit shall file a standard application for a permit as soon as the emergency has been resolved. The holder of

an emergency permit shall proceed without assurance that the work performed under the emergency permit will be approved as constructed. If the work performed pursuant to the emergency permit is unsatisfactory to the building official, the building official may order the work to be corrected or removed.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.106.1. FLOOR AND ROOF DESIGN LOADS.

Where the floor, or a portion of the floor, in a commercial or industrial building has been designed to exceed 50 psf live load, such design live loads shall be conspicuously posted by the owner. The live loads shall be posted on each floor and in each portion of the building having a design live load greater than 50 psf. The posting shall be made using durable signs.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.106.2. DESIGN LOADS POSTED PRIOR TO ISSUANCE OF CERTIFICATE OF OCCUPANCY.

A certificate of occupancy required by Section 91.1.111.1 shall not be issued until the floor load signs required by Section 91.1.106.1 have been installed.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.106.3. RESTRICTIONS ON LOADING.

It shall be unlawful to place, or cause or allow to be placed, on any floor or roof of a building or structure a load greater than is allowed by this code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107. CONSTRUCTION DOCUMENTS.

A permit applicant shall submit construction documents, statements of special inspections and other data required by this chapter with each permit application. The construction documents shall be prepared by a registered design professional when required by State law and this chapter. Where special conditions exist, the building official may require the applicant to submit additional construction documents prepared by a registered design professional. The building official may waive submission of certain documents not mandated by this chapter where the building official determines that the documents are not necessary.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.1. BUILDING OFFICIAL MAY REQUIRE DESIGN PROFESSIONAL.

The building official may require an applicant to submit plans prepared, signed and sealed by a licensed engineer or licensed architect, when an applicant submits plans that do not usually require preparation by a licensed professional, but because the applicant's submission is of such poor quality, the building official determines the applicant is unable to submit plans that meet the requirements of this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.1.1. INFORMATION ON CONSTRUCTION DOCUMENTS.

Construction documents shall provide dimensions and be drawn on suitable material. The building official may allow electronic media documents to be submitted. Construction documents shall be of sufficient clarity to indicate the location, nature and extent of the work proposed and show in detail that it will conform to the provisions of this chapter and other relevant laws, rules and regulations, as determined by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.1.1. FIRE PROTECTION SYSTEM SHOP DRAWING.

Shop drawings for any fire protection system shall be submitted to indicate conformance with this code and the construction documents and shall be approved prior to the start of system installation. Shop drawings shall contain all information as required by the referenced installation standards in chapter 9 of the County Fire Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.1.2. MEANS OF EGRESS.

The construction documents shall show in sufficient detail the location, construction, size and character of all portions of the means of egress in compliance with the provisions in this chapter. In occupancies other than R-3, the construction documents shall designate the number of occupants to be accommodated on every floor and in all rooms and spaces.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.1.3. EXTERIOR WALL ENVELOPE.

Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with this chapter. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves or parapets, means of drainage, water-resistive membrane and details around openings.

The construction documents shall include manufacturer's installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system which was tested, where applicable, as well as the test procedure used.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.2. PLOT PLAN.

Construction documents submitted with a permit application shall be accompanied by a plot plan drawn to scale showing the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grades and, as applicable, flood hazard areas, floodways, and design flood elevations. The plot plan shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the plot plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official may waive or modify the requirement for a plot plan when the permit application is for alteration or repair or when otherwise warranted.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.3.1. APPROVAL OF CONSTRUCTION DOCUMENTS.

When the building official issues a permit, the construction documents shall be approved, in writing or by stamp. The building official shall retain one set. The applicant shall maintain a set of documents at the work site and the documents shall be open to inspection by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.3.4. RESPONSIBLE DESIGN PROFESSIONAL.

When this chapter or State law requires that certain documents be prepared by a registered design professional, the building official may require the property owner to engage and designate on the building permit application the name of a registered design professional who shall be responsible for the project. The building official may require the owner to designate a substitute responsible, registered design professional who shall be responsible for the project. The owner shall notify the building official in writing if the responsible, registered design professional has changed or is unable to continue to perform the duties.

The responsible, registered design professional shall be responsible for reviewing and coordinating submittal documents

prepared by others, including phased and deferred submittal items, for compatibility with the design of the building.

Where the County Building Code requires structural observation the applicant's statement of special inspections shall name the person retained to perform structural observation and shall describe the stages of construction at which structural observation is to occur.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.3.4.2. DEFERRED SUBMITTALS.

For the purposes of this section, "deferred submittals" are defined as those portions of the design that are not submitted at the time of the application and that are to be submitted to the building official within a specified period. The applicant shall obtain the building official's approval for deferred submittal of any item. The responsible, registered design professional shall list the deferred submittals on the construction documents for review by the building official and shall submit the deferred submittals to the building official with a notation indicating that the deferred submittal documents have been reviewed by the design professional and been found to be in general conformance to the design of the building. Deferred submittal items shall not be installed until approved by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.4. AMENDED CONSTRUCTION DOCUMENTS.

Work shall be installed in accordance with the approved construction documents and any changes made during construction that are not in compliance with the approved construction documents shall be resubmitted for approval as an amended set of construction documents.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.107.5. RETENTION OF CONSTRUCTION DOCUMENTS.

The building official shall retain one set of approved construction documents for at least 90 days after the date work is completed pursuant to a permit or longer if required by State or local law.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.108. TEMPORARY STRUCTURES AND USES.

The building official may issue a permit for a temporary structure or a temporary use when the structure or use is authorized by this code. A permit issued under this section shall be issued for a maximum of 180 days. The building official may grant an extension on a showing of good cause. This section and sections 91.1.108.2 - 91.1.108.4 shall not apply to temporary occupancy of a trailer coach governed by the County Zoning Ordinance.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.108.2. CONFORMANCE.

A temporary structure or use shall conform to the structural strength, fire safety, means of egress, accessibility, light, ventilation and sanitary requirements of this chapter that the building official determines are necessary to ensure public health, safety and general welfare.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.108.3. TEMPORARY POWER.

The building official may grant a permit for temporary power as part of an electric installation in conjunction with a permit for a temporary structure or a temporary use. The person granted the permit for temporary power shall comply with the requirements specified for temporary lighting, heat and power in the County Electrical Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.108.4. TERMINATION OF APPROVAL.

The building official may terminate a permit for a temporary structure, a temporary use or temporary power at any time and may order a temporary structure, a temporary use or temporary power be discontinued.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109. FEES.

A permit shall not be valid until the fees prescribed by law have been paid and no amendment to a permit shall be released until the additional fee, if any, has been paid.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.2. PERMIT AND PLAN REVIEW FEES.

The building official shall determine value for the purpose of computing the amount of any permit fee. The value the building official shall use in computing a permit fee and plan review fee shall be the total value of all construction work for which the permit is issued as well as all finish work, painting, roofing, electrical, plumbing, heating, air conditioning, elevators, fire extinguishing systems and any other permanent equipment.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.2.1. EXPIRATION OF PLAN REVIEW.

(a) An application for which no permit is issued within one year following the date of application shall expire and plans and other data submitted for review may be returned to the applicant or destroyed by the building official. In order to renew action on an application after expiration the applicant shall resubmit plans and pay a new plan review fee.

(b) Notwithstanding subsection (a) above, if the applicant resubmits the plan and supporting documentation showing circumstances for the requested time extension within six months following the expiration of the plan review period, the building official may extend the time for action by the applicant by an additional six months from the original expiration date, as long as neither the plans, the County Construction Codes nor any other relevant County ordinance, policy, rule or regulation has changed since the original application date. The applicant shall pay a plan review fee as prescribed in section 362.1(b) of the County Administrative Code.

(c) Notwithstanding subsections (a) and (b) above, if the applicant is a member of the military described in section 91.1.109.5.10 below and resubmits the plan and supporting documentation showing that a call to military service caused delay in the applicant's ability to proceed with the project, the building official may extend the time for action by the applicant by an additional twelve months from the original expiration date and may subsequently grant additional twelve month time extensions, as long as neither the plans, the County Construction Codes nor any other relevant County ordinance, policy, rule or regulation has changed since the expiration of the plan review. The military applicant shall not be required to pay a plan review fee.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.3. BUILDING PERMIT VALUE.

An applicant for a permit shall provide an estimated permit value at time of application. Permit value shall include total value of work, including materials and labor, for which the permit is being issued, such as electrical, gas, mechanical, plumbing equipment and permanent systems. If, in the opinion of the building official, the applicant underestimated the permit value on the application, the building official shall deny the permit unless the applicant is able to provide detailed estimates that meet the building official's approval. The building official shall establish the final building permit value.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.4. WORK COMMENCING BEFORE PERMIT ISSUANCE.

Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits required by this chapter shall, in addition to being subject to any legal action the County may institute, be subject to a fee established by the building official that shall be in addition to the required permit fees.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.4.1. INVESTIGATION FEE.

Whenever a person has commenced any work for which a permit is required by this chapter without a permit, the person performing the work shall pay the County an investigation fee, in addition to any permit fee, whether or not the County issues the person a permit. The investigation fee shall be equal to the amount of the permit fee required by this chapter. The minimum investigation fee shall be the same as the minimum fee for a building permit. Payment of the investigation fee shall not exempt any person from compliance with all other provisions of this chapter nor from any penalty prescribed by law.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.4.2. NO FEE FOR VIOLATIONS NOT IDENTIFIED BY COUNTY.

Notwithstanding section 91.1.109.4.1, the County shall not impose an investigation fee for work performed without a permit which the County has not identified as a violation and for which a permit is voluntarily obtained.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5. RELATED FEES.

Payment of the fee for the construction, alteration, removal or demolition for work done in connection to or concurrently with the work authorized by a building permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.1. COMPLIANCE SURVEY FEE.

When the property owner requests the building official perform a compliance survey of an existing structure the owner shall pay the County a fee for the survey.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.2. DRIVEWAY PERMIT FEE.

An applicant for a building permit shall pay a separate permit fee for filing an application for the residential driveway permit required by section 91.1.105 or an application for a commercial driveway permit required by section 91.1.105.9.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.3. PARK FEE.

An applicant for a building permit when required by Title 8, Division 10, Chapter 1 of this code, shall dedicate land for park purposes, pay a fee in lieu of the dedication or dedicate land and pay the fee, before the County issues a building permit.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.4. DEMOLITION PERMIT FEE.

A person required to obtain a demolition permit shall pay a separate fee for the permit.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.5. FACTORY-BUILT HOUSING.

The fees established by sections 91.1.109.2 and 91.1.109.2.1 for building permits and for plan checking shall be modified for "factory-built housing" as provided in sections 91.1.109.5.5.1 through 91.1.109.5.5.4.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.5.1. DEFINITIONS.

For the purposes of this chapter the following definitions shall apply:

The term "factory-built housing" has the same meaning as the term "factory-built housing" in Health and Safety Code section 19971.

"Unit" means a single, factory-assembled component of the factory-built housing brought to the job site for connection to the foundation and/or connection to other units of the structure.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.5.2. BUILDING PERMIT FEES FOR FACTORY-BUILT HOUSING.

The building permit fee for factory-built housing shall be a percentage of the regular permit fee based on the number of assembled units, using the formula below:

Job Assembled Units	Percent of Established Fee
1 - 4	100% of the fee for Manufactured Homes
5 or more	100% of the fee for a Single-Family Dwelling

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.5.3. FACTORY-BUILT HOUSING PLAN CHECKING FEES.

An applicant for a building permit for factory-built housing shall pay a plan checking fee at the time of submitting plans and specifications for the proposed work. The plan checking fee shall be 100 percent of the building plan review fee for a single-family dwelling.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.5.4. PLANS AND SPECIFICATIONS FOR FACTORY-BUILT HOUSING.

An applicant for a building permit for factory-built housing shall submit with the application two sets of plans and specifications for the work to be performed and such other information the building official requests to allow the building official to determine if the project complies with local and State laws and regulations.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.6. FOUNDATION PERMIT FEE.

When the building official allows issuance of a foundation permit an additional fee for filing an application for a partial permit shall be paid.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.7. BUILDING CONSTRUCTION APPEALS ADVISORY BOARD APPEAL FEE.

A person appealing to the Building Construction Appeals Advisory Board shall pay an appeal fee.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.8. PERMIT RESEARCH FEE.

An applicant for a building permit shall pay a separate fee when the building official determines it is necessary to research other permits known to have been issued to the applicant.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.9. GOVERNMENTAL EXCEPTIONS.

The United States, the State of California, a school district, a county or a city shall not be required to pay any fees for filing an application for a building permit pursuant to this code unless the applicant requests County plan review or building inspection services. If either or both of these services are requested, the regular fee schedules in this chapter shall apply.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.10. FEE WAIVER FOR ACTIVE MILITARY PERSONNEL.

Notwithstanding any other provision of this chapter, the permit fees in section 91.1.105.5.1(d), section 91.1.105.5.2(c), and the renewal permit fee section 91.1.105.5.3(c) and the plan review fee in section 91.1.109.2 may be waived for an applicant who is called to active military duty, including a person who is relocated or deployed or an activated reservist. A person seeking waiver of fees under this section shall provide proof and request a waiver from the building official, who may grant the waiver if satisfied that the applicant qualifies for the waiver under this section.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.11. FEE WAIVER FOR FARM EMPLOYEE HOUSING AND FARM LABOR CAMPS.

Notwithstanding any other provision of this chapter, the flood hazard report fee in section 91.1.105.10, the permit fee in section 91.1.109.2, the plan review fee in section 91.1.109.2, the compliance survey fee in section 91.1.109.5.1, the residential driveway fee in section 91.1.109.5.2, the demolition permit fee in section 91.1.109.5.4, the energy conservation review fee in section 91.1.109.5.13, the Zoning Ordinance review fee in section 91.1.109.5.14 and the fire code review fee in section 91.1.109.5.15 shall be waived for:

(a) Any farm employee housing or farm labor camp project for which (1) a complete application for an Administrative Permit or a Minor Use Permit was filed: between July 13, 1990, and January 13, 1991 pursuant to Ordinance No. 7768 (N.S.), between April 5, 1991 and October 5, 1991 pursuant to Ordinance No. 7875 (N.S.), between October 31, 1991 and June 30, 1993 pursuant to Ordinance No. 8086 (N.S.), between July 30, 1993 and June 30, 1994 pursuant to Ordinance No. 8271 (N.S.), between September 2, 1994 and June 30, 1995 pursuant to Ordinance No. 8436 (N.S.), between September 15, 1995 and June 30, 1998 pursuant to Ordinance No. 8574 (N.S.), between May 14, 1999 and June 30, 2004 pursuant to Ordinance No. 9021 (N.S.), between July 1, 2004 and June 30, 2009 pursuant to Ordinance No. 9647 (N.S.) or between July 1, 2009 and June 30, 2014 pursuant to Ordinance No. 10003 and (2) the County approved the application.

(b) Any farm employee housing or farm labor camp project for which (1) Health and Safety Code sections 17021.5 or 17021.6 applies, (2) the Agricultural Commissioner has issued a certificate of active agricultural enterprise, (3) the housing is not the subject of an active code enforcement action, (4) the applicant has entered into the contract required by Zoning Ordinance section 6156 u. 11 or section 6906 d, and (5) the application was filed: between July 30, 1993 and June 30, 1994 pursuant to Ordinance No. 8271 (N.S.), between September 2, 1994 and June 30, 1995 pursuant to Ordinance No. 8436 (N.S.), between September 15, 1995 and June 30, 1998 pursuant to Ordinance No. 8574 (N.S.), between May 14, 1999 and June 30, 2004 pursuant to Ordinance No. 9021 (N.S.), between July 1, 2004 and June 30, 2009 pursuant to Ordinance No. 9647 (N.S.) or between July 1, 2009 and June 30, 2014 pursuant to Ordinance No. 10003.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17;

repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.12. FEE WAIVER FOR UNREINFORCED MASONRY SEISMIC RETROFITS.

Notwithstanding any other provision of this chapter, the fees in section 91.1.109.2 for a permit shall be waived for any unreinforced masonry building seismic retrofit required by provisions of this code adopted pursuant to Government Code section 8875.2.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.13. ENERGY CONSERVATION REVIEW FEE.

The County shall assess fees against a project to enforce Public Resources Code sections 25401 et seq. for energy conservation standards.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.14. ZONING ORDINANCE REVIEW FEE.

The County shall assess a fee for conducting a review and inspection of a proposed project for compliance with the County Zoning Ordinance.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.15. FIRE CODE REVIEW FEE.

The County shall assess a fee for conducting a review and inspection of a project for compliance with the County Fire Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.16. DISABLED ACCESSIBILITY REVIEW FEE.

The County shall assess a fee for conducting a review and inspection of a project for compliance with the disabled accessibility standards provided in Title 24, part 2 of the California Code of Regulations.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.17. PERMIT APPLICATION FEE.

The County shall assess a fee for processing a building permit application.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.18. AGENCY REFERRAL FEE.

The County shall assess a fee for referring an applicant to other agencies as part of the building permit issuance process.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.19. REINSPECTION FEE.

The building official may assess a fee for each inspection the building official conducts or attempts to conduct when: (a) the permit holder requests an inspection and the building official finds the work inspected is not complete or the building

official is unable to obtain access to the work to inspect it or (b) the building official has ordered the permit holder to correct or remove work and the permit holder has not corrected or removed the work in compliance with the building official's order. The fee authorized by this section shall be considered a reinspection fee.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.5.20. FEE WAIVER FOR DISABLED VETERANS.

Notwithstanding any other provision of this chapter, and the fees otherwise specified in subsections (a), (b) and (c) of section 362.1 of the Administrative Code, the plan check and building permit fees in sections 91.1.109.2 and 91.1.109.5.17 shall be waived for accessibility modifications made to the homes of disabled veterans.

(Added by Ord. No. 10287 (N.S.), effective 10-11-13; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.109.6. FEE REFUNDS.

(a) The building official may authorize a refund of any fee paid under this chapter which was erroneously paid or collected.

(b) When no work has been done under a permit issued pursuant to this chapter the building official may refund up to 80 percent of the permit and shall withhold at least 20 percent of the fee paid but not less than \$10 to offset the County's administrative cost.

(c) The building official may authorize a refund of up to 80 percent of the plan review fee paid when an application for a permit for which a plan review fee has been paid is withdrawn or canceled before any plan reviewing is done and shall withhold at least 20 percent of the fee paid but not less than \$10 to offset the County's administrative cost.

(d) The building official shall not authorize a refund of any fee paid except upon written application filed by the original permittee not later than one year after the fee was paid. A refund shall not be authorized if the total refundable amount after deduction of County administrative cost is less than \$10.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.1. INSPECTION.

Construction of work for which a permit is required shall be subject to inspection by the building official and the construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of this chapter or of any other County ordinance. Inspections presuming to give authority to violate or cancel the provisions of this chapter or of any other County ordinance shall not be valid. It shall be the duty of the permit applicant to cause the work to remain accessible and exposed for inspection purposes. Neither the building official nor the County shall be liable for any expense entailed in removing or replacing any material required to allow inspection.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.2. PRELIMINARY INSPECTION.

Before issuing a permit, the building official is authorized to examine or cause to be examined buildings, structures and sites for which an application has been filed.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3. REQUIRED INSPECTIONS.

The building official, after receiving notification from the applicant that the project is ready for inspection, shall conduct the inspections in sections 91.1.110.3.1 through 91.1.110.3.9.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.1. FOOTING AND FOUNDATION INSPECTION.

Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel and anchoring hardware are in place, but before concrete is poured. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the job.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.2. CONCRETE SLAB AND UNDER-FLOOR INSPECTION.

Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.3. LOWEST FLOOR ELEVATION.

In flood hazard areas, upon placement of the lowest floor, including the basement, and prior to further vertical construction, the elevation certification required in Title 8, Division 11, of the County of San Diego Code of Regulatory Ordinances shall be submitted to the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.4. FRAME INSPECTION.

Framing inspections shall be made after the roof deck or sheathing, all framing, fireblocking and bracing are in place and pipes, chimneys and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes and ducts are approved.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.5. LATH AND GYPSUM BOARD INSPECTION.

Lath and gypsum board inspections shall be made after lathing and gypsum board, interior and exterior, is in place, but before any plastering is applied or gypsum board joints and fasteners are taped and finished.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.6. FIRE-RESISTANT PENETRATIONS.

Protection of joints and penetrations in fire-resistance-rated assemblies shall not be concealed from view until inspected and approved.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.7. ENERGY EFFICIENCY INSPECTIONS.

The building official shall have the right to conduct inspections to determine compliance with Title 24, Part 6 of the California Code of Regulations dealing with energy efficiency.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.8. OTHER INSPECTIONS.

In addition to the inspections specified above, the building official may conduct or require other inspections of any construction work to ascertain compliance with the provisions of this chapter and other laws that are enforced by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.8.1. COMPLIANCE SURVEY INSPECTION.

Upon receipt of a written request for a compliance survey from the owner and payment of the fee, the building official may perform a compliance survey on an existing structure to: (a) satisfy a condition established by a County Zoning Permit or (b) inspect a residential building proposed to be moved.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.3.9. FINAL INSPECTION.

The final inspection shall be made after all work required by the building permit is completed.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.4. INSPECTION AGENCIES.

The building official may accept reports of approved inspection agencies, provided the agencies satisfy the requirements as to qualifications and reliability.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.5. INSPECTION REQUESTS.

It shall be the duty of the holder of the building permit or his or her duly authorized agent to notify the building official when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspections of the work required by this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.6. APPROVAL REQUIRED.

Work shall not be done beyond the point indicated in each successive inspection without the building official's approval. The building official, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed or notify the permit holder or his or her agent if any work fails to comply with this chapter. Any portions that do not comply shall be corrected and these portions shall not be covered or concealed until approved by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.110.7. ALL WORK TO BE INSPECTED.

All work performed pursuant to a permit issued under this chapter shall be inspected by the building official to ensure compliance with all the requirements of this chapter. It shall be unlawful for any person to fail or refuse to obtain any inspection required by this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.111.1. ILLEGAL TO USE OR OCCUPY WITHOUT CERTIFICATE OF OCCUPANCY.

It shall be unlawful for any person to use, to occupy or to change the existing use or occupancy of a building or structure or portion thereof until the building official has issued a certificate of occupancy as provided in this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.111.2. CERTIFICATE OF OCCUPANCY ISSUED.

When the building official finds after final inspection that a building or structure complies with the provisions of this chapter, the building official shall indicate the approval on the inspection record card and the signed inspection record card shall serve as a certificate of occupancy. The owner shall maintain the approved inspection record card on the premises and no person other than the building official shall remove the card. If the inspection record card is lost the County's computer records maintained on the County's database shall serve as a replacement for the inspection record card.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.111.3. TEMPORARY OCCUPANCY.

If the building official finds that no substantial hazard will result from occupancy of any building or structure or portion thereof before the building is completed, the building official may grant a temporary occupancy permit in writing, for the use of a portion or portions of a building or structure prior to the completion of the entire building or structure. The holder of the permit shall provide adequate protection from the remaining construction for the occupants and the public. The building official may issue a temporary occupancy permit for up to 30 days and may extend the permit for good cause. The building official may revoke a temporary occupancy if the building official determines the person to whom the permit has been issued has not acted diligently to complete a building or structure or if the building official determines that any of the grounds exist for revoking a certificate of occupancy.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.111.4. REVOCATION OF CERTIFICATE OF OCCUPANCY.

The building official may suspend or revoke a certificate of occupancy issued under this chapter whenever the certificate is: (a) issued in error, (b) based on incorrect information supplied or (c) when the building official determines that the building or structure or a portion thereof is in violation of this chapter or any other County ordinance or regulation. Whenever the building official suspends or revokes a certificate of occupancy the building official shall provide written notice to the owner and occupant of the building or structure.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.111.5. CHANGE IN USE.

Changes to the character or use of a building shall not be made except as provided in the California Existing Building Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.112.1. CONNECTION OF SERVICE UTILITIES.

No person shall make connections from a utility, source of energy, fuel or power to any building or system that is regulated by this chapter for which a permit is required until authorized by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.112.2. TEMPORARY CONNECTION.

The building official may authorize a temporary connection of a building or system to a utility source of energy, fuel or power.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17;

repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.112.3. AUTHORITY TO DISCONNECT SERVICE UTILITIES.

(a) The building official may authorize disconnection of utility service to a building, structure or system regulated by this chapter in case of emergency where the building official determines it is necessary to eliminate an immediate hazard to life or property.

(b) The building official may also authorize disconnection of utility service to a building, structure or system regulated by this chapter when the building official determines that any connection was made without a permit required by this chapter or that a permit was obtained based upon inaccurate or incomplete information or in violation of this chapter, this code or any other County ordinance or regulation. Any utility installation (1) without a proper permit, (2) with a permit obtained based upon inaccurate or incomplete information or (3) with a permit issued in violation of this chapter, this code or any other County ordinance or regulation shall be considered hazardous or potentially hazardous to life and property.

(c) The building official may also authorize disconnection of utility service when the building official has previously granted a permit to connect to utility service, but determines there has been an illegal or dangerous use of utility service. The building official may order the person illegally using the utility service to immediately cease using the service on receipt of the notice and not to reconnect until the building official authorizes the connection.

(d) When the building official makes a determination in subsections (a) through (c) of this section and authorizes disconnection, the building official shall notify the serving utility and wherever possible the owner and occupant of the building, structure or service system of the decision to disconnect prior to taking this action. If not notified prior to disconnecting, the owner or occupant of the building, structure or service system shall be notified in writing, as soon as practicable thereafter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.112.4. RECONNECTION OF GAS OR ELECTRIC UTILITY SERVICE.

Whenever a utility provider disconnects gas or electric service to a building, structure or service (a) when directed to disconnect service by the building official pursuant to section 91.112.3, (b) when the provider determines that there has been a violation of State or local law or (c) that an emergency exists that poses an immediate hazard to life or property, the utility provider shall not restore the gas or electric service without authorization from the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.113.1. APPEALS PROCEDURE FOR THE COUNTY BUILDING, RESIDENTIAL, PLUMBING, ELECTRICAL AND MECHANICAL CODES.

A person may appeal an order, decision or determination made by the building official that relates to the application or interpretation of this chapter by filing a written appeal to the Building Construction Advisory Board of Appeals within 30 days of the building official's decision.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.113.2. BUILDING CONSTRUCTION ADVISORY BOARD OF APPEALS.

This section establishes a Building Construction Advisory Board of Appeals (BCA Board) consisting of five members. The Building Industry Association of San Diego County shall appoint two members and one alternate, the President of the San Diego Chapter of the International Code Council shall appoint two members and one alternate and the Director of the San Diego County Department of Planning and Development Services shall appoint one member with one alternate. Three members shall constitute a quorum for the transaction of business and three affirmative votes shall be necessary to render a decision. The San Diego County Department of Planning and Development Services appointee shall act as the secretary of the BCA Board. The BCA Board shall adopt reasonable rules and regulations for conducting its review and shall render decisions and findings in writing to the Director of Planning and Development Services, with a copy to the appellant. The BCA Board's decision shall make a recommendation to the Director of Planning and Development Services, advising whether the decision appealed from should be upheld or modified. The Director of Planning and Development Services shall consider the BCA Board's recommendation and provide a final decision in writing to the appellant, within 15 days of receipt of the BCA Board's recommendation.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; amended by Ord. No. 10224 (N.S.), effective 10-25-12; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective

SEC. 91.1.114.1. UNLAWFUL TO VIOLATE COUNTY BUILDING CODE, COUNTY RESIDENTIAL CODE, COUNTY ELECTRICAL CODE, COUNTY PLUMBING CODE, COUNTY MECHANICAL CODE, COUNTY ENERGY EFFICIENCY CODE AND COUNTY GREEN BUILDING CODE.

It shall be unlawful for any person to use any property or erect, construct, enlarge, alter, repair, move, remove, improve, convert, demolish, equip, use, occupy or maintain any building or structure, or cause the same to be done, contrary to or in violation of any of the provisions of this chapter, the County Building Code, County Residential Code, County Electrical Code, County Plumbing Code or County Mechanical Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.114.2. DUTY TO CORRECT VIOLATION.

Paying a fine or serving a jail sentence shall not relieve any person from the responsibility for correcting any condition which constitutes a violation of section 91.1.114.1. A property owner shall be considered to have allowed any use or improvement of property occupied by, or under the dominion and control of the owner and the owner shall be responsible for the discontinuance and removal of any violation of section 91.1.114.1. The responsibility under this section shall include property leased to another person. A property owner shall also be responsible for the discontinuing and removing any violation of section 91.1.114.1 that existed on the property at the time the current owner purchased the property.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.114.3. PUBLIC NUISANCE ABATEMENT.

Because any violation of this code is a public nuisance, the County Counsel or District Attorney is authorized, when requested by the Board or the building official, to commence proceedings to abate, remove and/or enjoin any such public nuisance in the manner provided by law. Alternatively, the building official may commence abatement proceedings as provided by the Public Nuisance Abatement Procedure in sections 16.201 et seq. of this code or any other procedure allowed by law. Any failure, refusal or neglect to obtain a permit required by this chapter shall be prima facie evidence of the fact that the person responsible to obtain the permit has committed a violation of section 91.1.114.1 and is causing a public nuisance.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.114.4. CITATION AUTHORITY.

Pursuant to Penal Code section 836.5, the building official may arrest a person without a warrant whenever the building official has reasonable cause to believe that the person arrested has violated this chapter. The person making an arrest under the authority of this section shall follow the citation-release procedures prescribed by the Penal Code or any procedure enacted by the State of California after the effective date of this section. No person shall exercise the power to issue a citation authorized by this section unless the person has completed a course of training that meets the minimum standards prescribed by the Commission on Peace Officer Standards and Training established in Penal Code section 832(a).

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.114.5. REFUSAL TO ISSUE OR SUSPENSION OF BUILDING PERMIT.

The building official may refuse to issue or suspend any building permit, including a plumbing, electrical, mechanical or structural permit, if the building official determines that there is a violation of this chapter or any other ordinance or regulation involving the property upon which the permit was applied for or was issued. The building official shall provide written notice of the suspension or refusal to issue to the permit holder or applicant, as the case may be. The written notice shall identify any violation being committed and the action necessary to correct each violation. The building official shall rescind the suspension or refusal to issue a permit upon submission of evidence satisfactory to the building official that each violation has been corrected. While a permit is suspended under this section it shall be unlawful to perform any work of any kind on the project. Each day a person continues to work on the project after a permit has been suspended under this section is a separate offense.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.114.6. APPROVAL REQUIRED AFTER VIOLATION.

(a) It shall be unlawful for a person to occupy, use or maintain a building or structure until all inspections and approvals required by this chapter have been completed. When a person who commences work without a permit in violation of this chapter is issued a permit to correct the violation, the violation is not considered corrected until the building official has inspected and approved the work commenced and issued a certificate of occupancy.

(b) It shall be unlawful for a person to fail to obtain a building permit within 180 days of the date their application for a building permit is submitted, or within an alternate timeframe issued at the discretion of the Building Official, if that person had previously commenced work without a permit in violation of this chapter. The building official may grant a one-time permit extension under this section for up to one year for good cause.

(c) It shall be unlawful for a person to fail to obtain a certificate of occupancy within 180 days of the date of issuance of a building permit, or within an alternate timeframe issued at the discretion of the Building Official, if that person had previously commenced work without a permit in violation of this chapter.

(d) It shall be unlawful for a person to fail to obtain an inspection once every 90 days after the issuance of a building permit until the Certificate of Occupancy is issued, if that person had previously commenced work without a permit in violation of this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; amended by Ord. No. 10211 (N.S.), effective 6-1-12; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.115.1. STOP WORK ORDER.

Whenever the building official finds any work regulated by this chapter being performed in a manner either contrary to the provisions of this chapter or dangerous or unsafe, the building official may issue a stop work order.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.115.2. EFFECT OF STOP WORK ORDER.

The stop work order shall be in writing and shall be given to the owner of the property involved, the owner's agent or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order, and the conditions under which the cited work will be allowed to resume.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.115.3. UNLAWFUL TO CONTINUE AFTER STOP WORK ORDER ISSUED.

It shall be unlawful for any person to continue to work on a project after having been served with a stop work order, except work that the building official directs a person to perform to remove a violation or unsafe condition.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.116.1. UNSAFE BUILDINGS OR STRUCTURES.

A building, structure, or electrical installation that is or becomes unsafe, unsanitary or deficient because of inadequate means of egress facilities, inadequate light and ventilation or which constitute a fire hazard, or are otherwise dangerous to human life or the public welfare, or that involve illegal or improper occupancy or inadequate maintenance, shall be deemed an unsafe condition. Unsafe structures shall be taken down and removed or made safe, as the building official deems necessary and as provided for in this section. A vacant building or structure that is not secured against entry shall be deemed unsafe.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.116.2. REPORT OF UNSAFE CONDITION.

When the building official determines a building or structure is unsafe, the building official shall prepare a report of the unsafe condition that shall state the occupancy of the building or structure and the nature of the unsafe condition.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.116.3. NOTICE OF UNSAFE CONDITION.

When the building official determines that a building or structure is in an unsafe condition, the building official shall serve the owner, the owner's agent or the person in control of the building or structure with a written notice that describes the condition deemed unsafe. The notice shall order the owner, agent or person in control by a specific date to: (a) make specific repairs or improvements to abate the unsafe condition or (b) demolish the unsafe building or structure. The notice shall require the person notified to respond to the building official in writing within 10 days from the date the notice was served and advise the building official whether the recipient of the notice will comply with the order. If the recipient fails to respond within the 10 days, the building official may treat the failure to respond as a refusal. In the event the person notified refuses to comply with the order, the building official may pursue any available legal remedy.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.116.4. SERVICE OF THE NOTICE OF UNSAFE CONDITION.

The building official shall service the notice of unsafe condition on the owner, owner's agent or person in control of the building or structure as provided by section 11.112 of this code. Service of the notice on the owner's agent or the person responsible for the structure shall constitute service of notice on the owner.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.116.5. RESTORATION OF THE BUILDING OR STRUCTURE.

When a building or structure the building official determined to be unsafe is capable of being restored, the building official may allow it to be restored to a safe condition. To the extent that repairs, alterations or additions are made or a change of occupancy occurs during the restoration of the structure, the repairs, alterations, additions or change of occupancy shall comply with the requirements this chapter and the California Existing Building Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 91.1.117. JUDICIAL CIVIL PENALTIES.

As part of a civil action filed by the County to enforce provisions of this Code, a court may assess a maximum civil penalty of \$2500 per violation for each day during which any violation of any provision of this Code is committed, continued, permitted or maintained by such person(s). As part of a civil action, a court may also enjoin a person from violating any provision of this Code and assess a maximum civil penalty of \$6000 for each day any person intentionally violates the injunction.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

DIVISION 2. COUNTY BUILDING CODE

CHAPTER 1. COUNTY ADOPTION OF THE CALIFORNIA BUILDING CODE WITH COUNTY AMENDMENTS

SEC. 92.1.001. ADOPTION OF COUNTY AMENDMENTS TO THE BUILDING CODE PORTION OF THE CALIFORNIA BUILDING STANDARDS CODE.

Every three years the State of California adopts a new California Building Code, as part of the California Building Standards Code (CBSC). Under Health and Safety Code section 17958, the CBSC becomes effective as to the County of San Diego 180 days after publication by the California Building Standards Commission. Pursuant to Health and Safety Code sections 17958.5 and 17958.7, a county may adopt modifications or changes to the CBSC that are reasonably necessary because of local climatic, geological and topographical conditions.

This chapter adopts as the County Building Code, for the unincorporated area of the County, the 2024 International Building Code (IBC), 2025 California Building Code portion of CBSC and the County of San Diego's modifications, additions and deletions contained in this chapter that are reasonably necessary because of local climatic, geological, or topographical conditions. To determine which of these codes governs in any particular case, code amendments adopted by the State of California shall take precedence over the 2024 IBC and the 2024 IBC shall be used for those code sections not adopted by the State. Amendments the County adopts shall take precedence over both the 2024 IBC and 2025 CBSC provisions. Title 9, Division 1, Chapter 1 of the County of San Diego Code of Regulatory Ordinances, which contains provisions for administration and enforcement of this chapter and other construction codes, shall also be considered a part of the County Building Code.

This chapter is adopted for the protection of the public health and safety. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including their inspection and provides penalties for violation of this chapter. This chapter shall apply to all new construction and to any alterations, repairs, or reconstruction, except as provided for otherwise in this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.002. CALIFORNIA BUILDING CODE.

As used in this chapter the "California Building Code" means Title 24, Part 2 of the California Code of Regulations which incorporates, by adoption, the 2024 edition of the IBC with California amendments.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.003. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California Building Code, the digits following the first three digits of the section numbers in this chapter refer to the numbering system of the California Building Code: e.g., SEC. 92.1.1505.1 refers to section 1505.1 of the California Building Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.1505. FIRE CLASSIFICATION.

Section 1505 of the California Building Code is revised to read:

SECTION 1505

FIRE CLASSIFICATION

Sec. 1505.1 General. The roof covering for every new structure and addition to an existing structure shall be fire-retardant, that is at least Class A rated in accordance with ASTM E 108 or UL 790. A construction project for an addition to an existing structure, or the alteration, repair, recover, or partial replacement of an existing roof, that involves more than 50 percent of the roof area of the existing structure or 2,500 square feet, whichever is less, within any one year period, shall require that the entire structure's roof covering complies with this section. For the purposes of this section, gambrel roofs, mansard roofs and other similar roof configurations shall be considered roofs regardless of the steepness of the roof pitch.

Exceptions:

1. The roof covering of a building not classified as an R-3 or U occupancy may have a minimum Class B rating when not located in a wildland-urban interface fire area.

2. On a qualified historical building a wood roof covering may be repaired or reconstructed as allowed by the State Historical Building Code.

Sec. 1505.1.1 Roofing requirements in a wildland-urban interface fire area. A roof for a structure located in a wildland-urban interface fire area shall also comply with the California Wildland-Urban Interface Code.

Sec. 1505.2 Roof assembly listing. Roof assemblies and their respective fire ratings shall be listed and bear the label of an approved testing agency.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.3109.3. SWIMMING POOL CONSTRUCTION PERMIT; SAFETY FEATURES REQUIRED.

Sec. 3109.3 is added to the California Building Code to read:

Sec. 3109.3 Swimming pool construction permit; safety features required. Commencing January 1, 1998, whenever a construction permit is issued for construction of a new swimming pool at a private, single-family home or duplex, the swimming pool shall be separated from neighboring properties by a permanent enclosure that meets the requirements of section 3109.4. Additionally the pool shall be equipped with the safety features required by section 3109.2, with at least one of the safety features also complying with one of the following:

1. The pool shall be isolated from access to a home and other habitable buildings on the lot by an enclosure that meets the requirements of section 3109.4.
2. The pool shall be equipped with an electrically operated approved safety pool cover meeting ASTM F 1346 that can be opened or closed with a single switch. The switch shall be placed at least 54 inches above the ground.
3. The residence shall be equipped with an exit alarm on each door providing direct access to the pool. The alarm shall sound continuously for a minimum of 30 seconds, within seven seconds after the door and its screen, if present, are opened, and be capable of providing a sound pressure level of not less than 85 B when measured indoors at a distance of 10 feet from the alarm. The alarm shall automatically reset under all conditions. The alarm system shall be equipped with a manual means, such as a touchpad or switch, placed no lower than 54 inches above the floor, to temporarily deactivate the alarm for a single opening, but the alarm shall not be equipped with an on/off switch. The deactivation shall be for no more than 15 seconds.
4. All doors providing direct access from the home to the swimming pool shall be equipped with a self-closing, self-latching device with a release mechanism placed no lower than 54 inches above the floor. The home shall also have a minimum of one exit door that does not provide direct access to the swimming pool and that complies with exit door regulations of the County Building Code.
5. Other means of protection, if the degree of protection afforded is equal to or greater than that afforded by any of the devices set forth in Items 1-4 above, as determined by the building official. Any ordinance governing child access to pools adopted by the County on or before January 1, 1997, is presumed to afford protection that is equal to or greater than that afforded by any of the safety features listed in Items 1-4.

Exception: On a lot or parcel having a net area of three acres or greater, a swimming pool enclosure that separates the pool from neighboring properties is not required when the minimum distance from the closest edge of the pool, measured directly to the nearest property line, is at least 100 feet.

Exception: The enclosure and safety feature requirements of this chapter do not apply to a self-contained hot tub or spa equipped with a locking safety cover listed to ASTM F 1346.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.3109.4.4.3. ENCLOSURE; REQUIRED CHARACTERISTICS.

Sec. 3109.4. is added to the California Building Code to read:

Sec. 3109.4. Enclosure; required characteristics. An enclosure shall have all of the following characteristics:

1. Any pedestrian access gates through the enclosure open away from the swimming pool and are self-closing with a self-latching device. Where the release mechanism of the self-latching device is located less than 54 inches from the bottom of the gate, the release mechanism shall be located on the pool side of the enclosure at least three inches below the top of the gate and the gate and enclosure shall have no opening greater than 1/2 inch within 18 inches of the release mechanism. Any gates other than pedestrian access gates shall be equipped with lockable hardware or padlocks and shall remain locked at all times when not in use.
2. A minimum height of 60 inches measured on the side of the enclosure that faces away from the swimming pool.
3. A maximum vertical clearance from the ground to the bottom of the enclosure of 2 inches. The maximum vertical clearance at the bottom of the enclosure may be increased to four inches when the grade is a solid surface such as a concrete deck or when the enclosure is mounted on the top of an above-ground pool structure.
4. Gaps or voids, if any, do not allow passage of a sphere equal to or greater than 1-3/4 inches in diameter. For fencing composed of vertical and horizontal members, the spacing between vertical members may be increased up to four inches when the distance between the tops of horizontal members is 45 inches or more.
5. An outside surface free of protrusions, cavities or other physical characteristics that would serve as handholds or

footholds that could enable a child below the age of five years to climb over.

6. Chain link fences used to separate the swimming pool from neighboring properties shall not be less than 11.5 gauge and the mesh size shall not be larger than 2-1/4-inch square. Chain link fences used to separate the swimming pool from the home shall not be less than 11.5 gauge and the mesh size shall not be larger than 1-3/4-inch square.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.3109.5. BARRIERS AND SAFETY FEATURES FOR EXISTING SWIMMING POOLS.

Sec. 3109.5 is added to the California Building Code to read:

Sec. 3109.5 Barriers and safety features for existing swimming pools.When a swimming pool was constructed or enlarged on or after July 29, 1977, the property owner shall maintain the safety features required by the code in effect at the time of construction. A swimming pool on any lot or parcel having a net area of less than one acre and constructed or enlarged between July 29, 1977, and April 17, 1996, shall have a barrier that meets the following minimum standards:

(a) A non-climbable fence or other structure having a minimum height of five feet measured from the exterior grade with no horizontal openings greater than five inches.

(b) All gates must be self-closing and self-latching, with latches placed at least four feet six inches above the grade

When an existing swimming pool is remodeled, enlarged, or modified it must have barriers and safety features installed in compliance with this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.3120. SOLAR- AND ELECTRIC VEHICLE-CAPABLE BUILDINGS.

Sec. 3120 is added to the California Building Code to read:

Sec. 3120.1 Solar zones. Newly constructed single-family dwelling units shall include solar zone area as specified in Sections 110.10(b)1A, 110.10(b)2, 110.10(b)3, and 110.10(b)4 of the California Building Energy Efficiency Standards.

Sec. 3120.2 Main electrical service panel. Newly constructed single-family dwelling units shall include a main electrical service panel meeting Sections 3120.2.1 through 3120.2.3.

Sec. 3120.2.1 Minimum rating. The main electrical service panel shall have a minimum rating of 200 amps.

Sec. 3120.2.2 Type. The main electrical service panel shall not be of a type with a center-fed main circuit breaker.

Sec. 3120.2.3 Reserved space for future solar photovoltaic system. The main electrical service panel shall have reserved space complying with Sections 3120.2.3.1 and 3120.2.3.2 to allow for the installation of double-pole circuit breakers for a future solar photovoltaic system.

Sec. 3120.2.3.1 Location. The reserved space for the solar photovoltaic circuit breaker shall be positioned at the opposite (load) end from the input feeder or main circuit breaker location.

Sec. 3120.2.3.2 Identification. The reserved space for the solar photovoltaic circuit breaker shall be permanently and visibly marked as "For Future Solar Photovoltaic."

Sec. 3120.2.4 Reserved space for future electric vehicle charging system. The main electrical service panel shall have reserved space to allow for the installation of a circuit breaker for a future electric vehicle charging system.

Sec. 3120.2.4.1 Identification. The reserved space for the electric vehicle charging circuit breaker shall be permanently and visibly marked as "EV Capable."

Sec. 3120.3 Conduit for future solar photovoltaic system. Newly constructed single-family dwelling units shall include electrical conduit installed per Sections 3120.3.1 through 3120.3.3 to accommodate future installation of a roof-mounted solar photovoltaic system.

Sec. 3120.3.1 Location. One conduit run shall originate at a readily accessible attic location with proximity to solar zone area complying with Section 3120.1 and terminate at a minimum 4-inch-square approved electrical junction box located within 72 inches horizontally and 12 inches vertically of a main electrical panel complying with Section 3120.2. A second conduit run shall originate at the electrical junction box and terminate at the main electrical panel.

Sec. 3120.3.2 Size. The conduit shall be minimum 1-inch-diameter listed electrical metallic raceway.

Sec. 3120.3.3 Identification. The electrical junction box and the segment of conduit run in the attic shall be permanently and visibly marked as "For Future Solar Photovoltaic."

Sec. 3120.4 Conduit for future electric vehicle charging system. Newly constructed garages with electrical service

shall include electrical conduit installed per Sections 3120.4.1 through 3120.4.3 to accommodate future installation of an electric vehicle charging system.

Exception: Newly constructed garages on lots with an existing garage including either an electric vehicle charging system or electrical conduit installed per Sections 3120.4.1 through 3120.4.3 to accommodate future installation of an electric vehicle charging system.

Sec. 3120.4.1 Location. The conduit run shall originate at a main electrical panel complying with Section 3120.2 and terminate at a minimum 4-inch-square approved electrical junction box located on the interior of the garage at minimum 30 inches and maximum 48 inches above the garage floor.

Sec. 3120.4.2 Size. The conduit shall be minimum 1-inch-diameter listed electrical metallic raceway.

Sec. 3120.4.3 Identification. The electrical junction box shall be permanently and visibly marked as "For Future Electric Vehicle Charging."

(Added by Ord. No. 10380 (N.S.), effective 5-8-15, operative 7-1-15; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.3410. MOVED STRUCTURES.

Section 3410 is added to the California Building Code to read:

SECTION 3410

MOVED STRUCTURES

Sec. 3410.1 Conformance. Structures moved into or within the County shall comply with the provisions of this chapter for new structures.

Exception: Moved residential buildings shall be allowed to retain their existing materials and methods of construction provided these buildings comply with the rules and regulations of the California Department of Housing and Community Development, are not substandard buildings and their foundations comply with the standards for new construction. An addition which increases the area, volume or size of a moved building shall comply with the requirements of this code for a new building.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.APPI. APPENDIX I.

Appendix I of the California Building Code is adopted and revised in its entirety to read:

APPENDIX I

PATIO COVERS

SECTION APPI 101

GENERAL

APPI 101.1 Scope. Patio covers shall conform to the requirements of this appendix chapter.

APPI101.2 Allowed uses. Patio covers may be detached from or attached to dwelling units. Patio covers shall be used only for recreational, outdoor living purposes, and not as carports, garages, storage rooms or habitable rooms.

SECTION APPI 102

DEFINITION

PATIO COVER. A structure with open walls that is used for recreational, outdoor living purposes associated with a dwelling unit.

SECTION APPI 103

OPENINGS

APPI103.1 Required openings. Patio covers shall include openings on the longest exterior side and at least one additional exterior side. The openings on each qualifying side shall be at least 65 percent of the area of that side measured from the floor to minimum 6 feet 8 inches above the floor. Solid exterior walls located below required patio cover openings shall be maximum 2 feet 6 inches above the floor.

Exception: A patio cover with one fully open exterior side shall be allowed if the width-to-depth ratio of the patio cover is at least 2-to-1.

APPI103.2 Allowable opening enclosures. Required patio cover openings may be enclosed with insect screening or approved translucent or transparent plastic not more than 0.125 inch in thickness.

APPI103.3 Light, ventilation and emergency egress. Exterior building openings required for light or ventilation may open into a patio cover conforming to this appendix chapter. Exterior building openings serving as emergency egress or rescue openings from sleeping rooms or basements may open to a patio cover only if all open sides required by RAPPH103.1 are fully unenclosed.

SECTION APPI104

HEIGHT

APPI104.1 Height. Patio covers are limited to one-story structures not exceeding 12 feet in height.

SECTION APPI105

STRUCTURAL PROVISIONS

APPI105.1 Design loads. Patio covers shall be designed and constructed to sustain, within the stress limits of this code, all dead loads plus a minimum vertical live load of 20 pounds per square foot. Patio covers shall be designed to the wind and seismic criteria specified in Table R301.2(1).

APPI105.2 Footings. Patio covers shall be allowed to be supported on a slab-on-grade without footings, provided the slab conforms to the provisions of Section R506 of this code, is not less than 3.5 inches thick, any columns do not support live and dead loads in excess of 750 pounds per column, and any bearing walls do not support live and dead loads in excess of 100 pounds per foot.

(Adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.1.APPQ. APPENDIX Q.

Appendix Q of the California Building Code is adopted in its entirety as part of the County Building Code.

APPENDIX Q

EMERGENCY HOUSING

APPQ 101.1 Scope. This appendix shall be applicable to emergency housing and emergency housing facilities, as defined in Section Q102.

(Adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

CHAPTER 2. COUNTY ADOPTION OF THE CALIFORNIA RESIDENTIAL CODE WITH COUNTY AMENDMENTS

SEC. 92.2.001. ADOPTION OF COUNTY AMENDMENTS TO THE RESIDENTIAL CODE PORTION OF THE CALIFORNIA BUILDING STANDARDS CODE.

Every three years the State of California adopts a new California Building Code, as part of the California Building Standards Code (CBSC). Under Health and Safety Code section 17958, the CBSC becomes effective as to the County of San Diego 180 days after publication by the California Building Standards Commission. Pursuant to Health and Safety Code sections 17958.5 and 17958.7, a county may adopt modifications or changes to the CBSC that are reasonably necessary because of local climatic, geological and topographical conditions.

This chapter adopts as the County Residential Code, for the unincorporated area of the County, the 2024 International Residential Code (IRC), 2025 California Residential Code portion of CBSC and the County of San Diego's modifications, additions and deletions contained in this chapter that are reasonably necessary because of local climatic, geological, or topographical conditions. To determine which of these codes governs in any particular case, code amendments adopted by the State of California shall take precedence over the 2024 IRC and the 2024 IRC shall be used for those code sections not adopted by the State. Amendments the County adopts shall take precedence over both the 2024 IRC and 2025 CBSC provisions. Title 9, Division 1, Chapter 1 of the County of San Diego Code of Regulatory Ordinances, which contains provisions for administration and enforcement of this chapter and other construction codes, shall also be considered a part of the County Residential Code.

This chapter is adopted for the protection of the public health and safety. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including their inspection and provides penalties for violation of this chapter. This chapter shall apply to all new construction and to any alterations, repairs, or reconstruction, except as provided for otherwise in this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.002. CALIFORNIA RESIDENTIAL CODE.

As used in this chapter the "California Residential Code" means Title 24, Part 2.5 of the California Code of Regulations which incorporates, by adoption, the 2024 edition of the IRC with California Amendments.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.003. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California Residential Code, the digits following the first three digits of the section numbers in this chapter refer to the numbering system of the California Building Code: e.g., SEC. 92.2.R311.1 refers to section R311.1 of the California Residential Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.004. ADOPTION OF ADMINISTRATION PROVISIONS.

Title 9, Division 1, Chapter 1 of the County Code shall be used to administer the County Residential Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.005. SCOPE.

The County Residential Code shall apply to detached one- and two-family dwellings and townhouses not more than three stories above grade plane in height with a separate means of egress and their accessory structures.

Exception: Live/work units complying with the requirements of Section 419 of the County Building Code shall be allowed to be built as one- and two-family dwellings or townhouses. Fire suppression required by Section 419.5 shall conform to the County Fire Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.006. APPENDICES.

Provisions in the appendices shall not apply unless specifically adopted by the County or State.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R301.2. CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA.

Table R301.2 of the California Residential Code is revised to read:

TABLE R301.2
CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA

GROUND SNOW LOAD	WIND DESIGN				
	Ultimate design wind speed (mph)	Exposure	Topographic effects	Special wind region	Windborne debris zone
Per County of San Diego guidance documents	110	C	No	No	No

SEISMIC DESIGN CATEGORY
Per USGS ground motion parameter calculator

SUBJECT TO DAMAGE FROM		
Weathering	Frost line depth	Termite
Negligible	Minimum 12-inch footing depth	Per CRC R318

FLOOD HAZARDS
Per County Code, Title 8, Division 11

AIR FREEZING INDEX	MEAN ANNUAL TEMP
1500 or less	Varies - See the National Climatic Data Center

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R302.6. DWELLING-GARAGE AND/OR CARPORT FIRE SEPARATION.

Table R302.6 of the California Residential Code is revised to read:

TABLE R302.6 DWELLING-GARAGE AND/OR CARPORT SEPARATION

SEPARATION	MATERIAL
From the residence and its attics	Not less than 1/2-inch gypsum board or equivalent applied to the garage side
From all habitable rooms above the garage or carport	Not less than 5/8-inch Type X gypsum board or equivalent
Structure(s) supporting floor/ceiling assemblies used for separation required by this section	Not less than 1/2-inch gypsum board or equivalent
Garages located less than 6 feet from a dwelling unit on the same lot, with the clearance measured as the smallest horizontal dimension between elements of each structure	Not less than 1/2-inch gypsum board or equivalent applied to the interior side of exterior walls that are within this area

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R309.6. FIRE SPRINKLERS.

Sec. R309.6 of the California Residential Code is revised to read:

Sec. R309.6 Fire sprinklers. Carports with habitable space above and attached garages shall be protected by a residential fire sprinkler system in accordance with the County Consolidated Fire Code. For the purposes of this section, an attached garage is defined as any garage requiring fire separation from an adjoining or adjacent dwelling on the same lot per Table R302.6. Residential fire sprinklers shall be connected to, and installed in accordance with, a fire sprinkler system that complies with Section R313 or NFPA 13D. Fire sprinklers shall be residential sprinklers or quick-response sprinklers, designed to provide a minimum density of 0.05 gpm/square foot over the area of the garage and/or carport, but not to exceed two sprinklers for hydraulic calculation purposes. Garage doors shall not be considered obstructions with respect to sprinkler placement.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R313. AUTOMATIC FIRE SPRINKLER SYSTEMS.

Sec. R313 of the California Residential Code is revised to read:

SECTION R313

AUTOMATIC FIRE SPRINKLER SYSTEMS

Sec. R313 Automatic fire sprinkler systems. An automatic residential fire sprinkler system shall be installed as required in the County Consolidated Fire Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R318.1. MEANS OF EGRESS.

Sec. R318.1 of the California Residential Code is revised to read:

Sec. R318.1 Means of egress. All dwellings and accessory structures shall be provided with means of egress comprising a continuous and unobstructed path of vertical and horizontal egress travel complying with Section R318 from all portions of the dwelling or accessory structure to the exterior. The means of egress from any portion of a dwelling shall not require travel through a garage. The means of egress from all dwellings and accessory structures shall open directly to a public way or to a yard or court that opens to a public way.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R318.2. DOORS.

Sec. R318.2 of the California Residential Code is revised to read:

Sec. R318.2 Doors. Doors serving occupiable spaces within dwelling units and accessory structures shall meet all of the following criteria:

1. Side-hinged swinging;

Exceptions:

1. Horizontal sliding doors are allowed for exterior doors not required for egress and interior doors.
2. Private garages may use overhead vehicle doors as the only exit.
2. Minimum clear width of 32 inches when measured between the face of the door and the stop, with the door open 90 degrees;

Exception: The minimum width requirement shall not apply to exterior doors not required for egress and interior doors

3. Minimum clear height of 78 inches when measured between the top of the threshold and the bottom of the stop; and
4. Readily openable without the use of a key or special knowledge or effort.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R318.3. FLOORS AND LANDINGS AT DOORS.

Sec. R318.3 of the California Residential Code is revised to read:

Sec. R318.3 Floors and landings at doors. There shall be a landing or floor on each side of each door. The width of each landing shall not be less than the door served. Every landing shall have a minimum dimension of 36 inches measured in the direction of travel. Exterior landings shall be permitted to have a slope not to exceed 1/4 unit vertical in 12 units horizontal (2-percent).

Exceptions:

1. A floor or landing is not required at the top of an interior flight of stairs, including stairs in an enclosed garage, provided a door does not swing over the stairs.
2. Exterior balconies less than 60 square feet and only accessible from a door are permitted to have a landing less than 36 inches measured in the direction of travel.

Sec. R318.3.1 Floor elevations at doors. Landings or floors at doors shall not be more than 1-1/2 inches lower than the top of the threshold.

Exception: A landing or floor shall not be more than 7-3/4 inches below the top of the threshold provided the door does

not swing over the landing or floor.

When exterior landings or floors serving a required means of egress are not at grade, such landings or floors shall be provided with access to grade by means of one or more ramps in accordance with Section R318.8 or one or more stairways in accordance with Section R318.7.

Sec. R318.3.2 Storm and screen doors. Storm and screen doors shall be permitted to swing over all exterior stairs and landings.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R318.4. VERTICAL EGRESS.

Sec. R318.4 of the California Residential Code is revised to read:

Sec. R318.4 Vertical egress. Egress from occupiable levels without a grade-level exterior door complying with Section R318.2 and Section R318.3 shall be by one or more ramps in accordance with Section R318.8 or one or more stairways in accordance with Section R318.7 or both. For occupiable levels located more than one story above or more than one story below a grade-level exterior egress door, the maximum travel distance from any occupied point to a stairway or ramp that provides egress from such level shall not exceed 50 feet.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R325.8. REQUIRED HEATING.

Section R325.8 of the California Residential Code is revised to read:

Sec. R325.8 Required heating. Every dwelling unit shall be provided with heating facilities capable of maintaining a minimum room temperature of 68°F at a point 3 feet above the floor and 2 feet from exterior walls in all habitable rooms at the design temperature. The installation of one or more portable space heaters shall not be used to achieve compliance with this section.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R332. SOLAR- AND ELECTRIC VEHICLE-READY BUILDINGS.

Section R332 is added to the California Residential Code to read:

SECTION R332

SOLAR- AND ELECTRIC VEHICLE- CAPABLE BUILDINGS

Sec. R332 Solar- and electric vehicle- capable buildings. Solar- and electric vehicle-capable construction shall be provided as specified in Section 92.1.3120 of the County Building Code.

(Added by Ord. No. 10380 (N.S.), effective 5-8-15, operative 7-1-15; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.R902. ROOF CLASSIFICATION.

Sec. R902 of the California Residential Code is revised in its entirety to read:

SECTION R902

ROOF CLASSIFICATION

Sec. R902 Roof classification. Roofing shall be as provided in section 92.1.705A and 92.1.1505 of the County Building Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.RAPPBB. APPENDIX BB.

Appendix BB of the California Residential Code is adopted in its entirety as part of the County Residential Code.

APPENDIX BB

TINY HOUSES

RAPPBB 101.1 Scope. This appendix shall be applicable to tiny houses used as single dwelling units. Tiny houses shall comply with this code except as otherwise stated in this appendix.

(Adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.RAPPBF. APPENDIX BF.

Appendix BF of the California Residential Code is adopted and revised in its entirety to read:

APPENDIX BF

PATIO COVERS

RAPPBF 101.1 Patio covers. Patio covers shall conform to the requirements of Appendix I of the County Building Code.

(Adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 92.2.RAPPBJ. APPENDIX BJ.

Appendix BJ of the California Residential Code is adopted in its entirety as part of the County Residential Code.

APPENDIX BJ

STRAWBALE CONSTRUCTION

RAPPBJ 101.1 Scope. This appendix provides prescriptive and performance-based requirements for the use of baled straw as a building material. Other methods of strawbale construction shall be subject to approval in accordance with section 92.1.104.11 of the County Building Code. Buildings using strawbale walls shall comply with this code except as otherwise stated in this appendix.

(Adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

DIVISION 3. COUNTY ELECTRICAL CODE

CHAPTER 1. COUNTY ADOPTION OF THE CALIFORNIA ELECTRICAL CODE WITH COUNTY AMENDMENTS

SEC. 93.1.001. ADOPTION OF COUNTY AMENDMENTS TO THE ELECTRICAL CODE PORTION OF THE CALIFORNIA BUILDING STANDARDS CODE.

Every three years the State of California adopts a new California Electrical Code, as part of the California Building Standards Code (CBSC). Under Health and Safety Code section 17958, the CBSC becomes effective as to the County of San Diego 180 days after publication by the California Building Standards Commission. Pursuant to Health and Safety Code sections 17958.5 and 17958.7, a county may adopt modifications or changes to the CBSC that are reasonably necessary because of local climatic, geological and topographical conditions.

This chapter adopts as the County Electrical Code, for the unincorporated area of the County, the 2023 National Electrical Code (NEC), 2025 California Electrical Code portion of CBSC and the County of San Diego's modifications, additions and deletions contained in this chapter that are reasonably necessary because of local climatic, geological, or topographical conditions. To determine which of these codes governs in any particular case, code amendments adopted by the State of California shall take precedence over the 2023 NEC and the 2023 NEC shall be used for those code sections not adopted by the State. Amendments the County adopts shall take precedence over both the 2023 NEC and 2025 CBSC provisions. Title 9, Division 1, Chapter 1 of the County of San Diego Code of Regulatory Ordinances, which contains provisions for administration and enforcement of this chapter and other construction codes, shall also be considered a part of the County Electrical Code.

This chapter is adopted for the protection of the public health and safety. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including their inspection and provides penalties for violation of this chapter. This chapter shall apply to all new construction and to any alterations, repairs, or reconstruction, except as provided for otherwise in this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 93.1.002. CALIFORNIA ELECTRICAL CODE.

As used in this chapter the "California Electrical Code" means Title 24, Part 3 of the California Code of Regulations which incorporates, by adoption, the 2023 edition of the NEC with California Amendments.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 93.1.003. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California Electrical Code, the digits following the first three digits of the section numbers in this chapter refer to the numbering system of the California Electrical Code: e.g., SEC. 93.1.103.1.4 refers to section 103.1.4 of the California Electrical Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

DIVISION 4. COUNTY PLUMBING CODE

CHAPTER 1. COUNTY ADOPTION OF THE CALIFORNIA PLUMBING CODE WITH COUNTY AMENDMENTS

SEC. 94.1.001. ADOPTION OF COUNTY AMENDMENTS TO THE PLUMBING CODE PORTION OF THE CALIFORNIA BUILDING STANDARDS CODE.

Every three years the State of California adopts a new California Plumbing Code, as part of the California Building Standards Code (CBSC). Under Health and Safety Code section 17958, the CBSC becomes effective as to the County of San Diego 180 days after publication by the California Building Standards Commission. Pursuant to Health and Safety Code sections 17958.5 and 17958.7, a county may adopt modifications or changes to the CBSC that are reasonably necessary because of local climatic, geological and topographical conditions.

This chapter adopts as the County Plumbing Code, for the unincorporated area of the County, the 2024 Uniform Plumbing Code (UPC), 2025 California Plumbing Code portion of CBSC and the County of San Diego's modifications, additions and deletions contained in this chapter that are reasonably necessary because of local climatic, geological, or topographical conditions. To determine which of these codes governs in any particular case, code amendments adopted by the State of California shall take precedence over the 2024 UPC and the 2024 UPC shall be used for those code sections not adopted by the State. Amendments the County adopts shall take precedence over both the 2024 UPC and 2025 CBSC provisions. Title 9, Division 1, Chapter 1 of the County of San Diego Code of Regulatory Ordinances, which contains provisions for administration and enforcement of this chapter and other construction codes, shall also be considered a part of the County Plumbing Code.

This chapter is adopted for the protection of the public health and safety. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including their inspection and provides penalties for violation of this chapter. This chapter shall apply to all new construction and to any alterations, repairs, or reconstruction, except as provided for otherwise in this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 94.1.002. CALIFORNIA PLUMBING CODE.

As used in this chapter the "California Plumbing Code" means Title 24, Part 5 of the California Code of Regulations which incorporates, by adoption, the 2024 edition of the UPC with California Amendments.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 94.1.003. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California Plumbing Code, the digits following the first three digits of the section numbers in this chapter refer to the numbering system of the California Plumbing Code: e.g., SEC. 94.1.713.0 refers to section 713.0 of the California Plumbing Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 94.1.004. ADOPTION OF THE APPENDICES A, B, D AND I OF THE CALIFORNIA PLUMBING CODE.

Appendices A, B, D and I of the California Plumbing Code are adopted in their entirety as part of the County Plumbing Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 94.1.713.0. SEWER REQUIRED.

Section 713 of the California Plumbing Code is revised to read:

Sec. 713.0 Sewer required.

Sec. 713.1 Sewer connection required. Every building in which plumbing fixtures are installed shall have a connection to a public sewer except as provided in section 713.2.

Sec. 713.2 On-site wastewater treatment system. When a public sewer is not available for use, drainage piping from buildings and premises shall be connected to an approved on-site wastewater treatment system.

Sec. 713.3 Graywater system. The Director of the Department of Environmental Health may issue a permit for the installation and operation of a graywater system in the unincorporated area of the County that complies with Chapter 16A of the County Plumbing Code and sections 68.301 et seq. relating to on-site wastewater treatment systems. All plumbing and drainage for a building up to and including the point of connection with any component of the graywater system shall comply with this chapter and shall be subject to inspection and approval by the building official.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; amended by Ord. No. 10709 (N.S.), effective 1-15-21; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; amended by Ord. No. 10966 (N.S.), effective 12-18-25; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

DIVISION 5. COUNTY MECHANICAL CODE

CHAPTER 1. COUNTY ADOPTION OF THE CALIFORNIA MECHANICAL CODE WITH COUNTY AMENDMENTS

SEC. 95.1.001. ADOPTION OF COUNTY AMENDMENTS TO THE MECHANICAL CODE PORTION OF THE CALIFORNIA BUILDING STANDARDS CODE.

Every three years the State of California adopts a new California Mechanical Code, as part of the California Building Standards Code (CBSC). Under Health and Safety Code section 17958, the CBSC becomes effective as to the County of San Diego 180 days after publication by the California Building Standards Commission. Pursuant to Health and Safety Code sections 17958.5 and 17958.7, a county may adopt modifications or changes to the CBSC that are reasonably necessary because of local climatic, geological and topographical conditions.

This chapter adopts as the County Mechanical Code, for the unincorporated area of the County, the 2024 Uniform Mechanical Code (UMC), 2025 California Mechanical Code portion of CBSC and the County of San Diego's modifications, additions and deletions contained in this chapter that are reasonably necessary because of local climatic, geological, or

topographical conditions. To determine which of these codes governs in any particular case, code amendments adopted by the State of California shall take precedence over the 2024 UMC and the 2024 UMC shall be used for those code sections not adopted by the State. Amendments the County adopts shall take precedence over both the 2024 UMC and 2025 CBSC provisions. Title 9, Division 1, Chapter 1 of the County of San Diego Code of Regulatory Ordinances, which contains provisions for administration and enforcement of this chapter and other construction codes, shall also be considered a part of the County Mechanical Code.

This chapter is adopted for the protection of the public health and safety. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including their inspection and provides penalties for violation of this chapter. This chapter shall apply to all new construction and to any alterations, repairs, or reconstruction, except as provided for otherwise in this chapter.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 95.1.002. CALIFORNIA MECHANICAL CODE.

As used in this chapter the "California Mechanical Code" means Title 24, Part 4 of the California Code of Regulations which incorporates, by adoption, the 2024 edition of the UMC with California Amendments.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 95.1.003. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California Mechanical Code, the digits following the first three digits of the section numbers in this chapter refer to the numbering system of the California Mechanical Code: e.g., SEC. 95.1.1301.0 refers to section 1301.0 of the California Mechanical Code.

(Added by Ord. No. 10146 (N.S.), effective 5-13-11; repealed and reenacted by Ord. No. 10464 (N.S.), effective 4-14-17; repealed and adopted by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

DIVISION 6. FIRE PROTECTION

CHAPTER 1. COUNTY FIRE CODE

SEC. 96.1.001. ADOPTION OF COUNTY AMENDMENTS TO THE CALIFORNIA FIRE CODE.

Every three years the State of California repeals, revises and republishes the California Building Standards Code ("CBSC") in its entirety and in doing so adopts and publishes amendments to the included California Fire Code (California Code of Regulations, Title 24, Part 9). Pursuant to California Health & Safety Code section 17958, the CBSC and its California Fire Code become effective in the County of San Diego 180 days after publication. California Health and Safety Code sections 17922, 17958, 17958.5 and 17958.7 provide that the County may adopt the California Fire Code by reference as the County's own fire code and make such changes or modifications that the Board of Supervisors expressly finds are reasonably necessary because of local climatic, geological or topographical conditions. In this chapter, the County adopts modifications and changes to the Fire Code portion of the CBSC that are reasonably necessary because of the County's climatic, geological and topographical conditions.

The County adopts as the County Fire Code, for the unincorporated area of the County, the following: (1) The 2025 California Fire Code (CFC) portion of the CBSC, including the appendix to Chapter 4 and appendices B, C, D, H, I & O; (2) the 2024 International Fire Code (IFC) and the National Fire Protection Association Standards 13, 13-R & 13-D, as referenced in Chapter 80 of CFC; and (3) the County's amendments in this chapter.

To determine which of these codes governs in any particular case, code amendments adopted by the State of California shall take precedence over the 2024 IFC, and the 2024 IFC shall be used for those code sections not adopted by the State. Amendments the County adopts shall take precedence over both the 2024 IFC and 2025 California Fire Code provisions. Where this Chapter states that a provision of the California Fire Code is revised, referenced, changed, deleted, added or otherwise modified, that means revised, referenced, changed, deleted, added or otherwise modified as it is incorporated into

this Chapter.

This County Fire Code is adopted for the protection of the public health and safety and applies to both ministerial and discretionary projects. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings, structures and premises, including the installation, alteration or repair of new and existing fire protection systems and their inspection and provides penalties for violation of this code. It shall apply to all new construction and to any alterations, repairs, or reconstruction, except as otherwise provided for in this chapter.

Nothing in this chapter shall interfere with or impede the authority of the final decision maker authorized to approve, conditionally approve or deny discretionary projects.

AMENDMENT TO SECTION 96.1.001

Each of the fire protection districts to which this consolidated fire code applies adopt the following code amendment:

Section 1. That the Board of Directors of the San Diego County Fire Protection District adopts as the Fire Code for the San Diego County the following: the 2025 California Fire Code, including the appendix to Chapter 4 and appendices B, C, D, H, I & O, the 2024 International Fire Code (IFC), and the National Fire Protection Association Standards 13, 13-R & 13-D, as referenced in Chapter 80 of CFC, together with the District's amendments in this ordinance. This Fire Code is adopted for the protection of the public health and safety. It includes definitions, provisions for the safeguarding of life and property from fire and explosion hazards arising from the storage, handling and use of hazardous substances, materials and devices, and from conditions hazardous to life or property in the occupancy of buildings, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including the installation, alteration or repair of new and existing fire protection systems and their inspection and provides penalties for violation of this code. Each and all of the regulations, provisions, penalties, conditions and terms of the (insert fire district's name) Fire Code on file in the office of the (insert fire district's name) are hereby referred to, adopted, and made a part hereof, as if fully set out in this ordinance.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; amended by Ord. No. 10224 (N.S.), effective 10-25-12; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.002. CALIFORNIA FIRE CODE.

The "California Fire Code" means the 2025 Fire Code portion of the CBSC, including the appendix to Chapter 4 and appendices B, C, D, H, I & O and the IFC (2024 edition).

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.003. COUNTY FIRE CODE.

References to "this chapter" shall mean the County Fire Code. References to a section number not preceded by the prefix "96.1," which stands for the title, division and chapter respectively of a section in this chapter, shall refer to the California Fire Code.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.004. RESPONSIBILITY FOR ENFORCEMENT.

(a) The County Fire Warden or authorized representative shall be responsible for ensuring County enforcement of Chapter 56 of the California Fire Code as adopted by and incorporated in the County Fire Code insofar as it pertains to fireworks and pyrotechnics and California Code of Regulations, Title 19, Division 1, Chapter 6. The Sheriff shall be responsible for enforcement of Chapter 56 of the California Fire Code as adopted and incorporated in the County Fire Code insofar as it pertains to explosives and California Code of Regulations, Title 19, Division 1, Chapter 10.

(b) All other portions of the County Fire Code shall be enforced as follows:

(1) By the Fire Warden or his/her duly authorized representative of the San Diego County Fire Authority in all unincorporated areas of the County which are outside a fire protection district.

(2) For areas in a fire protection district, by the district fire chief or his/her duly authorized representative.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; amended by Ord. No. 10224 (N.S.), effective 10-25-12; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.005. GEOGRAPHIC LIMITS.

The geographic limits referred to in certain sections of the 2025 California Fire Code are established as follows:

(a) **Sec. 5704.2.9.6.1** The geographic limits in which the storage of Class I and Class II liquids in above-ground tanks outside of buildings is prohibited: the unincorporated area of the County of San Diego.

Exceptions:

1. In areas zoned for mixed, general or high impact industrial uses.
2. Crankcase draining may be stored in specially constructed above-ground storage tanks, approved by the fire code official, with a maximum capacity of 550 gallons. These tanks may be located within a building when the fire code official deems appropriate and the container meets U.L. Standard 2085. Containers shall be installed and used in accordance with their listing and provisions shall be made for leak and spill containment. In no case shall storage be allowed on residential or institutional property.
3. With the fire code official's approval, Class I and II liquids may be stored above ground outside of buildings in specially designed, approved and listed containers which have features incorporated into their design which mitigate concerns for exposure to heat, ignition sources and mechanical damage. Containers shall be installed and used in accordance with their listing, and provisions shall be made for leak and spill containment. The fire code official may disapprove the installation of these containers when in his or her opinion their use presents a risk to life or property.

(b) **Sec. 5706.2.4.4** The geographic limits in which the storage of Class I and Class II liquids in above-ground tanks is prohibited: the unincorporated area of the County of San Diego.

Exceptions:

1. In areas zoned for other than residential uses, when approved by the FAHJ.
2. Crankcase draining may be stored in specially constructed above-ground storage tanks, approved by the fire code official, with a maximum capacity of 550 gallons. These tanks may be located within a building when the fire code official deems appropriate and the container meets U.L. Standard 2085. Containers shall be installed and used in accordance with their listing, and provisions shall be made for leak and spill containment. In no case shall storage be allowed in residential or institutional property.
3. With the fire code official's approval, Class I and II liquids may be stored above ground in specially designed, approved and listed containers which meet U.L. Standard 2085. Containers shall be installed and used in accordance with their listing, and provisions shall be made for leak and spill containment. The fire code official may disapprove the installation of such containers when in his/her opinion their use presents a risk to life or property.

(c) **Sec. 5806.2** The geographic limits in which the storage of flammable cryogenic fluids in stationary containers is prohibited: the unincorporated area of the County of San Diego, except for areas zoned for mixed, general or high impact industrial uses.

(d) **Sec. 6104.2** The geographic limits in which the bulk storage of liquefied petroleum gas is prohibited for the protection of heavily populated and congested areas: the unincorporated area of the County of San Diego, except for areas zoned for mixed, general or high impact industrial uses.

Exception: Bulk tanks with a maximum aggregate capacity of 30,000 gallons water capacity for above-ground storage of underground distribution to residential areas, where the storage and distribution meets County Fire Code requirements as determined by the FAHJ.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.006. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California Fire Code, the digits following the first three digits of the section numbers in this chapter refer to conform to the numbering system of the California Fire Code: e.g., SEC. 96.1.307.5 refers to Chapter 3 section 307.5 of the California Fire Code. When deletions, revisions and additions are made to an appendix of the California Fire Code, "APP" is added to the number: e.g., section SEC. 96.1.APP.B103.3 refers to Appendix Chapter B, section 103.3 of the California Fire Code.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14;

repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.101.5. VALIDITY.

Section 101.5 of the California Fire Code is revised to read:

Sec. 101.5 Validity. The Board of Supervisors declares that should any section, paragraph, sentence or word of this chapter be declared invalid for any reason it is the intent of this Board that it would have passed all other portions of this chapter independently of any portion that may be declared invalid.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.102.14. REPEAL OF CONFLICTING ORDINANCES, RESOLUTIONS OR MOTIONS.

Section 102.14 is added to the California Fire Code to read:

Sec. 102.14 Repeal of conflicting ordinances, resolutions or motions. All former ordinances, resolutions or motions or parts thereof, conflicting or inconsistent with the provisions of this chapter are repealed.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.104.2.2.5. TECHNICAL ASSISTANCE.

Section 104.2.2.5 is added to the California Fire Code

Sec. 104.2.2.5 Technical Study BESS. To determine compliance with this code, the fire code official is authorized to require the owner or owner's authorized agent to provide a technical opinion. Technical Studies are required for all Battery Energy Storage System projects that are equal or more than 600 kilowatt hours. The technical study requirement is for all types of batteries.

(Added by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.104.2.4. MODIFICATIONS.

Section 104.2.4 of the California Fire Code is revised to read:

Sec. 104.2.4 Modifications. Where there are practical difficulties involved in carrying out the provisions of this code, the fire code official shall have the authority to grant modifications in accordance with Section 104.2.4.1.

Sec. 104.2.4.1 Individual cases. The fire code official shall have the authority to grant modifications for individual cases, provided the fire code official shall first find that special individual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, life and fire safety requirements. The applicant's request for a modification shall state the specific sections(s) for which a modification is requested, material facts supporting the contention of the applicant, the details of the modification or mitigating measure proposed and, if applicable, a map showing the proposed location and citing of the modification or mitigation measure. The details of action granting modifications shall be recorded and entered in the files of the code compliance agency.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-24-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.104.12. COST RECOVERY.

Section 104.12 is added to the California Fire Code to read:

Sec. 104.12 Cost recovery. The purpose of this section is to establish authority to obtain reimbursement from responsible individuals for the expenses of any emergency response and/or enforcement action by the fire department to protect the public from criminal or negligible activities, and from fire or hazardous substances.

Sec. 104.12.1 Reimbursement required. In accordance with the Health and Safety Code section 13000 et seq., an individual who acts negligently or in violation of the law and thereby requires the jurisdiction to provide an emergency response to a danger posed by a fire or hazardous substance shall be liable for reimbursement to the agency for the costs incurred. In accordance with Government Code sections 53150 through 53158, any individual who is under the influence of an alcoholic beverage or any drug or the combined influence of an alcoholic beverage or any drug, and whose negligent

operation of a motor vehicle, boat or vessel or civil aircraft caused by that influence proximately causes any incident and thereby requires the agency to provide an emergency response shall reimburse the agency for the cost incurred.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.105.3.9. EXPENSE RECOVERY.

Section 105.3.9 is added to the California Fire Code to read:

Sec. 105.3.9 Expense recovery. The fire code official may impose a fee for recovery of expenses incurred to enforce the fire prevention provisions of this code.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.105.5.54.1 CHRISTMAS TREE LOTS.

Section 105.5.54.1 is added to the California Fire Code to read:

Sec. 105.5.54.1 Christmas tree lots. An operational permit is required to operate a Christmas tree lot, with or without flame proofing services.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.105.5.54.2 GREENWASTE RECYCLING, MULCHING, COMPOSTING OPERATIONS AND STORAGE.

Section 105.5.54.2 is added to the California Fire Code to read:

Sec. 105.5.54.2 Greenwaste recycling, mulching, composting operations and storage. An operational permit is required for green waste recycling, mulching, composting operations and storage.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.105.7. NEW MATERIALS, PROCESSES OR OCCUPANCIES WHICH REQUIRE PERMITS.

Section 105.7 is added to the California Fire Code to read:

Sec. 105.7 New materials, processes or occupancies which require permits. The fire code official may determine, after allowing affected persons an opportunity to be heard, that a material, process or occupancy, not listed in this code shall require a permit, in addition to those now enumerated in this code. In that case, the fire code official shall prepare a list of any additional material, process or occupancy that shall require a permit and post the list in a conspicuous place in the offices of the fire authority having jurisdiction. Any interested person may obtain a copy of the list.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.111. APPEALS.

Section 112 of the California Fire Code is revised to read:

Sec. 112.1 Regional Fire Appeals Board established. In order to hear and decide appeals of orders, decisions or determinations made by the fire code official relative to the application and interpretation of this code, including the granting or denial of modifications, there shall be and is hereby created a Regional Fire Appeals Board (Appeals Board). The Appeals Board shall adopt rules of procedure for conducting its business, and shall render all decisions and findings in writing to the appellant with a duplicate copy to the fire code official. A copy shall also be sent to the Building Official or other decision maker for the project, whichever is appropriate.

Sec. 112.2 Limitations on authority. An application for appeal shall be based on a claim that the intent of this code or the rules legally adopted hereunder have been incorrectly interpreted, the provisions of this code do not fully apply, or an equivalent method of protection or safety is proposed. The Appeals Board shall not have authority to waive requirements of this code.

Sec. 112.3 Qualifications. The Appeals Board shall consist of members who are qualified by experience and training to pass on matters pertaining to hazards of fire, explosions, hazardous conditions or fire protection systems and are not

employees of the jurisdiction.

Sec. 112.4 Appeals procedures. This section establishes appeal procedures of an order, decision or determination (collectively, "determination") made by the fire code official, including the granting or denial of appeals.

Sec. 112.4.1 Appeals of determinations regarding building permits. The County, fire agency or project applicant may appeal a determination made by the fire code official related to a project for which a building permit is required by filing an appeal in writing with the Appeals Board within 30 days of the fire code official's final determination. The Appeals Board shall make factual findings and issue a written recommendation to the County Building Official on whether the fire code official's determination should be upheld, overruled or modified. The Building Official may not waive the requirements of this code, except as authorized by the code and is subject to the same requirements and restrictions in the code that applied to the fire code official. A copy of the recommendation shall be provided to the applicant. The County Building Official shall act on the Appeals Board's recommendation and issue a written decision to the parties within 15 days of receipt of the Appeals Board's recommendation. The Building Official's decision shall be final.

Sec. 112.4.2 Appeals of determinations regarding discretionary permits. The County, the fire agency or the project applicant may seek review of the fire code official's determination by the Appeals Board by filing a request for review with the Appeals Board within 30 days of the fire code official's determination. When reviewing a fire code official's determination pursuant to this subsection, the Appeals Board shall act in an advisory capacity. The Appeals Board shall review the fire code official's determination and make a recommendation to uphold, overrule or modify the fire code official's determination. The Appeals Board shall render its recommendation to the County decision maker or decision-making body for consideration with the application for the discretionary permit.

Sec. 112.4.3 Appeals of determinations for matters other than building permits or discretionary permits.

(a) **Areas outside a fire protection district.** Any affected party may appeal a determination made by the fire code official regarding a matter for which a building permit or discretionary permit is not required by filing an appeal in writing with the Appeals Board within 30 days of the fire code official's final determination. The Appeals Board shall review the fire code official's determination and make a recommendation to uphold, overrule or modify the fire code official's determination. The Appeals Board's determination shall be final.

(b) **Areas inside a fire protection district.** Any affected party may appeal a determination made by the fire code official regarding a matter for which a building permit or discretionary permit is not required by filing an appeal in writing with the fire protection district's Board of Directors within 30 days of the fire code official's final determination. The Board of Directors shall review the fire code official's determination and make a recommendation to uphold, overrule or modify the fire code official's determination. The Board of Director's determination shall be final.

Sec. 112.5 Regional Fire Appeals Board.

(a) The Appeals Board members shall consist of the following:

- Two representatives from the San Diego County Fire Districts Association.
- Two chief officers from CAL FIRE.
- One fire marshal from the unincorporated area of the County.

(b) The Appeals Board shall not include a representative from the agency whose fire code official made the determination that is being appealed. An alternate for the regular member(s) of the Appeals Board shall be designated to serve in this situation.

(c) Three members shall constitute a quorum for the transaction of business, and three affirmative votes shall be necessary to render a recommendation.

(d) If the Appeals Board recommends a modification to this code for an individual case, a copy of the recommendation and findings along with a map showing the proposed modification and mitigating measures shall be forwarded to the Unit Chief of CAL FIRE, San Diego/Imperial Unit.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.113.4. VIOLATIONS, PENALTIES AND RESPONSIBILITY FOR COMPLIANCE.

Section 113.4 of the California Fire Code is revised to read:

Sec. 113.4 Violations, penalties and responsibility for compliance. It shall be unlawful for any person, as defined in section 12.115 of the County Code of Regulatory Ordinances, to use any property or erect, construct, enlarge, alter, repair, move, remove, improve, convert, demolish, equip, use, occupy or maintain any building or structure, or vacant land or cause the same to be done, contrary to or in violation of any of the provisions of this chapter. A property owner shall be considered to have allowed any use or improvement of property occupied by or under the dominion and control of the owner and shall be responsible for the discontinuance and removal of any violation of the County Fire Code. This responsibility shall include property leased to another person. A property owner shall also be responsible for the discontinuance and removal of any violation of the County Fire Code that existed on the property prior to the current owner's purchase of the property.

AMENDMENT TO SECTION 113.4

The Alpine, Bonita-Sunnyside, Lakeside, North County, Rancho Santa Fe, Rincon Del Diablo, San Marcos, San Miguel, Valley Center and Vista Fire Protection Districts adopt the following code amendment:

Sec. 113.4 Violations, penalties and responsibility for compliance. Any person who shall violate any of the provisions of this code or standards hereby adopted or fail to comply therewith, or who shall violate or fail to comply with any order made there under, or who shall build in violation of any detailed statement or specification or plans submitted and approved there under, or any certificate or permit issued there under, and from which no appeal has been taken, or who shall fail to comply with such an order as affirmed or modified by the attorney for the Fire District or by a court of competent jurisdiction within the time fixed herein, shall severally for each and every violation and non-compliance respectively, be guilty of an infraction or misdemeanor, punishable by a fine not exceeding \$1,000.00 or by imprisonment in County Jail not exceeding six (6) months, or both. The imposition of one penalty of any violation shall not excuse the violation or permit it to continue; and all such persons shall be required to correct or remedy such violations or defects within a reasonable time; and when not otherwise specified, each day that prohibited conditions are maintained shall constitute a separate offense.

The application of the above penalty shall not be held to prevent the enforced removal of prohibited conditions.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

[SEC. 96.1.114.4.]

AMENDMENT TO SECTION 114.4

The Alpine, Bonita-Sunnyside, Lakeside, North County, Rancho Santa Fe, Rincon Del Diablo, San Marcos, San Miguel, Valley Center and Vista Fire Protection Districts adopt the following code amendment:

Sec. 114.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that the person is directed to perform to remove a violation or unsafe condition, shall be liable to a fine of not less than \$250.00 or more than \$1,000.00.

(Added by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.202. DEFINITIONS.

Section 202 of the California Fire Code is revised by adding or modifying the following definitions:

ACCESSORY DWELLING UNIT. Defined as an attached or a detached residential dwelling unit which provides complete independent living facilities for one or more persons. It shall include permanent provisions for living, sleeping, eating, cooking, and sanitation on the same parcel as the single-family dwelling is situated. An accessory dwelling unit also includes the following:

- (A) An efficiency unit, as defined in Section 17958.1 of the Health and Safety Code.
- (B) A manufactured home, as defined in Section 18007 of the Health and Safety Code.

AERATED STATIC PILE. A composting process that uses an air distribution system to blow or draw air through the pile. Little or no pile agitation or turning is performed.

BLASTER. A person who has been approved by the Sheriff to conduct blasting operations and who has been placed on the list of approved blasters. The listing shall be valid for one year unless revoked by the Sheriff.

BLASTING AGENT. A material or mixture consisting of a fuel and oxidizer intended for blasting. The finished product as mixed and packaged for use or shipment shall not be detonated by means of a No. 8 test blasting cap when unconfined.

BLASTING OPERATION. The uses of an explosive device or explosive material to destroy, modify, obliterate or remove any obstruction of any kind.

BLASTING PERMIT. A permit issued by the Issuing Officer pursuant to section 105.6.15. The permit shall apply to a specific site and shall be valid for a period not to exceed one year.

BLAST SITE. The geographically defined area, as shown on a project map or plot plan, where a blaster is authorized by a blasting permit issued under this section to conduct a blasting operation.

CHIPPING AND GRINDING. An activity that mechanically reduces the size of organic matter.

COMPOSTING OPERATION. An operation that is conducted for the purpose of producing compost. The operation shall be by one or more of the following processes used to produce a compost product: static pile, windrow pile or aerated static pile.

DEAD-END ROAD. A road that has only one point of vehicular ingress/egress, including cul-de-sacs and looped roads.

DISTANCE MEASUREMENT. All specified or referenced distances are measured along the ground, unless otherwise stated.

DWELLING UNIT. Any building or portion thereof which contains living facilities, including provisions for sleeping, eating, cooking and/or sanitation for not more than one family.

ENCLOSED. Closed in or fenced off.

EXPLOSIVES PERMIT. A permit to possess or use explosives, issued by the Issuing Officer, pursuant to California Health and Safety Code sections 12000 et seq. and Chapter 56 of this code. An explosives permit shall be valid for a period not to exceed one year, as provided in the permit conditions.

FIRE APPARATUS ACCESS ROAD. A road that provides fire apparatus access from a fire station to a facility, building or portion thereof. This is a general term that includes, but is not limited to a fire lane, public street, private street, driveway, parking lot lane and access roadway.

FIRE AUTHORITY HAVING JURISDICTION (FAHJ). The designated entity providing enforcement of fire regulations as they relate to planning, construction and development. The FAHJ may also provide fire suppression and other emergency services.

FIRE CHIEF. The fire chief is one of the following:

(a) The person appointed by the Board of Supervisors to serve as fire chief in the unincorporated areas not within a fire protection district.

(b) The chief officer of a fire protection district.

(c) The Fire Warden or her or his delegated representative when enforcing section 96.1.5608.1 of this Chapter.

FIRE CODE OFFICIAL. The Fire Warden or her or his delegated representative, the fire chief or a duly authorized representative, or other person as may be designated by law, appointment or delegation and charged with the administration and enforcement of this Chapter.

FIRE DEPARTMENT. Any regularly organized fire department, fire protection district, fire company, or legally formed volunteer fire department registered with the County of San Diego regularly charged with the responsibility of providing fire protection to a jurisdiction.

FIRE HAZARD. Any condition or conduct which:(a) increases or may increase the threat of fire to a greater degree than customarily recognized as normal by persons in the public service regularly engaged in preventing, suppressing or extinguishing fire or (b) may obstruct, delay, hinder or interfere with the operations of the fire department or the egress of occupants in the event of fire.

FIRE PROTECTION DISTRICT. Any fire protection district created under State law and any water district providing fire protection services.

FUEL MODIFICATION ZONE. A strip of land where combustible vegetation has been thinned or modified or both and partially or totally replaced with approved fire-resistant and/or irrigated plants to provide an acceptable level of risk from vegetation fires. Fuel modification reduces the radiant and convective heat on a structure and provides valuable defensible space for firefighters to make an effective stand against an approaching fire front.

GREENWASTE. Organic material that includes, but is not limited to, yard trimmings, plant waste, manure, untreated wood wastes, paper products and natural fiber products.

HARDSCAPE. Concrete, gravel, pavers or other non-combustible material.

HAZARDOUS FIRE AREA. Any geographic area mapped by the State or designated by a local jurisdiction as a moderate, high or very high fire hazard area or which the FAHJ has determined is a hazardous fire area, because the type and condition of vegetation, topography, weather and structure density increase the probability that the area will be susceptible to a wildfire.

HOGGED MATERIALS. Mill waste consisting mainly of hogged bark but may include a mixture of bark, chips, dust or other by-product from trees and vegetation.

INSPECTOR. For the purposes of sections 96.1. 5601.2, an inspector is a person on the Issuing Officer's approved list of inspectors authorized to conduct inspections, before and after a blast. To be on the Issuing Officer's approved list, an inspector shall have a blasting license issued by Cal/OSHA.

MAJOR BLASTING. A blasting operation that does not meet the criteria for minor blasting.

MID-RISE BUILDING. A building four stories or more high, but not exceeding 75 feet in height and not defined as a high-rise building by section 202 of the California Building Code. Measurements shall be made from the underside of the roof or floor above the topmost space that may be occupied to the lowest fire apparatus access road level.

MINOR BLASTING. A blasting operation that meets all of the following criteria: quantity of rock to be blasted does not exceed 100 cubic yards per shot, bore hole diameter does not exceed 2 inches, hole depth does not exceed 12 feet,

maximum charge weight does not exceed 8 pounds of explosives per delay and the initiation of each charge will be separated by at least 8 milliseconds. The maximum charge weight shall not exceed the Scaled Distance as shown below:

Distance from Blast Site (In Feet)	Scale Distance Factor
0 - 300	Mandatory Seismic Monitoring
301 - 5,000	55
5,000+	65

MULCHING. The process by which mixed greenwaste is mechanically reduced in size for the purpose of making compost.

RESPONSE TIME. The elapsed time from the fire department's receipt of the first alarm to when the first fire unit arrives at the scene.

STATIC PILE. A composting process that is similar to the aerated static pile except that the air source may or may not be controlled.

STRUCTURE. That which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some manner.

TRAVEL TIME. The estimated time it would take for a responding agency to travel from the fire station to the furthest structure in a proposed development project, determined by measuring the safest, most direct, appropriate and reliable route with consideration given to safe operating speeds for heavy fire apparatus.

WINDROW COMPOSTING PROCESS. The process in which compostable material is placed in elongated piles. The piles or windrows are aerated and/or mechanically turned on a periodic basis.

WOOD CHIPS. Chips of various species of wood produced or used in chipping and grinding operations.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; amended by Ord. No. 10014 (N.S.), effective 11-13-09; amended by Ord. No. 10173 (N.S.), effective 10-28-11; amended by Ord. No. 10224 (N.S.), effective 10-25-12; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.304.1.5. OUTDOOR CARNIVALS AND FAIRS.

Section 304.1.5 is added to the California Fire Code to read:

Sec. 304.1.5 Outdoor carnivals and fairs. Outdoor carnivals and fairs shall only be conducted on grounds free of combustible vegetation or trimmed to the satisfaction of the FAHJ.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.305.6. ROCKETS, MODEL AIRCRAFT AND SIMILAR DEVICES.

Section 305.6 is added to the California Fire Code to read:

Sec. 305.6 Rockets, model aircraft and similar devices. Rockets, model airplanes, gliders, balloons, sky lanterns, floating luminary or similar devices powered with an engine, propellant, open flame or other feature liable to start or cause a fire shall not be projected into or across hazardous fire areas without prior approval of the fire code official.

(Added by Ord. No. 10173 (N.S.), effective 10-28-11; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.307.4.3. PORTABLE OUTDOOR FIREPLACES.

Section 307.4.3 of the California Fire Code is revised to read:

Sec. 307.4.3 Portable outdoor fireplaces. Portable outdoor fireplaces shall be used in accordance with the manufacturer's instructions and shall not be operated within 15 feet (3048 mm) of a structure or combustible material or combustible materials.

Exception: Portable outdoor fireplaces used at one-and two-family dwellings. All "warming fires", by which open burning of wood, shall have installed a "spark arrester" of ½" screen mesh or smaller or used in accordance with the manufacturer's

instructions.

(Added by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.307.5. ATTENDANCE OF OPEN BURNING AND RECREATIONAL FIRES.

Section 307.5 of the California Fire Code is revised to read:

Sec. 307.5 Attendance. Open burning, bonfires, recreational fires and the use of portable outdoor fireplaces shall be constantly attended by an adult until the fire is extinguished. Not fewer than one portable fire extinguisher complying with section 906 with a minimum 4-A rating or other approved on-site fire-extinguishing equipment, such as dirt, sand, water barrel, garden hose or water truck, shall be available for immediate utilization.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.324. MID-RISE BUILDINGS.

Section 324 is added to the California Fire Code to read:

Sec 324.1 General. A newly constructed mid-rise building or a mid-rise building which undergoes a complete renovation that requires the building to be completely vacated shall comply with this section.

Exceptions:

1. Buildings used exclusively as an open parking garage.
2. Buildings where all floors above the fourth floor level are used exclusively as an open parking garage.
3. Buildings such as a power plant, lookout tower, steeple, grain house, and other similar structures with intermittent human occupancy.

Sec. 324.1.1 Automatic sprinkler systems and standpipes. Mid-rise buildings shall be protected throughout by an automatic sprinkler system designed and installed in conformance with the NFPA 13 edition as referenced in Chapter 80 of CFC and in accordance with the following:

1. A control valve and a water flow alarm shall be provided for each floor. Each control valve and water flow alarm shall be electronically supervised.
2. Mid-rise buildings shall be provided with a Class I standpipe system that is interconnected with the automatic sprinkler system. The system shall consist of 2½-inch hose valves located in each stair enclosure on every floor. Two hose outlets shall be located on the roof outside of each stair enclosure which penetrates the roof. The standpipe system shall be designed, installed and tested in accordance with the NFPA 14 edition as referenced in Chapter 80 of CFC.
3. Fire department standpipe connections and valves serving each floor shall be located in the vestibule and located in a manner so as not to obstruct egress when hose lines are connected and charged.

Sec. 324.1.2 Smoke detection. Smoke detectors shall be provided in accordance with this section. Smoke detectors shall be connected to an automatic fire alarm system and shall be installed in accordance with the NFPA 72 edition as referenced in Chapter 80 of CFC. The actuation of any device required by this section shall operate the emergency voice alarm signal system and shall operate all equipment necessary to prevent the circulation of smoke through air return and exhaust ductwork. Smoke detectors shall be located as follows:

1. In every mechanical equipment, electrical, transformer, telephone equipment, unmanned computer equipment, elevator machinery or similar room and in all elevator lobbies. Elevator lobby detectors shall be connected to an alarm verification zone or be listed as a releasing device.
2. In the main return air and exhaust air plenum of each air conditioning system. The smoke detector shall be located in a serviceable area downstream of the last duct inlet.
3. At each connection to a vertical duct or riser serving two or more stories from a return air duct or plenum of an air conditioning system. In Group R-1 and R-2 occupancies, an approved smoke detector is allowed to be used in each return air riser carrying not more than 5,000 cubic feet per minute and not serving more than 10 air inlet openings.
4. For Group R-1 and R-2 occupancies in all corridors serving as a means of egress for an occupant load of 10 or more persons.

Sec. 324.1.3 Fire alarm system. An approved and listed, automatic and manual, fully addressable and electronically-supervised fire alarm system shall be provided in conformance with this code and the California Building Code & NFPA 72 edition as referenced in Chapter 80 of CFC.

Sec. 324.1.4 Emergency voice alarm signaling system. The operation of any automatic fire detector or water flow device shall automatically sound an alert tone followed by a pre-recorded voice instruction giving appropriate information

and direction on a general or selective basis to the following terminal areas:

1. Elevators
2. Elevator lobbies
3. Corridors
4. Exit stairways
5. Rooms and tenant spaces
6. Dwelling units
7. Hotel guest rooms
8. Areas designated as safe refuge within the building

Sec. 324.1.5 Fire command center. A fire command center for fire department operations shall be provided. The location and accessibility of the fire command center shall be approved by the fire code official. The room shall be separated from the remainder of the building by not less than a 2-hour fire barrier. The room shall be a minimum of 200 square feet with a minimum dimension of 10 feet. It shall contain the following facilities at a minimum:

1. Voice alarm and public address panels
2. Fire department communications panel
3. Fire alarm annunciator panel
4. Elevator annunciator panel (when building exceeds 55 feet in height)
5. Status indicators and controls for air-handling systems (stairwell pressurization)
6. Controls for unlocking stairwell doors
7. Fire pump status indicators (if required)
8. Set of complete building plans
9. Elevator control switches for switching of emergency power
10. Work table

Sec. 324.1.6 Annunciation identification. Control panels in the central control station shall be permanently identified as to their function. Water flow, automatic fire detection and manually-activated fire alarms, supervisory and trouble signals shall be monitored by an approved UL-listed central monitoring station and annunciated in the fire command center by means of an audible and visual indicator. For the purposes of annunciation, zoning shall be in accordance with the following:

1. When the system serves more than one building, each building shall be a separate zone.
2. Each floor in a building shall be a separate zone.
3. When one or more risers serve the same floor, each riser shall be a separate zone.

Sec. 324.1.7 Elevators. Elevators and elevator lobbies shall comply with Chapter 30 of the California Building Code. At least one elevator cab shall be assigned for fire department use, and shall serve all floors of the building. This cab shall be provided large enough to accommodate an ambulance-type stretcher in accordance with section 3002.4 of the California Building Code.

Sec. 324.1.8 Fire department communication system. An approved two-way fire department communication system designed and installed in accordance with the NFPA 72 edition referenced in Chapter 80 of CFC shall be provided for fire department use per section 907.2.13.2.

Sec. 324.1.9 Means of egress. In addition to the requirements of Chapter 10, egress components of mid-rise buildings shall comply with sections 324.1.9.1 through 324.1.9.5.

Sec. 324.1.9.1 Extent of enclosure. Stairway enclosures shall be continuous and shall fully enclose all portions of the stairway. Exit enclosures shall exit directly to the exterior of the building or include an exit passageway on the ground floor leading to the exterior of the building. Each exit enclosure shall extend completely through the roof and be provided with a door that leads onto the roof.

Sec. 324.1.9.2 Pressurized enclosures and stairways. All required stairways and enclosures in a mid-rise building shall be pressurized as specified in section 909. Pressurized stairways shall be designed to exhaust smoke manually when needed.

Sec. 324.1.9.3 Vestibules. Pressurized stairway enclosures serving a mid-rise building shall be provided with a pressurized entrance vestibule on each floor that complies with section 909.

Sec. 324.1.9.4 Pressure differences. The minimum pressure difference between a vestibule and adjacent areas shall

comply with section 909.

Sec. 324.1.9.5 Locking of stairway doors. All stairway doors that are locked to prohibit access from the interior of the stairway shall have the capability of being unlocked simultaneously, without unlatching, upon a signal from the fire command center. Upon failure of normal electrical service or activation of any fire alarm, the locking mechanism shall automatically retract to the unlocked position.

A telephone or other two-way communication system connected to an approved emergency service which operates continuously shall be provided at not less than every third floor in each required exit stairway vestibule.

Approved signage stating doors are locked shall be provided in each stairwell vestibule on each floor in which entry may be made and on each floor in which a telephone is located. Hardware for locking stairway vestibule doors shall be State Fire Marshal listed and approved by the fire code official by permit before installation. Stairway doors located between the vestibules and the stairway shaft shall not be locked.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.501.3.2. FIRE APPARATUS ACCESS MODIFICATIONS.

Section 501.3.2 is added to the California Fire Code to read:

Sec. 501.3.2 Fire apparatus access modifications. Plans for the modification of fire apparatus access road shall be submitted to the fire code official for review and approval prior to construction or modification of any fire apparatus road.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.503. FIRE APPARATUS ACCESS ROADS.

Section 503 of the California Fire Code is revised to read:

Sec. 503.1 General. Fire apparatus access roads shall be provided and maintained in accordance with Sections 503.1.1 through 503.1.3.

Fire apparatus access roads shall be provided and maintained in compliance with this section and the most recent edition and any amendments thereto, of public and private road standards as adopted by the County of San Diego (San Diego County Standards for Private Roads and Public Roads, San Diego County Department of Public Works). The fire code official may modify the requirements of this section if the modification provides equivalent access.

Sec. 503.1.1 Buildings and facilities. Approved fire apparatus access roads shall be provided for every facility, building or portion of a building hereafter constructed or moved into or within the jurisdiction. The fire apparatus access road shall comply with the requirements of this section and shall extend to within 150 feet (45 720 mm) of all portions of the facility and all portions of the exterior walls of the first story of the building as measured by an approved route around the exterior of the building or facility.

Exceptions:

1. The fire code official is authorized to increase the dimension of 150 feet (45 720 mm) where any of the following conditions occur:

1.1 The building is equipped throughout with an approved automatic sprinkler system installed in accordance with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3.

1.2. Fire apparatus access roads cannot be installed because of location on property, topography, waterways, non-negotiable grades or other similar conditions, and an approved alternative means of fire protection is provided.

1.3. There are not more than two Group R-3 or Group U occupancies.

2. Where approved by the fire code official, fire apparatus access roads shall be permitted to be exempted or modified for solar photovoltaic power generation facilities.

Sec. 503.1.2 Secondary Access. The fire code official is authorized to require more than one fire apparatus road when a new subdivision is proposed, and the maximum allowable dead-end road length is exceeded (Sec. 503.2.5.2.). In addition, the fire code official may determine additional fire apparatus access roads are required on other proposed projects. This requirement is based on the potential for impairment of a single road by vehicle congestion, condition of terrain, climate conditions or other factors that could limit access. When additional fire apparatus roads are necessary as mitigation for the exceedance of maximum allowable dead-end road length, the additional fire apparatus access road must be remote from the primary fire apparatus road as determined by the fire code official. Remoteness is in Appendix D of 2025 CFC. A subdivision as defined in CWUI is, The division of a tract, lot or parcel of land into two or more lots, plats, sites or other divisions of land.

Sec. 503.1.3 High-piled storage. Fire department vehicle access to buildings used for high-piled combustible storage shall comply with the applicable provisions of Chapter 32.

Sec. 503.2 Specifications. Fire apparatus access roads shall be installed and arranged in accordance with Sections 503.2.1 through 503.2.9.

Sec. 503.2.1 Dimensions. The dimensions of fire apparatus access roads shall be in accordance with the following:

- (a) Fire apparatus access roads shall have an unobstructed improved width of not less than 24 feet, except as provided in section 503.2.1 for single-family residential driveways serving no more than two residential parcels, which shall have a minimum of 16 feet of unobstructed improved width. Any of the following, which have separated lanes of one-way traffic: gated entrances with card readers, guard stations or center medians, are allowed, provided that each lane is not less than 14 feet wide.
- (b) Fire apparatus access roads that are public or private roads which are provided or improved as a result of a Tentative Map, Tentative Parcel Map or a Major/Minor Use Permit shall have the dimensions as set forth by the County of San Diego Standards for Public and Private Roads.
- (c) All fire apparatus access roads shall have an unobstructed vertical clearance of not less than 13 feet 6 inches.
- (d) Vertical clearances or road widths shall be increased when the fire code official determines that vertical clearances or road widths are not adequate to provide fire apparatus access.
- (e) Vertical clearances or road width may be reduced when the fire code official determines the reduction does not impair access by fire apparatus. In cases where the vertical clearance has been reduced, approved signs shall be installed and maintained indicating the amount of vertical clearance.
- (f) Driveways exceeding 150 feet in length, but less than 600 feet in length, shall provide a turnout near the midpoint of the driveway. Where the driveway exceeds 600 feet, turnouts shall be provided no more than 400 feet apart.
- (g) For buildings that are more than 35 feet in height, a 35-foot unobstructed fire lane shall be provided. Unless otherwise approved by the fire code official. Fire apparatus access roads shall have an unobstructed width of not less than 35 feet when within laddering distance of buildings exceeding 35 feet in height. The access road shall be set back from buildings exceeding two stories in height such that the centerline of the fire access road shall be equal to 1/4 the difference in elevation from the fire access road to the roof. The building curbside access roads serving buildings over two stories in height but less than 44 feet in height shall be permitted to be up to 10 feet away from the building.

ADDITION OF SECTION 503.2.1.1

The Rancho Santa Fe, Rincon Del Diablo, San Miguel and Valley Center Fire Protection Districts adopt the following code amendment:

Sec. 503.2.1.1 Road phasing requirement for single family dwellings on existing legal parcels.
(a) The fire apparatus access road requirement for widening an existing, improved and paved fire apparatus access roadway shall be as provided in Table 503.2.1.1. The fire apparatus access road shall be constructed to extend from the property line to the nearest public or private road.

TABLE 503.2.1.1 -PHASING REQUIREMENT		
Fire Apparatus Access Roadway – Single Family Dwellings		
Number of Parcels Served	Unobstructed Road Width	Roadways Over 600 foot Long
1-2	16-foot, paved	Turnouts every 400 feet
3-8	20-foot, paved	Turnouts every 400 feet
9 or more	24-foot, paved	Not required

(b) The fire apparatus access road shall not be required to be improved for a non-habitable accessory structure or a residential addition or remodel less than 500 square feet if the fire apparatus access road has already been improved and paved to a minimum width of 20 feet. If the road is less than 20 feet wide, the roadway shall be widened to 20 feet. The preceding addition or remodel exception is limited to one permit per three-year period from the date of the last permit approval.
Exception: Vertical clearances or road width may be reduced when the fire code official determines the reduction does not impair access by fire apparatus. In cases where the vertical clearance has been reduced, approved signs shall be installed and maintained indicating the amount of vertical clearance.

Sec. 503.2.2 Authority to increase minimums. The fire code official shall have the authority to require or permit modifications to the required access widths where they are inadequate for fire or rescue operations or where necessary to meet the public safety objectives of the jurisdiction.

Sec. 503.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus (not less than 75,000 lbs. unless authorized by the fire code official) and shall be provided with an approved paved surface so as to provide all-weather driving capabilities. The paving and sub-base shall be installed to the standards specified in the County of San Diego Parking Design Manual. A residential driveway constructed of 3½" Portland cement concrete may be installed on any slope up to 20% provided that slopes over 15% have a deep broom finish perpendicular to the direction of travel to enhance traction. The fire code official may allow a surfacing material of 6 inches of compacted decomposed granite on fire apparatus access roads with a slope of 10% or less in areas allowed by the San Diego County Standards for Private Roads.

AMENDMENT TO SECTION 503.2.3

The Bonita-Sunnyside, Lakeside, Rancho Santa Fe, Rincon Del Diablo, San Miguel, Valley Center Fire Protection Districts adopt the following code amendment:

Sec. 503.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus (not less than 75,000 lbs. unless authorized by the FAHJ) and shall be provided with an approved paved surface so as to provide all weather driving capabilities. The paving and sub-base shall be installed to the standards specified in the County of San Diego Parking Design Manual. A residential driveway constructed of 3½" Portland cement concrete may be installed on any slope up to 20% provided that slopes over 15% have a deep broom finish perpendicular to the direction of travel or other approved surface to enhance traction.

Sec. 503.2.4 Roadway radius. The horizontal inside radius of a fire apparatus access road shall comply with the County of San Diego Public and Private Road Standards. The horizontal inside radius of any public or private driveway shall be a minimum of 28 feet, as measured on the inside edge of the improvement width or as approved by the fire code official. The length of vertical curves of fire apparatus access roads shall not be less than 100 feet, or as approved by the fire code official.

Sec. 503.2.5 Dead ends. Dead-end fire apparatus access roads in excess of 150 feet in length shall be provided with an approved area for turning around emergency apparatus.

Sec. 503.2.5.1 Dead end roads turn-around required.A cul-de-sac or other approved turn-around shall be provided in residential areas where the fire apparatus access roads serve 3 or more parcels. The minimum unobstructed radius width for a cul-de-sac in a residential area shall be 36 feet paved, 40 feet graded, or as approved by the fire code official. The fire code official shall establish a policy identifying acceptable turnarounds for various project types. See Annex A & B for illustrations

Sec. 503.2.5.2 Dead-end roads. The maximum length of a dead-end road, including all dead-end roads accessed from that dead-end road, shall not exceed the following cumulative lengths, regardless of the number of parcels served:

(Title 14 SRA 1273.09 Ref.)

ZONING FOR PARCEL SERVED BY DEAD-END ROAD(s)	CUMULATIVE LENGTH OF DEAD-END ROAD(s)
Parcels zoned for less than 1 acre	800 feet
Parcels zoned for 1 acre to 4.99 acres	1,320 feet
Parcels zoned for 5 acres to 19.99 acres	2,640 feet
Parcels zoned for 20 acres or larger	5,280 feet

All lengths shall be measured from the edge of the roadway surface at the intersection where the road begins to the end of the road surface at its farthest point. Where a dead-end road crosses areas of differing zoned parcel sizes, requiring different length limits, the shortest allowable length shall apply. Where parcels are zoned 5 acres or larger, turnarounds shall be provided at a maximum of 1,320 foot intervals. Each dead-end road shall have a turnaround approved by the fire code official and constructed at its terminus.

A turnaround shall be provided to all building sites on driveways over 150 feet in length and shall be within fifty (50) feet of the building.

Sec. 503.2.6 Bridges and elevated surfaces.Where a bridge or an elevated surface is part of a fire apparatus access road, the bridge shall be constructed and maintained in accordance with AASHTO HB-17. Bridges and elevated surfaces shall be designed for a live load sufficient to carry the imposed loads of fire apparatus. Vehicle load limits and clearance limitations shall be posted at both entrances to bridges where required by the fire code official. Where elevated surfaces designed for emergency vehicle use are adjacent to surfaces which are not designed for such use, approved barriers, approved signs or both shall be installed and maintained where required by the fire code official.

Sec. 503.2.6.1 Bridges with one traffic lane.When approved by the fire code official, private bridges providing access to not more than two residential dwellings may have one 12-foot-wide travel lane and it shall provide for unobstructed visibility from one end to the other, and turnouts shall be provided at both ends.

Sec. 503.2.7 Grade. The gradient for a fire apparatus access roadway shall not exceed 15.0%. The fire code official may allow roadway grades up to 20.0% provided that the roadway surface conforms to section 503.2.3. The fire code official may require additional mitigation measures.

Sec 503.2.7.1 Cross-Slope. The standard cross-slope shall be 2 percent; minimum cross-slope shall be 1 percent; maximum cross-slope shall be 5 percent.

Sec. 503.2.8 Angles of Approach and Departure. The angles of approach and departure for fire apparatus access roads shall not exceed 7 degrees (12 %) for the first 30' or as approved by the fire code official and shall not allow for transitions between grades that exceed 6% elevation change along any 10-foot section.

Sec. 503.2.9 Roadway Turnouts. When required by the fire code official, turnouts shall be a minimum of 12 feet wide and 30 feet long with a minimum 25-foot taper on each end. (Title 14 SRA 1273.06)

Exception: The minimum width of the turnout may be reduced to 10 feet wide when the fire code official determines the reduction does not impair access by fire apparatus.

Sec. 503.3 Marking. When required by the fire code official, approved signs or other approved notices or markings that include the words "NO PARKING FIRE LANE" shall be provided for fire apparatus access roads to identify such roads or prohibit the obstruction thereof. Signs or notices shall be maintained in a clean and legible condition at all times and be replaced or repaired when necessary to provide adequate visibility

Sec. 503.3.1 Fire Lane Designation. Where the fire code official determines that it is necessary to ensure adequate fire access, the fire code official may designate existing roadways as fire apparatus access roads as provided by Vehicle Code section 22500.1.

Sec. 503.4 Obstruction of fire apparatus access roads. Fire apparatus access roads shall not be obstructed in any manner, including the parking of vehicles. The minimum road widths and clearances established in sections 503.2.1 and 503.2.2 shall be maintained at all times.

Sec. 503.4.1 Traffic calming devices. Traffic calming devices (including, but not limited to, speed bumps, speed humps, speed control dips, etc.) shall be prohibited unless approved by the fire code official.

Sec. 503.5 Required gates or barricades. The fire code official is authorized to require the installation and maintenance of gates or other approved barricades across fire apparatus access roads, trails or other access ways, not including public streets, alleys or highways. Electric gate openers, where provided, shall be listed in accordance with UL 325. Gates intended for automatic operation shall be designed, constructed and installed to comply with the requirements of ASTM F2200.

Sec. 503.5.1 Secured gates and barricades. When required, gates and barricades shall be secured as approved by the fire code official. Roads, trails and other access ways that have been closed and obstructed in the manner prescribed by section 503.5 shall not be trespassed on or used unless authorized by the owner and the fire code official.

Exception: The restriction on use shall not apply to public officers acting within the scope of duty.

Sec. 503.5.2 School fences and gates. School grounds may be fenced and gates therein may be equipped with locks, provided that safe dispersal areas based on three square feet per occupant are located between the school and the fence. Such required safe dispersal areas shall not be located less than 50 feet from school buildings.

Every public and private school shall conform to Education Code section 32020, which states:

The governing board of every public school district and the governing authority of every private school, which maintains any building used for the instruction or housing of school pupils on land entirely enclosed (except for building walls) by fences or walls, shall, through the cooperation of local law enforcement and fire protection agencies having jurisdiction of the area, provide for the erection of gates in these fences or walls. The gates shall be of sufficient size to permit the entrance of ambulances, police equipment and fire-fighting apparatus used by law enforcement and fire protection agencies. There shall be no less than one access gate and there shall be as many of these gates as needed to ensure access to all major buildings and ground areas. If these gates are equipped with locks, the locking devices shall be designed to permit ready entrance by the use of chain or bolt-cutting devices with which the local law enforcement and fire protection agencies may be equipped.

Sec. 503.6 Security gates. No person shall install a security gate or security device across a fire apparatus access road without the fire code official's approval.

1. An automatic gate across a fire access road or driveway shall be equipped with an approved emergency key-operated switch overriding all command functions and opening the gate.

2. A gate accessing more than four residences or residential lots or a gate accessing hazardous, institutional, educational or assembly occupancy group structure, shall also be equipped with an approved emergency traffic control-activating strobe light sensor or other device approved by the fire code official, which will activate the gate on the approach of emergency apparatus.

3. An automatic gate shall be provided with a battery back-up or manual mechanical disconnect in case of power failure with "fail open" and "fail secure" options enabled to prevent entrapment.

4. An automatic gate shall meet fire department policies deemed necessary by the fire code official for rapid, reliable access.

5. When required by the fire code official, an automatic gate in existence at the time of adoption of this chapter is required to install an approved emergency key-operated switch or other mechanism approved by the fire code official, at an approved location, which overrides all command functions and opens the gate. A property owner shall comply with this requirement within 90 days of receiving written notice to comply.

6. Where this section requires an approved key-operated switch, it may be dual-keyed or equipped with dual switches provided to facilitate access by law enforcement personnel.

7. All gates providing access from a road to a driveway shall be located a minimum of 30 feet from the nearest edge of the roadway and shall be at least two feet wider than the width of the traffic lane(s) serving the gate.

8. Electric gate openers, where provided, shall be listed in accordance with UL 325. Gates intended for automatic operation shall be designed, constructed and installed to comply with the requirements of ASTM F2200.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; amended by Ord. No. 10014 (N.S.), effective 11-13-09; amended by Ord. No. 10173 (N.S.), effective 10-28-11; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; amended by Ord. No. 10356 (N.S.), effective 11-20-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.505. PREMISES IDENTIFICATION.

Section 505 of the California Fire Code is revised to read:

Sec. 505.1 Address identification. New and existing buildings shall be provided with approved address identification. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property.

Address identification characters shall contrast with their background. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Each character shall be not less than 4 inches (102 mm) high with a minimum stroke width of ½-inch (12.7 mm) for residential buildings, 8 inches high with a 1-inch stroke for commercial and multi-family residential buildings, and 12 inches high with a 1-inch stroke for industrial buildings. Where required by the fire code official, address identification shall be provided in additional approved locations to facilitate emergency response. Where access is by means of a private road and the building cannot be viewed from the public way, a monument, pole or other sign or means shall be used to identify the structure. Address identification shall be maintained.

Sec. 505.2 Street or road signs. Streets and roads shall be identified with approved signs. Temporary signs shall be installed at each street intersection when construction of new roadways allows passage by vehicles. Signs shall be of an approved size, weather-resistant and be maintained until replaced by permanent signs. All new public roads, all private roads within major subdivisions and all private road easements serving four or more parcels shall be named. Road name signs shall comply with County of San Diego Department of Public Works Design Standard #DS-13.

Sec 505.2.1 Traffic Access Limitations. Signs identifying traffic access limitations shall be placed at the intersection preceding the traffic access limitation, and no more than 100 feet before such traffic access limitation

Sec. 505.3 Easement address signs. A road easement which is not named differently from the roadway from which it originates shall have an address sign installed and maintained listing all street numbers occurring on that easement. The sign shall be located where the easement intersects the named roadway. The numbers on the sign shall contrast with the background and have a minimum height of 4 inches and a minimum stroke of ½-inch.

Sec. 505.4 Directory map. A lighted directory map acceptable to the FAHJ, shall be installed at the driveway entrance to a residential multi-family project or a mobile home park, with more than 15 units.

Sec. 505.5 Response map updates. Any new development which necessitates updating emergency response maps due to new structures, hydrants, roadways or similar features shall be required to provide map updates in a format compatible with current department mapping services and shall be charged a reasonable fee for updating all response maps.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; amended by Ord. No. 10173 (N.S.), effective 10-28-11; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.506.1.3. EMERGENCY KEY ACCESS.

Section 506.1.3 is added to the California Fire Code portion to read:

Sec. 506.1.3 Emergency key access. All central station-monitored fire detection systems and automatic sprinkler systems shall have an approved emergency key access box on site in an approved location. The owner or occupant shall provide and maintain current keys for any structure for fire department placement in the box and shall notify the fire department in writing when the building is re-keyed.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.507.2. TYPE OF WATER SUPPLY.

Section 507.2 of the California Fire Code is revised to read:

Sec. 507.2 Type of water supply. A water supply may consist of reservoirs, pressure tanks, elevated tanks, water mains or other fixed systems, as approved by the fire code official, capable of providing the required fire flow. In setting the requirements for fire flow, the fire code official shall follow section 507.3 or Appendix B of the CFC, or the standard published by the Insurance Service Office, "Guide for Determination of Required Fire Flow".

Sec. 507.2.1 Private fire service mains. Private fire service mains and appurtenances shall be installed in accordance with NFPA 24 as referenced in Chapter 80 of CFC.

Sec. 507.2.2 Waterline Extensions. The fire code official shall require a waterline extension for the purpose of installing a fire hydrant if a water main is 1,500 feet or less from the property line.

Exception: Water tanks are only allowed as determined by the fire code official if a letter from the applicable water district is provided stating that the district would not be able to provide service (proper fire flow) if the water line were extended and a hydrant installed.

Sec. 507.2.3 Water tanks. Water tanks for private residential fire protection, when authorized by the fire code official, shall comply with Table 507.2.2 and be installed in accordance with the NFPA 22 edition referenced in Chapter 80 of CFC. Water tanks for commercial fire protection, when authorized by the fire code official, shall be installed in accordance with the NFPA 22 edition referenced in Chapter 80 of CFC. Water tanks are only allowed as determined by the fire code official if a letter from the applicable water district is provided stating that the district would not be able to provide service (proper fire flow) if the water line were extended and a hydrant installed.

TABLE 507.2.3 RESIDENTIAL WATER TANK REQUIREMENTS (with NFPA 13D Sys.)			
Building Square Feet	Gallons Per Minute Water Flow	Capacity Gallons	Duration Minutes
0 - 3600	250	7,500	30
Over 3600	250	15,000	60
When the exposure distance is one hundred feet (100') or less from an adjacent property, or where additional hazards or higher fire flow exists, the required water storage may be modified by the fire code official.			

1. Tank bottom elevation shall be equal to or higher than the fire department connection on the premises. Regardless of domestic use, all tanks shall be equipped with a device that will ensure that the tank contains the designated amount of water for fire flow duration as determined by the FAHJ. Tank size may be increased to serve multiple structures on a single parcel. The bottom of the water storage tank shall be level with or above the building pad.

2. Supply outlet shall be at least one-4 inch in diameter from the base of the tank to the point of outlet at the fire department connection. The fire department connection shall have an approved means of controlling water flow. The fire department connection shall be at least one-4 inch National Standard Thread (male), reduced to one- 2½ inch National Standard Thread (male). Additional outlets may be required.

3. Location of fire department outlet shall be shown on the plot plan when submitted to the FAHJ. Consideration will be given to topography, elevations, and distance from structures, driveway access, prevailing winds, etc.

4. The outlet shall be located along a fire apparatus access roadway and shall not be closer than 50 feet or further than 150 feet from the structure unless approved by the FAHJ.

5. All exposed tank supply pipes shall be listed for above-ground use as per the NFPA 13 edition referenced in Chapter 80 of CFC. Adequate support shall be provided.

6. Water storage tanks shall be constructed from materials approved by the NFPA 22 edition referenced in Chapter 80 of CFC and installed per manufacturer instructions.

7. Plans shall be submitted to the FAHJ for approval prior to tank installation. Tanks shall be installed as per County Zoning setback requirements. See "Annex F" example plan submittal.

8. Vessels previously used for products other than water shall not be allowed.

9. All underground piping serving the fire department connection shall be listed and approved as per the NFPA 24 edition referenced in Chapter 80 of CFC.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.507.3. FIRE FLOW.

Section 507.3 of the California Fire Code is revised to read:

Sec. 507.3 Fire flow. Fire flow requirements shall be based on Appendix B of the California Fire Code or the standard published by the Insurance Services Office, "Guide for Determination of Required Fire Flow." Consideration should be given to increasing the gallons per minute to protect buildings and structures of extremely large square footage and for such reasons as: poor access roads, grade and canyon rims, hazardous brush and response times greater than five minutes by a recognized fire department or fire suppression company. In hazardous fire areas the main capacity for new subdivisions shall not be less than 2,500 – 3,000 gallons per minute, unless otherwise approved by the fire code official. If fire flow increases are not feasible, the fire code official may require alternative design standards such as: alternative types of construction that provides a higher level of fire resistance, fuel break requirements, which may include required irrigation, modified access road requirements, specified setback distances for building sites addressing canyon rim developments and hazardous brush areas, and other requirements as authorized by this chapter and as required by the fire code official.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; amended by Ord. No. 10014 (N.S.), effective 11-13-09; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.507.5.7. FIRE HYDRANT AND FIRE VALVE LOCATION.

Section 507.5.7 is added to the California Fire Code to read: (Title 14 1275.15)

Sec. 507.5.7 Fire hydrant and fire valve location. The fire hydrant or fire valve shall be between 14 to 24 inches above grade, no closer than 4 feet nor further than 10 feet from the roadway, and 10 feet from combustible vegetation.

Sec. 507.5.7.1 Signing of water sources and fire department connections. The fire code official shall require fire hydrants and fire department connections to be identified. Fire hydrants shall be identified by a reflective blue marker and fire department connections shall be identified by a reflective green marker, with a minimum dimension of 3 inches, in the center of the travel lane adjacent the water source, or by other methods approved by the fire code official.

All materials shall be listed and approved by the water purveyor and/or fire code official. The fire code official may require a fire hydrant to have any combination of one-4 inch and one-2 ½ inch outlets with National Standard Threads.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.605.3.1. SPARK ARRESTERS.

Section 605.3.1 is added to the California Fire Code to read:

Sec. 605.3.1 Spark arresters. All buildings and structures having a chimney, flue or stovepipe attached to a fireplace, stove, barbecue or other solid or liquid fuel burning equipment or device shall have the chimney, flue or stovepipe equipped with an approved spark arrester. An approved spark arrester is a device intended to prevent sparks from escaping into the atmosphere, constructed of welded or woven wire mesh, 12-gauge thickness or larger, with openings no greater than ½ inch, or other alternative material the FAHJ determines provides equal or better protection.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.605.7.1. RESIDENTIAL INCINERATORS.

Section 605.7.1 of the California Fire Code is revised to read:

Sec. 605.7.1 Residential Incinerators. Residential incinerators are prohibited in the unincorporated area of the County.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.903.2. AUTOMATIC SPRINKLER SYSTEMS-WHERE REQUIRED.

Section 903.2 of the California Fire Code is revised to read:

Sec. 903.2 Where required. Approved automatic sprinkler systems shall be installed in all new buildings. For the purpose of automatic sprinkler systems, buildings separated by less than 10 feet from adjacent buildings shall be considered one building. Fire barriers and partitions, regardless of rating, shall not be considered as creating separate buildings for purposes of determining automatic sprinkler system requirements. Mezzanines shall be included in the total square footage calculation. All new buildings constructed shall have an approved NFPA 13, NFPA 13R or NFPA 13D automatic sprinkler system installed as per 903.3.1.1, 903.3.1.2 or 903.3.1.3. The Fire Code Official has the final decision of which NFPA 13 standard to apply, as required due to access, water supply and travel time.

Exceptions:

1. Group U detached occupancies not greater than 1200 square feet, and when the building is more than 10 feet from an adjacent building or property line measured from the farthest projection from the building and without ESS installed inside.
2. Agricultural buildings constructed of wood or metal frames over which fabric or similar material is stretched, which are specifically used as green houses are exempt from the automatic sprinkler system requirements unless physically connected to other building.

Sec. 903.2 (a) Additions. An automatic sprinkler system shall be required to be installed throughout the entire building when the addition is more than 50% of the existing building or when the altered building will exceed a fire flow as calculated pursuant to section 507.3. The fire code official may require an automatic sprinkler system to be installed in buildings where no water main exists to provide the required fire flow or where a special hazard exists, such as poor access roads, steep grades and canyon rims, hazardous brush and response times greater than 5 minutes by a fire department. The fire code official may require that other protective measures be taken based on existing conditions and/or potential hazards. The preceding addition or remodel exception is limited to one permit per three-year period from the date of the last permit approval.

Sec. 903.2 (b) Remodels or reconstructions. The fire code official may require an automatic sprinkler system to be installed throughout buildings if a remodel or reconstruction includes significant modification to the interior or roof of the building. The fire code official may require an automatic sprinkler system to be installed in buildings where no water main exists to provide the required fire flow or where a special hazard exists, such as poor access roads, steep grades and canyon rims, hazardous brush and response times greater than 5 minutes by a fire department. The fire code official may require that other protective measures be taken based on existing conditions and/or potential hazards. The preceding addition or remodel exception is limited to one permit per three-year period from the date of the last permit approval.

Sec. 903.2 (c) Group U Occupancies. For Group U Occupancies greater than 500 square feet attached to an R-3 occupancy, an approved automatic sprinkler system shall be installed as per NFPA 13D edition referenced in Chapter 80 CFC, or as approved by the FAHJ. This applies to NEW buildings, remodels or additions.

Sec. 903.2 (d) Group R and Group U Occupancies with ESS. When installed inside of a Group R & Group U Occupancies the attached and/or detached garage spaces shall comply with all of these conditions:

1. 1" water meter at the street serving the fire sprinkler system,
2. 1 hour rated enclosure in utility closets or spaces,
3. Fire sprinkler(s) design of .3/96 design as per NFPA 855.
4. Maximum 40kWh aggregate inside of garage.
5. All conditions in CFC 1207.11 through 1207.11.9 apply.

AMENDMENT TO SECTION 903.2

The Alpine, Bonita-Sunnyside, Lakeside, San Miguel Fire Protection Districts has adopted the following code amendment:

Sec. 903.2 Where required. Approved automatic sprinkler systems shall be installed in all new buildings. For the purpose of automatic sprinkler systems, buildings separated by less than 10 feet from adjacent buildings shall be considered one building. Fire barriers and partitions, regardless of rating, shall not be considered as creating separate buildings for purposes of determining automatic sprinkler system requirements. Mezzanines shall be included in the total square footage calculation. All new buildings constructed shall have an approved NFPA 13, NFPA 13R or NFPA 13D automatic sprinkler system installed as per 903.3.1.1, 903.3.1.2 or 903.3.1.3. The Fire Code Official has the final decision of which NFPA 13 standard to apply, as required due to access, water supply and travel time.

Exceptions:

1. Group U occupancies not greater than 500 square feet, and when the building is more than 10 feet from an adjacent building or property line measured from the farthest projection from the building and without ESS installed inside.
2. Agricultural buildings constructed of wood or metal frames over which fabric or similar material is stretched, which are specifically used as green houses are exempt from the automatic sprinkler system requirements unless physically connected to other building.

AMENDMENT TO SECTION 903.2 (RSF)

The Rancho Santa Fe Fire Protection District has adopted the following code amendment:

Sec. 903.2 Where required. Approved automatic sprinkler systems shall be installed in all new buildings. For the purpose of automatic sprinkler systems, buildings separated by less than 10 feet from adjacent buildings shall be considered one building. Fire barriers and partitions, regardless of rating, shall not be considered as creating separate buildings for purposes of determining automatic sprinkler system requirements. Mezzanines shall be included in the total square footage calculation. All new buildings constructed shall have an approved NFPA 13, NFPA 13R or NFPA 13D automatic sprinkler system installed as per 903.3.1.1, 903.3.1.2 or 903.3.1.3. The Fire Code Official has the final decision of which NFPA 13 standard to apply as required due to access, water supply and travel time. R-3 Occupancies over 6000 square feet shall be designed and installed to a more stringent sprinkler standard in accordance with the most recent edition referenced in Chapter 80 CFC.

Exceptions:

1. Group U occupancies not greater than 1200 square feet, when the building is 20 feet or more from an adjacent building and 30 feet from property line measured from the farthest projection from the building and without ESS installed inside.
2. Agricultural buildings constructed of wood or metal frames over which fabric or similar material is stretched, which are specifically used as green houses are exempt from the automatic sprinkler system requirements unless physically connected to other buildings.

AMENDMENT TO SECTION 903.2 (San Marcos)

The San Marcos Fire Protection District adopts the following code amendment:

17.64.180 Automatic Sprinkler System. Section 903.2 of the California Fire Code is referenced to read as follows:

An automatic sprinkler system shall be installed in occupancies and at locations as set forth in section 903.2 and listed in 17.64.190 and 17.64.200.

17.64.190 Automatic Sprinkler Systems - Commercial. Section 903.2 of the California Fire Code is referenced to read as follows:

An automatic sprinkler system shall be installed in Group A, B, E, S, F & M occupancies.

AUTOMATIC SPRINKLER SYSTEMS - COMMERCIAL

The Fire Chief shall require the installation of an automatic sprinkler system meeting California Building and Fire Code when any one of the following conditions exist:

- (1) In all Group A, B, E, S, F & M, commercial buildings hereinafter constructed when the square footage exceeds 5,000 square feet or 34 feet in height.
- (2) When Fire Department travel time exceeds five (5) minutes from the closest fire station to any building. (Time tests will be conducted by the Fire Department based on established testing procedures).

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; amended by Ord. No. 10014 (N.S.), effective 11-13-09; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.903.4.1. ELECTRONIC SUPERVISION.

Section 903.4.1 of the California Fire Code is revised to read:

Sec. 903.4.1 Electronic Supervision. Valves controlling the water supply for automatic sprinkler systems, pumps, tanks, water levels and temperatures, critical air pressures and water-flow switches on all automatic sprinkler systems shall be electronically supervised by a listed fire alarm control unit.

Exceptions:

1. Automatic sprinkler systems with less than 100 fire sprinklers protecting one-family and two-family dwellings and Group U occupancies.
2. Limited area sprinkler systems in accordance with Section 903.3.8.
3. Automatic sprinkler systems installed in accordance with NFPA 13R edition referenced in Chapter 80 CFC. Where a common supply main is used to supply both domestic water and the automatic sprinkler system and a separate control valve for the automatic sprinkler system is not provided.
4. Jockey pump control valves that are sealed or locked in the open position.
5. Control valves to commercial kitchen hoods, paint spray booths or dip tanks that are sealed or locked in the open position.
6. Valves controlling the fuel supply to fire pump engines that are sealed or locked in the open position.
7. Trim valves to pressure switches in dry, pre-action and deluge sprinkler systems that are sealed or locked in the open position.

position.

8. Underground key or hub gate valves in roadway boxes.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.1205.5. GROUND-MOUNTED PHOTOVOLTAIC ARRAYS.

Section 1205.5 of the California Fire Code is revised to read:

Sec. 1205.5 Ground-mounted photovoltaic arrays. Ground-mounted photovoltaic array installations shall meet the requirements of sections 1205.5.1 through 1205.5.4.

Sec. 1205.5.1 Fire apparatus access roads. Fire apparatus access roads to ground-mounted photovoltaic arrays, associated equipment structures and operations/maintenance buildings shall comply with section 503.

Exception: Private residential and agricultural where the energy generated is primarily for on-site use are exempt from this requirement subject to the approval of the fire code official.

Sec. 1205.5.2 Perimeter fire apparatus access roadway. Ground-mounted photovoltaic arrays 10 acres or larger in size shall provide a fire apparatus access roadway around the perimeter of the project. The perimeter fire apparatus access roadway shall comply with section 503.

Sec. 1205.5.3 Fuel modification. Combustible vegetation within the array and to a distance of 30 feet from the array and associated equipment shall be reduced to a height of no more than 6 inches. The fuel modification zone may be increased when required by the fire code official.

Exception: For private residential and agricultural where the energy generated is used primarily on-site, the required fuel modification zone may be reduced to 10 feet from the array and associated equipment.

Operation/maintenance buildings shall be provided with fuel modification zones that comply with Section 6 in Part 7 California Wildland Urban Interface Code.

Sec. 1205.5.4 Water supply. Water supply for fire protection and suppression shall be provided for equipment structures and operations/maintenance buildings as required by section 507.

Sec. 1205.6 Identification. Ground-mounted photovoltaic arrays with multiple equipment structures shall include a means of readily identifying each equipment structure. The fire code official may require a lighted directory map of the project to be installed on-site near the entrance to the facility for projects of 10 or more acres in size.

(Added by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.2808. STORAGE AND PROCESSING OF WOOD CHIPS, HOGGED MATERIAL, FINES, COMPOST, SOLID BIOMASS FEEDSTOCK AND RAW PRODUCT ASSOCIATED WITH YARD WASTE, AGRO- INDUSTRIAL AND RECYCLING FACILITIES.

Section 2808 of the California Fire Code is revised to read:

Sec. 2808.1 General. The storage and processing (mulching, composting) of wood chips, hogged materials, fines, compost, solid biomass feedstock and raw product produced from yard waste, debris and agro-industrial and recycling facilities shall be in accordance with section 2808.1 through 2808.10.10.

Sec. 2808.2 Storage sites. Storage sites shall be level and on solid ground or other approved all-weather surface.

Sec. 2808.3 Size of piles. Pile height, width and length shall be limited to criteria approved by the fire code official, based in part on the site material handling equipment. In no case shall a pile exceed 12 feet in height, 100 feet in width and 200 feet in length.

Sec. 2808.4 Pile separation. Piles shall be separated from adjacent piles and property lines by fire department access roadways.

Sec. 2808.5 Combustible vegetation control. The operator shall clear any combustible material, weeds, brush, trees or other vegetation (including mulch) that is or may become, dry and capable of transmitting fire, from within 50 feet of raw greenwaste and mulch piles. Clearance shall be to bare earth or approved pavement. Individual growing trees within that distance may remain, subject to the fire code official's approval.

Sec. 2808.6 Static pile protection. Interior pile temperatures shall be monitored and recorded on a regular basis per the Operational Plan. Internal pile temperatures shall be taken at 2/3 the pile height, 12 to 24 inches from the surface with a probe-type thermometer. Readings shall be made at not greater than 50-foot intervals along the length of the pile. Temperatures above 158° F are known to adversely affect microbial decomposition and are considered excessive. Infrared thermometers may be used to monitor for hot spots at the surface, but are not a substitute for internal probe measurement and documentation. Once windrows exceed 170° F, the windrows shall be reduced in size, be rotated and be monitored

daily until temperatures drop below 158° F. All greenwaste stockpiles shall be re-mixed as necessary to alleviate any fire due to spontaneous combustion or temperatures above 170° F. Windrows shall be visually inspected on a regular basis. Once fires have been detected in any windrows at a site, this visual inspection shall be a minimum daily requirement. Daily inspections shall continue until the threat of fire no longer exists and the fire code official agrees inspections may be discontinued. All temperature and pile-handling records shall be kept on file at the site and be made available for inspection by fire department personnel. Data shall include date, time, temperature, specific location and person conducting measurement.

Sec. 2808.7 Firefighting water supplies and storage. Firefighting water supplies shall conform to sections 2808.7.1 or 2808.7.2.

Sec. 2808.7.1 Public water supply. The operator shall provide and maintain approved fire hydrants and waterline mains as required by the fire code official. Water lines may be approved aboveground lines supplied from a reliable water supply with adequate protection against impact and fire flow reaction. Hydrant spacing shall be at 400-foot intervals along primary fire access roadways. Fire flow at each hydrant shall be least 1000 gallons per minute at 20 psi. Duration of the required fireflow shall be as determined by the fire code official.

Sec. 2808.7.2 Private water supply. Above-ground water storage tanks may be installed when authorized by the fire code official where public water supply is not adequate to meet fire flow requirements. Volume and duration of the required fireflow shall be as determined by the fire code official.

Sec. 2808.8 Fire Extinguishers: Shall be provided as per Section 906 of the California Fire Code and rated for Extra- High Hazard with travel distance not to exceed 50'

Sec. 2808.9 Material-handling equipment. Equipment used on all piles should be of a type that minimizes compaction. All vehicles operating on or around the piles shall have a Class A fire extinguisher of a minimum 2-A rating, in addition to the Class B rating appropriate for the vehicles. Approved material-handling equipment shall be available during fire fighting operations for moving wood chips, hogged material, compost and raw product produced from yard waste and wood fines.

Sec. 2808.10 Operational and emergency plans. The following operational and emergency action plans shall be submitted to and be approved by the fire code official prior to initiating an operation under section 2808.10 through 2808.10.10:

1. **Operational Plan.** The operational plan shall include: Site layout, pile dimensions, fire access, water supply, site security, site operations, temperature monitoring, rotation and diversion plan.

2. **Emergency Plan.** The emergency plan shall include: Operator fire response actions, fire dispersal area, emergency equipment operator callback and initiation of incoming diversion plan. All plans shall define the equipment necessary to process and handle the materials.

Sec. 2808.10.1 Permit required. A permit shall be obtained from the fire code official prior to engaging in the operation and storing process of wood chips, hogged material, fines, compost and raw product in association with yard waste and similar material recycling facilities. The permit shall be renewed on an annual basis or shall be limited to such period of time as designated by the fire code official. Permits shall not be transferable and any change in use, location, occupancy, operation or ownership shall require a new permit.

Sec. 2808.10.2 Financial assurance for cost recovery. A security bond, irrevocable letter of credit or other approved form of financial assurance shall be required to be posted, in an amount determined by the fire code official. The financial assurance shall be a minimum of \$25,000.00 and a maximum of \$100,000.00, depending on the size of operation. The financial assurance shall reimburse the fire department for expenses incurred in any emergency response and/or enforcement action by the fire department to protect the public from fire or hazardous substances related to the operation. The financial assurance shall be returned to the operator in a timely fashion once the operation is closed, to the satisfaction of the fire code official.

Sec. 2808.10.3 Notification of fire department. The operator shall report all fires to the fire department immediately upon discovery.

Sec. 2808.10.4 Equipment operator emergency callback. The operator shall implement and maintain a plan for rapid equipment operator response to the site. The maximum response time to the site shall be within one hour of a fire department notification. The following equipment shall be on site and staffed with skilled operators: bulldozer, loaders and heavy duty equipment necessary to mitigate a fire. Notification procedure shall be maintained operational 24 hours a day, seven days a week. Notification may be by pager activation, telephone answering service, or other approved means.

Sec. 2808.10.5 Incoming waste diversion plan. The operator shall develop a diversion plan for incoming greenwaste for implementation in the event of equipment failure or other inability to process and distribute greenwaste. The plan shall prevent stockpiling of waste on the site and unauthorized depositing of waste on or near the site. The operator shall initiate the diversion plan based on criteria in the Operational and Emergency Plan without further direction from the fire department.

Sec. 2808.10.6 Unprocessable or non-greenwaste material. All greenwaste that cannot be processed on-site, such as stumps and fibrous plants, shall be immediately removed from the feedstock, stored in roll-off containers or bins and be removed from the facility on a weekly basis. All plastic bags shall be removed prior to shredding material.

Sec. 2808.10.7 Fire access roadway. A fire access roadway shall be provided to the site and on the site. Each roadway

shall be at least 20 feet wide, but the fire code official may require a greater width, depending on site conditions. The operator shall also be required to obtain the fire code official's approval for the type of driving surface for the onsite access roadway.

Sec. 2808.10.8 General safety rules for site equipment maintenance. Welding or cutting torch operations shall be conducted a minimum of 30 feet from combustible materials. A fire watch shall be provided to detect fire, and to operate fire-extinguishing equipment throughout the welding or cutting operation and 30 minutes thereafter. Refueling and on-site maintenance shall meet California Fire Code requirements in Chapters 23 & 57 and all other applicable fire code requirements.

Sec. 2808.10.9 Site security. Pile storage areas shall be surrounded with approved fencing. Fences shall be a minimum of 6 feet in height.

Sec. 2808.10.10 Smoking and open burning prohibited. The operator shall prohibit smoking and open flame on the operational site, including smoking within vehicles. Approved signs shall be clearly and prominently posted, and shall be enforced by the site operators. No open burning shall be allowed on site.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.3313. FUEL MODIFICATION ZONE REQUIREMENTS.

Section 3313 is added to the California Fire Code to read:

Sec. 3313.1 Fuel modification zone during construction. Any person doing construction of any kind which requires a permit under this code or the County Building Code shall install a fuel modification zone prior to allowing any combustible material to arrive on the site and shall maintain the zone during the duration of the project.

(Added by Ord. No. 9915 (N.S.), effective 1-30-08; repealed and reenacted by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.5607.16. EXPLOSIVES AND FIREWORKS -APPLICABILITY.

Section 5607.16 is added to the California Fire Code to read:

Sec. 5607.16.1 Applicability. This section shall apply to the manufacture, possession, storage, sale, transportation and use of explosives and blasting agents and to any blasting operation in the unincorporated area of the County. The Sheriff is the Issuing Officer for purposes of this section. The Sheriff may delegate the duties of Issuing Officer at her or his discretion. Additionally, as may be appropriate based on circumstances, the Issuing Officer may enter into memoranda of agreement with non-County fire agencies whereby such non-County agency will assume the duties of issuing a permit or permits required by this Chapter. The Issuing Officer shall determine whether a blast is a major blast or a minor blast under this section. A minor blast is subject to all conditions of this section except the inspection requirements.

Sec. 5607.16.2 Definitions. The following terms are defined in section 202:

BLASTER.

BLASTING AGENT.

BLASTING OPERATION.

BLASTING PERMIT.

BLAST SITE.

EXPLOSIVES PERMIT.

INSPECTOR.

MAJOR BLASTING.

MINOR BLASTING.

Sec. 5607.16.2.1 Application. Application for a permit required by this section shall be in the form required by the Issuing Officer.

Sec. 5607.16.3 Permit requirements. No person shall conduct blasting in the unincorporated area of the County without an explosives permit issued under this chapter. A person applying for an explosives permit shall, in addition to demonstrating compliance with fire safety requirements also comply with all County requirements for any building permits, grading permits, use permits, encroachment permits and all other entitlements to use property, including zoning requirements and any determination under the Zoning Ordinance of non-conforming status. The applicant shall be responsible for providing proof of all necessary approvals when requested by the Issuing Officer.

AMENDMENT TO SECTION 5607.16.3.1

The Alpine, Lakeside, North County, Rincon Del Diablo, San Marcos, San Miguel, Valley Center and Vista Fire Protection Districts adopt the following code amendment:

Sec. 5607.16.3.1 Blasting permit required. In addition to obtaining an explosives permit, no person shall conduct blasting without first obtaining a blasting permit. The applicant shall be responsible for providing proof of all necessary approvals when requested by the Issuing Officer.

Sec. 5607.16.3.2 Permit conditions. The Issuing Officer may impose conditions and procedures as are deemed reasonably necessary to protect the public health and safety based upon the facts and circumstances of a particular blasting operation. The permit conditions shall be in writing. Failure to comply with any permit condition is grounds for revocation of the permit. A blaster may request the Issuing Officer release the blaster from any permit condition if circumstances have changed that make the condition no longer applicable. In addition to complying with the County blasting regulations, a blaster shall also comply with blasting regulations of neighboring jurisdictions, for any blasting operations outside of the unincorporated area of the County conducted in conjunction with a project within the unincorporated areas of the County.

Sec. 5607.16.3.3 Insurance and indemnification required. As an additional condition for obtaining an explosives permit the applicant shall submit: (1) a certificate of insurance evidencing that the blaster has obtained a general liability insurance policy which includes coverage for explosion, collapse and underground property damage from an insurer satisfactory to the Issuing Officer, that is in effect for the period covered by the permit, written on an "occurrence" basis, in an amount of not less than \$500,000 per each occurrence, naming the County and the FAHJ as an additional insured and providing that the policy will not be canceled or terminated without 30 days prior written notice to the County and (2) an agreement signed by the blaster agreeing to defend, indemnify and hold the County and its agents, officers and employees harmless from any claims or actions arising from the issuance of the permit or any blasting activity conducted under the permit.

Sec. 5607.16.3.4 Blasting hours. Blasting shall only be allowed Monday through Saturday, between the hours of 7:00 a.m. and 6:00 p.m. or ½ hour before sunset, whichever occurs first, unless special circumstances warrant another time or day and the Issuing Officer grants approval of the change in time or day.

Sec. 5607.16.3.5 Additional operational requirements. The owner of any property in the unincorporated area of the County on which any blasting is intended to occur, shall give, or cause to be given, a one-time notice in writing, for any proposed blasting to the local fire agency and dispatch center and to all residences, including mobile homes, and businesses within 600 feet of any potential major blast location or 300 feet from any potential minor blast location. The notice shall be given not less than 24 hours, but not more than one week, before a blasting operation and shall be in a form approved by the Issuing Officer. The minimum 24-hour notice requirement may be reduced to a lesser period but not less than one hour if the Issuing Officer determines that special circumstances warrant the reduction in time. Adequate precautions shall be taken to reasonably safeguard persons and property before, during and after blasting operations. These precautions shall include:

1. The blaster shall retain an inspector to inspect all buildings and structures, including mobile homes, within 300 feet of the blast site before blasting operations, unless inspection is waived by the owner and/or occupant. The inspector shall obtain permission of the owner and/or occupant before conducting the inspection. The inspection shall be only for the purpose of determining the existence of any visible or reasonably recognizable preexisting defects or damages in any building and structure. Waiver of inspection shall be in writing signed by the owner and/or occupant. Refusal to allow inspection shall also constitute a waiver. The inspector shall notify the owner and/or occupant of the consequences of refusing an inspection shall include a refusal in the summary report filed with the Issuing Officer. The blaster shall request an inspector conduct post-blast inspections upon receipt of a written complaint of property damage if the complaint is made within 60 days of completion of blasting operations. If the blaster has knowledge of alleged property damage independent of the written complaint, the blaster shall also retain an inspector to conduct a post-blast inspection.

2. An inspector shall complete and sign pre-blast inspection reports identifying all findings and inspection waivers. The blaster shall retain the inspection reports for three years from the date of the blasting and upon a complaint of alleged damage the blaster shall immediately file a copy of the report with the Issuing Officer and provide a copy to the complainant. If there is a change in the blasting contractor after blasting has commenced on a project, a re-inspection shall be conducted in accordance with the preceding paragraph before the new blasting contractor undertakes any additional blasting.

3. The blaster shall retain an inspector to conduct a post-blast inspection of any building and structure for which a written complaint alleging blast damage has been received. A written report of the inspection shall be immediately filed with the Issuing Officer and provided to any person who made a complaint for damages.

4. The blaster shall allow any representative of the Issuing Officer to inspect the blast site and blast materials or explosives at any reasonable time.

5. If the blaster wants a representative of the Issuing Officer to witness a blasting operation the blaster shall make a request with the Issuing Officer at least 12 hours before the blast. The blaster shall confirm the request for a witness with the Issuing Officer at least one hour before the blast. The blaster shall be responsible for any cost incurred by the Issuing Officer in having a representative witness the blast.

6. The blaster shall notify the Issuing Officer on the day of a scheduled blasting operation not less than one hour before

blasting.

7. All major blasting operations shall be monitored by an approved seismograph located at the nearest building and structure within 600 feet of the blasting operation. All daily seismograph reports shall be maintained by the blaster for three years from the blasting.

Sec. 5607.16.3.6 Seizure of illegal items. The Issuing Officer may seize at the owner's expense, all explosives, ammunition or blasting agents, which are illegally manufactured, sold, offered or exposed for sale, delivered, stored, possessed or transported in violation of this chapter.

Sec. 5607.16.3.7 Violations for false or misleading information. It shall be unlawful and a violation of this chapter for any person to provide false or misleading information or documentation to the County or any of its officers or employees or to any fire department, fire protection district, fire company or legally formed volunteer fire department, or its officers or employees in the unincorporated area of the County, having jurisdiction over any aspect of the explosives or blasting permit process or blasting operations.

Sec. 5607.16.3.8 Fees. A person applying to the Issuing Officer to be approved as a blaster or inspector, as defined in this section, shall pay an application fee to the Issuing Officer. A person applying for an explosives permit under this section shall pay the fee established by the Issuing Officer with the application. The amount of any fee required by this chapter shall be determined by the Issuing Officer on the basis of the full costs involved in processing an application.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.5608.1. FIREWORKS DISPLAY.

Section 5608.1 of the California Fire Code is revised to read:

Sec. 5608.1 General. Outdoor fireworks displays, use of pyrotechnics before a proximate audience and pyrotechnic special effects in motion picture, television, theatrical and group entertainment productions shall comply with California Code of Regulations, Title 19, Chapter 6 Fireworks and County Code sections 32.101 et seq. The Fire Warden is the Issuing Officer for any fireworks permit required by this Chapter. The Fire Warden may delegate the duties of Issuing Officer at her or his discretion. Additionally, as may be appropriate based on circumstances, the Issuing Officer may enter into memoranda of agreement with non-County fire agencies whereby such non-County agency will assume the duties of issuing a permit or permits required by this Chapter.

Sec. 5608.1.1 Scope. The possession, manufacture, sale, storage, use and display of fireworks are prohibited in the unincorporated area of the County except as provided in County Code sections 32.101 et seq.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.5706.2.5.2. TANKS FOR GRAVITY DISCHARGE.

Section 5706.2.5.2.1 is added to the California Fire Code to read:

Sec. 5706.2.5.2.1 Limitations on tanks for gravity discharge. Gravity dispensing of Class I or II liquids or Class III liquids that are heated up to or above their flash points is prohibited. Dispensing devices for flammable and combustible liquids shall be of an approved type. Approved pumps taking suction from the top of the tank shall be used. Flammable or combustible liquids shall not be dispensed by a device that operates through pressure within a storage tank. Air or oxygen shall not be used to pressurize an aboveground tank.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.5706.2.8.2. PROHIBITION ON USE OF TANK VEHICLE.

Section 5706.2.8.2 is added to the California Fire Code to read:

Sec. 5706.2.8.2 Tank vehicle as a substitute for permanent tank prohibited. The use of a tank vehicle in a stationary manner as a substitute for an approved above-ground or below-ground fuel tank is prohibited.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.8001. REFERENCED STANDARDS.

Section 8001 is added to the California Fire Code to read:

Sec. 8001 Referenced standard NFPA 13D. Referenced sections as follows:

Revise 5.1.1.2 to read as follows:

NFPA 13D 5.1.1.2 Spare sprinkler heads. Spare fire sprinkler heads (one of each type or as approved by the FAHJ) wrench, inspectors test key and operation and maintenance instructions shall be provided in the vicinity of the riser.

The Rancho Santa Fe Fire and Valley Center Fire Protection Districts revise the following section to read as follows:

NFPA 13D 7.2.5 (RSF) Inspector Test. Each automatic sprinkler system shall have a ½" or larger test connection with a threaded keyless valve. The valve shall be remote to the riser, located on the building exterior about five 5 feet above final grade. It shall be labeled with a permanent plate with minimum ¼" lettering, contrasting with background, and stating: "INSPECTOR TEST". (Pre-assembled riser assemblies with a built-in Drain/Test valve shall not be accepted for inspector test valve unless approved by the FAHJ.)

Add a new 7.3.4 to read as follows:

NFPA 13D 7.3.4 Pressure gauge. An approved 300 psi pressure gauge shall be permanently installed at the riser.

Revise 7.6 to read as follows:

NFPA 13D 7.6 Alarms. A water flow switch shall be provided and located on the sprinkler riser above the check valve and main drain and shall actuate an audible fire alarm signal bell and may be required to be interconnected to the interior smoke alarms. The water flow switch shall be a retarding type with a delay between 15-60 seconds before activation of the signal bell. Alarm bell shall have a minimum diameter of 8 inches and be mounted on the exterior in the vicinity of the master bedroom. The alarm bell shall be clearly audible in all bedrooms with intervening doors closed.

Revise 8.3.2 to read as follows:

NFPA 13D 8.3.2 Sprinklers are not required in bathrooms where the area does not exceed 55 sq. ft. unless there is door exiting directly to the outside, and the walls and ceilings including behind fixtures, are of noncombustible or limited combustible materials providing a fifteen-minute thermal barrier.

The Rancho Santa Fe Fire Protection District revises the following section to read as follows:

NFPA 13D 8.3.3 (RSF) Sprinklers shall not be required in clothes closets, linen closets, and pantries that meet the following conditions:

1. The area of the space does not exceed 24 sq. ft.
2. The shortest dimension does not exceed 3 ft.
3. The walls and ceilings are surfaced with noncombustible or limited-combustible materials as defined in NFPA 220.
4. The closet does not contain any type of electrical items such as light fixtures, electrical outlets or low voltage equipment.

The Rancho Santa Fe, Rincon Del Diablo Fire Protection Districts revise the following section to read as follows:

NFPA 13D 8.3.4 (RSF) Sprinklers shall be installed in garages, carports and similar structures unless they meet the exception in Sec. 903.2.

Revise 8.3.4 to read as follows:

NFPA 13D 8.3.4 Sprinklers may be omitted from carports and open attached porches. However, attached garages shall be protected with intermediate temperature rated sprinklers. Sprinkler heads in garages shall be protected against mechanical damage by approved guards, unless recessed heads are provided. Garage doors may be disregarded in the layout of the automatic sprinkler system.

Revise 8.3.5.1.1 to read as follows:

NFPA 13D 8.3.5.1.1 Where the fuel-fired equipment is above all of the occupied areas of the dwelling unit, at least one quick-response intermediate temperature sprinkler shall be installed above the equipment.

The Rancho Santa Fe Fire Protection District adds the following section to read as follows:

NFPA 13D 8.3.11 (RSF) Sprinklers shall be installed in saunas and wine rooms.

Add a new 10.2.4.1 to read as follows:

NFPA 13D 10.2.4.1 3-Head Calculation. When design conditions exceed the allowances of sec. 10.2, a 3-head

calculation may be required by the FAHJ.

Add a new 10.2.5 to read as follows:

NFPA 13D 10.2.5 Pressure Cushion. The system shall be designed 10% below available water source pressure during peak usage.

Revise 11.2.1.1 to read as follows:

NFPA 13D 11.2.1.1 Hydrostatic Tests. Where a fire department connection is not provided, the system shall be hydrostatically tested at 200 psi for 2 hours.

Revised 12.3.6 to read as follows:

NFPA 13D 12.3.6 Inactive Systems. When automatic sprinkler systems are shut-off or otherwise inoperative for periods greater than 48 hours for repair of service, the FAHJ must be notified immediately.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; amended by Ord. No. 10356 (N.S.), effective 11-20-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.APP.B103.3. AREAS WITHOUT WATER SUPPLY SYSTEMS.

Appendix B, section B103.3 of the California Fire Code is revised to read:

B103.3 Areas without water supply systems. For information regarding water supplies for fire-fighting purposes in rural areas and suburban areas in which adequate and reliable water supplies do not exist, the fire code official is authorized to utilize NFPA 1142 or the standard published by the Insurance Services Office document entitled "Guide for Determination of Required Fire Flow."

The Rancho Santa Fe Fire Protection District revises the following sections to read as follows:

Revised Table B105.1 to read as follows:

B105.1 One-and-two Family Dwelling, Group R-3 and R-4 Buildings and Townhouses			
FIRE-FLOW CALCULATION AREA (square feet)	AUTOMATIC SPRINKLER SYSTEM (Design Standard)	MINIMUM FIRE FLOW (gallons per minute)	FLOW DURATION (hours)
0 — 3600	No automatic sprinkler system	1,000	1
3601 — and greater	No automatic sprinkler system	Value in Table B105.1(2)	Duration in Table B105.1(2) at the required fire-flow rate
0 — 3600	Section 903.3.1.3 CFC	75% of Value in Table B105.1(2)	Duration in Table B105.1(2) at the reduced flow rate.
3601 — and greater	Section 903.3.1.3 CFC	75% of Value in Table B105.1(2)	Duration in Table B105.1(2) at the reduced flow rate.

Revised Table B105.2 to read as follows:

TABLE B105.2 - Required Fire Flow for Buildings other than one- and two-family dwellings, Group R-3 and R-4 Buildings and Townhouses		
AUTOMATIC SPRINKLER SYSTEM (DESIGN STANDARD)	MINIMUM FIRE FLOW (GALLONS PER MINUTE)	FLOW DURATION (HOURS)
No Automatic sprinkler system	Value in Table B105.1(2)	Duration in Table B105.1(2)
Section 903.3.1.1 of the CFC	75% of the value in Table B105.1(2) ^a	Duration in Table B105.1(2) at the reduced flow rate
Section 903.3.1.2 of the CFC	75% of the value in Table B105.1(2) ^b	Duration in Table B105.1(2) at the reduced flow rate
a – The reduced flow rate shall be not less than 1,000 gallons per minute		
b – The reduced flow rate shall be not less than 1,500 gallons per minute		

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.APP.H100. REPORTING FORMS.



Publisher's Note: This Section has been **AMENDED** by new legislation (Ord. [11006](#), adopted 6-10-2026). The text of the amendment will be incorporated below when the ordinance is codified.

Appendix H, sec. H100 is added to the California Fire Code to read:

SECTION H100

REPORTING FORMS

H100.1 Reporting forms. Hazardous Materials reporting forms currently adopted by San Diego County Department of Environmental Health Hazardous Materials Management Unit which cover the same areas as forms contained in this Appendix are adopted by reference and take precedence over this Appendix.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; amended by Ord. No. 10709 (N.S.), effective 1-15-21; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; amended by Ord. No. 10966 (N.S.), effective 12-18-25; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

SEC. 96.1.007. EFFECTIVE DATE.

This ordinance shall take effect and be in force thirty days after the date of its passage and before the expiration of fifteen days after its passage, a summary hereof shall be published once with the names of the members of this Board voting for and against it in the San Diego Commerce, a newspaper of general circulation published in the County of San Diego.

(Added by Ord. No. 10337 (N.S.), effective 6-19-14; repealed and reenacted by Ord. No. 10465 (N.S.), effective 4-14-17; repealed and reenacted by Ord. No. 10659 (N.S.), effective 3-26-20; repealed and reenacted by Ord. No. 10833 (N.S.), effective 4-13-23; repealed and reenacted by Ord. No. 10976 (N.S.), effective 4-2-26)

CHAPTER 2.

WILDLAND-URBAN INTERFACE CODE

SEC. 96.2.001. ADOPTION OF COUNTY AMENDMENTS TO THE CALIFORNIA WUI CODE.

Every three years the State of California repeals, revises and republishes the California Building Standards Code ("CBSC") in its entirety and in doing so adopts and publishes amendments to the included California WUI Code (California Code of Regulations, Title 24, Part 7). Pursuant to California Health & Safety Code section 17958, the CBSC and its California WUI Code become effective in the County of San Diego 180 days after publication. California Health and Safety Code sections 17922, 17958, 17958.5 and 17958.7 provide that the County may adopt the California WUI Code by reference as the County's own code and make such changes or modifications that the Board of Supervisors expressly finds are reasonably necessary because of local climatic, geological or topographical conditions. In this chapter, the County adopts modifications and changes to the WUI Code portion of the CBSC that are reasonably necessary because of the County's climatic, geological and topographical conditions.

The County adopts as the County WUI Code, for the unincorporated area of the County, the following:

- (1) The 2025 California WUI Code (California WUIC) portion of the CBSC,
- (2) the 2024 International WUI Code (IWUIC) and
- (3) the County's amendments in this chapter.

To determine which of these codes governs in any particular case, code amendments adopted by the State of California shall take precedence over the 2024 IWUIC, and the 2024 IWUIC shall be used for those code sections not adopted by the State. Amendments the County adopts shall take precedence over both the 2024 IWUIC and 2025 California WUI Code provisions. Where this Chapter states that a provision of the California WUI Code is revised, referenced, changed, deleted, added or otherwise modified, that means revised, referenced, changed, deleted, added or otherwise modified as it is

incorporated into this Chapter.

This County WUI Code is adopted for the protection of the public health and safety and applies to both ministerial and discretionary projects. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings, structures and premises, including the installation, alteration or repair of new and existing fire protection systems and their inspection and provides penalties for violation of this code. It shall apply to all new construction and to any alterations, repairs, or reconstruction, except as otherwise provided for in this chapter.

Nothing in this chapter shall interfere with or impede the authority of the final decision maker authorized to approve, conditionally approve or deny discretionary projects.

AMENDMENT TO SECTION 96.2.001

Each of the fire protection districts to which this consolidated fire code applies adopt the following code amendment:

Section 1. That the Board of Directors of the San Diego County Fire Protection District adopts as the WUI Code for the San Diego County Fire Protection District the following: the 2025 California WUI Code and Appendices F & G, the 2024 International WUI Code (IWUIC, together with the District's amendments in this ordinance. This WUI Code is adopted for the protection of the public health and safety. It includes definitions, provisions for the safeguarding of life and property from wildfires, life or property in the occupancy of buildings, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including the installation, alteration or repair of new and existing fire protection systems and their inspection and provides penalties for violation of this code. Each and all of the regulations, provisions, penalties, conditions and terms of the San Diego County Fire Protection District WUI Code on file in the office of the San Diego County Fire Protection District are hereby referred to, adopted, and made a part hereof, as if fully set out in this ordinance.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.002. CALIFORNIA WUI CODE.

The "California WUI Code" means the 2025 California Wildland Urban Interface Code portion of the CBSC, including the IWUIC (2024 edition).

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.003. COUNTY WUI CODE.

References to "this chapter" shall mean the County WUI Code. References to a section number not preceded by the prefix "96.2," which stands for the title, division and chapter respectively of a section in this chapter, shall refer to the California WUI Code.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.006. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California WUI Code, the digits following the first three digits of the section numbers in this chapter refer to conform to the numbering system of the California WUI Code: e.g., SEC. 96.2.302.1 refers to Chapter 3 Section 302.1 of the California WUI Code. When deletions, revisions and additions are made to an appendix of the California WUI Code, "APP" is added to the number: e.g., section SEC. 96.2.APP.G101.2 refers to Appendix Chapter G, Section 101.2 of the California WUI Code.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.1.1.12. VALIDITY.

Section 1.1.12 of the California WUI Code is revised to read:

If any chapter, section, subsection, sentence, clause, or phrase of this code is for any reason held to be unconstitutional, contrary to statute, exceeding the authority of the state as stipulated by statutes, or otherwise inoperative, such decision shall not affect the validity of the remaining portion of this code. The Board of Supervisors declares that should any section, paragraph, sentence or word of this chapter be declared invalid for any reason it is the intent of this Board that it would have passed all other portions of this chapter independently of any portion that may be declared invalid.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

DIVISION II SCOPE AND ADMINISTRATION

PART 1—GENERAL PROVISIONS

SEC. 96.2.101. SCOPE AND GENERAL REQUIREMENTS.

Sec. 101.1 Title. These regulations shall be known as the California Wildland-Urban Interface Code of the San Diego County Fire Protection District, hereinafter referred to as "this code."

Sec. 101.2 Scope. This code applies to building materials, systems and/or assemblies used in the exterior design and construction of new buildings located within a Wildland-Urban Interface (WUI) Area and contains minimum requirements to mitigate conditions that might cause a fire originating in a structure to ignite vegetation in the Wildland-Urban Interface (WUI) area, and conversely, a wildfire burning in vegetative fuels to transmit fire to buildings and threaten to destroy life, overwhelm fire suppression capabilities or result in large property losses.

Sec. 101.3.1 Application. New buildings located in any Fire Hazard Severity Zone or Wildland-Urban Interface (WUI) Fire Area designated by the enforcing agency constructed after the application date shall comply with the provisions of this code. This shall include all new buildings with residential, commercial, educational, institutional or similar occupancy type use, which shall be referred to in this code as "applicable buildings", as well as new buildings and structures accessory to those applicable buildings

Exceptions:

1. Group U occupancy accessory buildings of any size located at least 50 feet (15 240 mm) from an applicable building on the same lot.
2. Group U occupancy agricultural buildings, as defined in Section 202 of the California Building Code of any size located at least 50 feet (15 240 mm) from an applicable building.
3. Group C occupancy special buildings conforming to the limitations specified in Section 450.4.1 of the California Building Code.
4. New accessory buildings and miscellaneous structures specified in Section 504.11 shall comply only with the requirements of that section.
5. Additions to and remodels of buildings originally constructed prior to July 1, 2008.

Sec. 101.3.1.1 Application date and where required. New buildings for which an application for a building permit is submitted on or after July 1, 2008, located in any Fire Hazard Severity Zone or Wildland-Urban Interface Area shall comply with this code, including all of the following areas:

All unincorporated lands designated by the State Board of Forestry and Fire Protection as State Responsibility Area (SRA) including:

Moderate Fire Hazard Severity Zones.

High Fire Hazard Severity Zones.

Very-High Fire Hazard Severity Zones.

Land designated as a Very-High Fire Hazard Severity Zone by cities and other local agencies.

Land designated as a Wildland-Urban Interface Area by cities and other local agencies.

Exceptions:

1. New buildings located in any Fire Hazard Severity Zone within a State Responsibility Area, for which an application for a building permit is submitted on or after January 1, 2008, shall comply with this code.
2. New buildings located in any Fire Hazard Severity Zone within a State Responsibility Area or any Wildland-Urban Interface Area designated by cities and other local agencies for which an application for a building permit is submitted on or after December 1, 2005, but prior to July 1, 2008, shall only comply with the following sections of this chapter:
 - 2.1 Section 507.1 - Roofing.
 - 2.2 Section 504.10 - Attic Ventilation.

Sec. 101.6 Maintenance. Buildings, structures, landscape materials, vegetation, defensible space, or other devices or safeguards required by this code shall be maintained in conformance with the code edition under which installed. The owner or the owner's authorized agent shall be responsible for the maintenance of buildings, structures, landscape materials, and vegetation.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.102. APPLICABILITY.

Sec. 102.1 General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern. Where, in any specific case, different sections of this code specify different materials, methods of construction, or other requirements, the most restrictive shall govern.

Sec. 102.2 Other laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law.

Sec. 102.6 Matters not provided for. Requirements that are essential for the public safety of an existing or proposed activity, building, or structure, or for the safety of the occupants thereof, which are not specifically provided for by this code, shall be determined by the code official consistent with the necessity to establish the minimum requirements to safeguard the public health, safety, and general welfare.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.102.14. REPEAL OF CONFLICTING ORDINANCES, RESOLUTIONS OR MOTIONS.

Section 102.14 is added to the California WUI Code to read:

Sec. 102.14 Repeal of conflicting ordinances, resolutions or motions. All former ordinances, resolutions or motions or parts thereof, conflicting or inconsistent with the provisions of this chapter are repealed.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.103.1. CREATION OF AGENCY.

Section 103.1 is added to the California WUI code and reads as follows:

Sec. 103.1 Creation of Agency. The San Diego County Fire Protection District is hereby created and the official in charge thereof shall be known as the code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

PART 2—ADMINISTRATION AND ENFORCEMENT

SEC. 96.2.104. DUTIES AND POWERS OF THE CODE OFFICIAL.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.104.2.3. MODIFICATIONS.

Section 104.2.3 of the California WUI Code is revised to read:

Sec. 104.2.3 Modifications. Where there are practical difficulties involved in carrying out the provisions of this code, the fire code official shall have the authority to grant modifications in accordance with Section 104.2.3.1

Sec. 104.2.3.1 Individual cases, The fire code official shall have the authority to grant modifications for individual cases, provided the fire code official shall first find that special individual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, life and fire safety requirements. The applicant's request for a modification shall state the specific sections(s) for which a modification is requested, material facts supporting the contention of the applicant, the details of the modification or mitigating measure proposed and, if applicable, a map showing the proposed location and citing of the modification or mitigation measure. The details of action granting modifications shall be recorded and entered in the files of the code compliance agency.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.104.6. NOTICES AND ORDERS.

Section 104.6 of the California WUI Code is revised to read:

Sec. 104.6 Notices and orders. The code official shall issue all necessary notices or orders to ensure compliance with this code. Notices of violations shall be in accordance with Section 109.2.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.104.8.1. LEGAL DEFENSE.

Section 104.8.1 of the California WUI Code is revised to read:

Sec. 104.8.1 Legal defense. Any suit or criminal complaint instituted against any officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this code or other laws or ordinances implemented through the enforcement of this code shall be defended by the legal representatives of the jurisdiction until the final termination of the proceedings. The code official or any subordinate shall not be liable for costs in an action, suit, or proceeding that is instituted in pursuance of the provisions of this code; and any officer of the Department of Fire Prevention, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act or omission in the performance of official duties in connection therewith.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.104.12. COST RECOVERY.

Section 104.12 is added to the California WUI Code to read:

Sec. 104.12 Cost recovery. The purpose of this section is to establish authority to obtain reimbursement from responsible individuals for the expenses of any emergency response and/or enforcement action by the fire department to protect the public from criminal or negligible activities, and from fire or hazardous substances.

Sec. 104.12.1 Reimbursement required. In accordance with the Health and Safety Code section 13000 et seq., an individual who acts negligently or in violation of the law and thereby requires the jurisdiction to provide an emergency response to a danger posed by a fire or hazardous substance shall be liable for reimbursement to the agency for the costs incurred. In accordance with Government Code sections 53150 through 53158, any individual who is under the influence of an alcoholic beverage or any drug or the combined influence of an alcoholic beverage or any drug, and whose negligent operation of a motor vehicle, boat or vessel or civil aircraft caused by that influence proximately causes any incident and thereby requires the agency to provide an emergency response shall reimburse the agency for the cost incurred.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.104.13. EXPENSE RECOVERY.

Section 104.13 is added to the California WUI Code to read:

Sec. 104.13 Expense recovery. The fire code official may impose a fee for recovery of expenses incurred to enforce the fire prevention provisions of this code.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.109. INSPECTION AND ENFORCEMENT.

Section 109.3.7.2 of the California WUI Code is revised to read:

Sec. 109.3.7.2 Notice of violation. Violations, penalties and responsibility for compliance. It shall be unlawful for any person, as defined in section 12.115 of the County Code of Regulatory Ordinances, to use any property or erect, construct, enlarge, alter, repair, move, remove, improve, convert, demolish, equip, use, occupy or maintain any building or structure, or vacant land or cause the same to be done, contrary to or in violation of any of the provisions of this chapter. A property owner shall be considered to have allowed any use or improvement of property occupied by or under the dominion and control of the owner and shall be responsible for the discontinuance and removal of any violation of the County WUI Code. This responsibility shall include property leased to another person. A property owner shall also be responsible for the discontinuance and removal of any violation of the County WUI Code that existed on the property prior to the current owner's purchase of the property.

AMENDMENT TO SECTION 109.3.7.2

The Alpine, Bonita-Sunnyside, Lakeside, North County, Rancho Santa Fe, Rincon Del Diablo, San Marcos, San Miguel, Valley Center and Vista Fire Protection Districts adopt the following code amendment:

Sec. 109.3.7.2 Violations, penalties and responsibility for compliance. Any person who shall violate any of the provisions of this code or standards hereby adopted or fail to comply therewith, or who shall violate or fail to comply with any order made there under, or who shall build in violation of any detailed statement or specification or plans submitted and approved there under, or any certificate or permit issued there under, and from which no appeal has been taken, or who shall fail to comply with such an order as affirmed or modified by the attorney for the Fire District or by a court of competent jurisdiction within the time fixed herein, shall severally for each and every violation and non-compliance respectively, be guilty of an infraction or misdemeanor, punishable by a fine not exceeding \$1,000.00 or by imprisonment in County Jail not exceeding six (6) months, or both. The imposition of one penalty of any violation shall not excuse the violation or permit it to continue; and all such persons shall be required to correct or remedy such violations or defects within a reasonable time; and when not otherwise specified, each day that prohibited conditions are maintained shall constitute a separate offense.

The application of the above penalty shall not be held to prevent the enforced removal of prohibited conditions.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.112. APPEALS.

Section 112 of the California WUI Code is revised to read:

Sec. 112.1 Regional Fire Appeals Board established. In order to hear and decide appeals of orders, decisions or determinations made by the fire code official relative to the application and interpretation of this code, including the granting or denial of modifications, there shall be and is hereby created a Regional Fire Appeals Board (Appeals Board). The Appeals Board shall adopt rules of procedure for conducting its business, and shall render all decisions and findings in writing to the appellant with a duplicate copy to the fire code official. A copy shall also be sent to the Building Official or other decision

maker for the project, whichever is appropriate.

Sec. 112.2 Limitations on authority. An application for appeal shall be based on a claim that the intent of this code or the rules legally adopted hereunder have been incorrectly interpreted, the provisions of this code do not fully apply, or an equivalent method of protection or safety is proposed. The Appeals Board shall not have authority to waive requirements of this code.

Sec. 112.3 Qualifications. The Appeals Board shall consist of members who are qualified by experience and training to pass on matters pertaining to hazards of fire, explosions, hazardous conditions or fire protection systems and are not employees of the jurisdiction.

Sec. 112.4 Appeals procedures. This section establishes appeal procedures of an order, decision or determination (collectively, "determination") made by the fire code official, including the granting or denial of appeals.

Sec. 112.4.1 Appeals of determinations regarding building permits. The County, fire agency or project applicant may appeal a determination made by the fire code official related to a project for which a building permit is required by filing an appeal in writing with the Appeals Board within 30 days of the fire code official's final determination. The Appeals Board shall make factual findings and issue a written recommendation to the County Building Official on whether the fire code official's determination should be upheld, overruled or modified. The Building Official may not waive the requirements of this code, except as authorized by the code and is subject to the same requirements and restrictions in the code that applied to the fire code official. A copy of the recommendation shall be provided to the applicant. The County Building Official shall act on the Appeals Board's recommendation and issue a written decision to the parties within 15 days of receipt of the Appeals Board's recommendation. The Building Official's decision shall be final.

Sec. 112.4.2 Appeals of determinations regarding discretionary permits. The County, the fire agency or the project applicant may seek review of the fire code official's determination by the Appeals Board by filing a request for review with the Appeals Board within 30 days of the fire code official's determination. When reviewing a fire code official's determination pursuant to this subsection, the Appeals Board shall act in an advisory capacity. The Appeals Board shall review the fire code official's determination and make a recommendation to uphold, overrule or modify the fire code official's determination. The Appeals Board shall render its recommendation to the County decision maker or decision-making body for consideration with the application for the discretionary permit.

Sec. 112.4.3 Appeals of determinations for matters other than building permits or discretionary permits.

(a) **Areas outside a fire protection district.** Any affected party may appeal a determination made by the fire code official regarding a matter for which a building permit or discretionary permit is not required by filing an appeal in writing with the Appeals Board within 30 days of the fire code official's final determination. The Appeals Board shall review the fire code official's determination and make a recommendation to uphold, overrule or modify the fire code official's determination. The Appeals Board's determination shall be final.

(b) **Areas inside a fire protection district.** Any affected party may appeal a determination made by the fire code official regarding a matter for which a building permit or discretionary permit is not required by filing an appeal in writing with the fire protection district's Board of Directors within 30 days of the fire code official's final determination. The Board of Directors shall review the fire code official's determination and make a recommendation to uphold, overrule or modify the fire code official's determination. The Board of Director's determination shall be final.

Sec. 112.5 Regional Fire Appeals Board.

(a) The Appeals Board members shall consist of the following:

- Two representatives from the San Diego County Fire Districts Association.
- Two chief officers from CAL FIRE.
- One fire marshal from the unincorporated area of the County.

(b) The Appeals Board shall not include a representative from the agency whose fire code official made the determination that is being appealed. An alternate for the regular member(s) of the Appeals Board shall be designated to serve in this situation.

(c) Three members shall constitute a quorum for the transaction of business, and three affirmative votes shall be necessary to render a recommendation.

If the Appeals Board recommends a modification to this code for an individual case, a copy of the recommendation and findings along with a map showing the proposed modification and mitigating measures shall be forwarded to the Unit Chief of CAL FIRE, San Diego/Imperial Unit.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.113.4. FAILURE TO COMPLY.

Section 113.4 of the California WUI Code is revised to read:

Sec. 113.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to fines

established by the authority having jurisdiction.

AMENDMENT TO SECTION 113.4

The Alpine, Bonita-Sunnyside, Lakeside, North County, Rancho Santa Fe, Rincon Del Diablo, San Marcos, San Miguel, Valley Center and Vista Fire Protection Districts adopt the following code amendment:

Sec. 113.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that the person is directed to perform to remove a violation or unsafe condition, shall be liable to a fine of not less than \$250.00 or more than \$1,000.00.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

CHAPTER 2 DEFINITIONS

SEC. 96.2.201. GENERAL.

Sec. 201.1 Scope. Unless otherwise expressly stated, the following words and terms shall, for the purposes of this code, have the meanings shown in this chapter.

Sec. 201.2 Interchangeability. Words stated in the present tense include the future; words stated in the masculine gender include the feminine and neuter; and the singular number includes the plural and the plural the singular.

Sec. 201.3 Terms defined in other codes. Where terms are not defined in this code and are defined in the California Building Code, California Existing Building Code, California Fire Code, California Electrical Code, California Mechanical Code or California Plumbing Code, such terms shall have the meanings ascribed to them as in those codes.

Sec. 201.4 Terms not defined. Where terms are not defined through the methods authorized by this section, such terms shall have their ordinarily accepted meanings such as the context implies.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.202. DEFINITIONS.

Section 202 of the California WUI Code is revised to read:

ACCESSORY STRUCTURE. A building or structure used to shelter or support any material, equipment, chattel or occupancy other than a habitable building.

AGRICULTURE (applicable to CCR, Title 14 provisions only). Land used for agricultural purposes as defined in a Local Jurisdiction's zoning ordinances. [CCR Title 14 §1270.01(a)]

APPLICABLE BUILDING. A building that has residential, commercial, educational, institutional or similar occupancy type use.

APPROVED. Acceptable to the code official.

APPROVED AGENCY. An established and recognized organization that is regularly engaged in conducting tests, furnishing inspection services or furnishing product evaluation or certification where such organization has been approved by the code official.

BUILDING. Any structure intended for supporting or sheltering any occupancy.

BUILDING OFFICIAL means the Director of the Planning and Development Services or any person appointed or hired by the Director to administer or enforce the County's planning and construction standards. The building official duties shall include plan checking, inspections and code enforcement.

CERTIFICATE OF COMPLETION. Written documentation that the project or work for which a permit was issued has been completed in conformance with requirements of this code.

CODE OFFICIAL. The official designated by the jurisdiction to interpret and enforce this code, or the code official's authorized representative.

COMBUSTIBLE VEGETATION means material that in its natural state will readily ignite, burn and transmit fire from native or landscape plants to any building or other vegetation. Combustible vegetation includes dry grass, brush, weeds, litter or other flammable vegetation that creates a fire hazard.

CRITICAL FIRE WEATHER. A set of weather conditions (usually a combination of low relative humidity and wind) whose effects on fire behavior make control difficult and threaten firefighter safety.

DEAD-END ROAD. A road that has only one point of vehicular ingress/egress, including cul-de-sacs and looped roads.

DEFENSIBLE SPACE is an area either natural or man-made, where material capable of allowing a fire to spread unchecked has been treated, cleared or modified to slow the rate and intensity of an advancing wildfire and to create an area for fire

suppression operations to occur. Distance measurements for defensible space shall be measured on a horizontal plane.

DRIVEWAY (applicable to CCR, Title 14 provisions only). A vehicular pathway route that serves no more than four (4) Residential Units and any number of non-commercial or non-industrial Utility or Miscellaneous Group U Buildings. [CCR Title 14 §1270.01(i)]

DWELLING. A building that contains one or two dwelling units used, intended or designed to be used, rented, leased, let or hired out to be occupied for living purposes.

EXTERIOR WALL ASSEMBLY. A system, including the exterior wall covering, framing, and components such as weather-resistive barriers and insulating materials. This system provides protection of the building structural members and conditioned interior space, from the detrimental effects of the exterior environment.

EXTERIOR WALL COVERING. A material or assembly of materials applied on the exterior side of exterior walls for the purpose of providing a weather-resisting barrier, insulation or for aesthetics, including but not limited to veneers, siding, exterior insulation and finish systems, rainscreen systems, architectural trim, and embellishments such as cornices, soffits, fascias, gutters and leaders.

FIRE CHIEF. The fire chief is one of the following:

(a) The person appointed by the Board of Supervisors to serve as fire chief in the unincorporated areas not within a fire protection district.

(b) The chief officer of a fire protection district.

(c) The Fire Warden or her or his delegated representative when enforcing section 96.1.5608.1 of the 2026 County of San Diego Consolidated Fire Code.

FIRE CODE OFFICIAL. The Fire Warden or her or his delegated representative, the fire chief or a duly authorized representative, or other person as may be designated by law, appointment or delegation and charged with the administration and enforcement of this Chapter.

FIRE FLOW CALCULATION AREA. The floor area, in square feet (square meters), used to determine the adequate water supply.

FIRE HAZARD SEVERITY ZONES. Geographical areas designated pursuant to California Public Resources Codes, Sections 4201 through 4204 California Government Code, Sections 51175 through 51189.

The map, approved by the Office of the State Fire Marshal, is hereby incorporated by reference and entitled "State Responsibility Area Fire Hazard Severity Zones," dated September 29, 2023.

FIRE PROTECTION PLAN. A document prepared for a specific project or development proposed for a Wildland-Urban Interface (WUI) area. It describes ways to minimize and mitigate potential for loss from wildfire exposure.

FIRE WEATHER. Weather conditions favorable to the ignition and rapid spread of fire. In wildfires, this generally includes high temperatures combined with strong winds and low humidity. See "Critical fire weather."

FIRE-RESISTANCE-RATED CONSTRUCTION. The use of materials and systems in the design and construction of a building or structure to safeguard against the spread of fire within a building or structure and the spread of fire to or from buildings or structures to the wildland-urban interface area.

FIRE-SMART VEGETATION. Plants, shrubs, trees and other vegetation that exhibit properties, such as high moisture content, little accumulation of dead vegetation, and low sap or resin content, that make them less likely to ignite or contribute heat or spread flame in a fire than native vegetation typically found in the region.

[**Note:** The following sources contain examples of types of vegetation that can be considered as fire-smart vegetation. (Fire-resistant Plants for Home Landscapes, A Pacific Northwest Extension publication; Home Landscaping for Fire, University of California Division of Agriculture and Natural Resources; Sunset Western Garden Book)]

FLAME SPREAD INDEX. A comparative measure, expressed as a dimensionless number, derived from visual measurements of the spread of flame versus time for a material tested in accordance with ASTM E84 or UL 723.

FUEL. Any combustible material, including petroleum-based products, cultivated landscape plants, grasses, weeds, and wildland vegetation.

FUEL BREAK (applicable to CCR, Title 14 provisions only). A strategically located area where the volume and arrangement of vegetation has been managed to limit fire intensity, fire severity, rate of spread, crown fire potential, and/or ember production [CCR Title 14 §1270.01(n)]

FUEL MODIFICATION. A method of modifying fuel load by reducing the amount of nonfire-smart vegetation or altering the type of vegetation to reduce the fuel load.

FUEL MOSAIC. A fuel modification system that provides for the creation of islands and irregular boundaries to reduce the visual and ecological impact of fuel modification.

FUEL-LOADING. The oven-dry weight of fuels in a given area, usually expressed in pounds per acre (lb/a) (kg/ha). Fuel-loading may be referenced to fuel size or time-lag categories, and may include surface fuels or total fuels.

GREEN BELT. (applicable to CCR, Title 14 provisions only). Open space, parks, wildlands, other areas, or a combination thereof, as designated by Local Jurisdictions, which are in, surround, or are adjacent to a city or urbanized area, that may function as Fuel Breaks and where Building construction is restricted or prohibited. [CCR Title 14 §1270.01(o)]

GREENWAYS (applicable to CCR, Title 14 provisions only). Linear open spaces or corridors that link parks and neighborhoods within a community through natural or manmade trails and paths. [CCR Title 14 §1270.01(p)]

HAMMERHEAD/T (applicable to CCR, Title 14 provisions only). A "T" shaped, three-point turnaround space for fire apparatus on a road or driveway, being no narrower than the road or driveway that serves it. [CCR Title 14 §1270.01(q)]

HAZARDOUS LAND USE (applicable to CCR, Title 14 provisions only). A land use that presents a significantly elevated potential for the ignition, prolonged duration, or increased intensity of a wildfire due to the presence of flammable materials, liquids, or gasses, or other features that initiate or sustain combustion. Such uses are determined by the local jurisdiction and may include, but are not limited to, power-generation and distribution facilities; wood processing or storage sites; flammable gas or liquids processing or storage sites; or shooting ranges. [CCR Title 14 §1270.01(r)]

HAZARDOUS MATERIALS. As defined in the California Fire Code.

HEAVY TIMBER CONSTRUCTION. As described in the California Building Code.

IGNITION-RESISTANT BUILDING MATERIAL. A type of building material that resists ignition or sustained flaming combustion sufficiently so as to reduce losses from burning embers and small flames.

LOCAL RESPONSIBILITY AREA (LRA). Areas of the state in which the financial responsibility of preventing and suppressing fires is the primary responsibility of a city, county, city and county, or district. See also State Responsibility Area (SRA).

LOG WALL CONSTRUCTION. A type of construction in which exterior walls are constructed of solid wood members and where the smallest horizontal dimension of each solid wood member is not less than 6 inches (152 mm).

MULTILAYERED GLAZED PANELS. Window or door assemblies that consist of two or more independently glazed panels installed parallel to each other, having a sealed air gap in between, within a frame designed to fill completely the window or door opening in which the assembly is intended to be installed.

NONCOMBUSTIBLE ROOF COVERING. A roof covering consisting of any of the following:

1. Cement shingles or sheets.
2. Exposed concrete slab roof.
3. Ferrous or copper shingles or sheets.
4. Slate shingles.
5. Clay or concrete roofing tile.
6. Approved roof covering of noncombustible material.

OPEN SPACE EASEMENT means any right or interest in perpetuity or for a term for years in open-space land, as that term is defined in Government Code section 51051, acquired by the County, a city or a non-profit organization where the instrument granting the right or interest imposes restriction on use of the land, to preserve the land for public use or enjoyment of the natural or scenic character of the land.

OPEN SPACE PRESERVE means open-space land, as that term is defined in Government Code section 65560(b), for the preservation of natural resources, managed production of resources, outdoor recreation, public health and safety, buffer for a military installation or the protection of cultural resources.

OUTBUILDING (applicable to CCR, Title 14 provisions only). Buildings or structures that are less than 120 square feet (11.15 m²) in size and not used for human habitation. An "Outbuilding" is not a "Building" or "Structure" as defined herein. [CCR Title 14 §1299.02(c)]

PEER REVIEW. An independent and objective technical review conducted by an approved third party.

RAFTER TAIL. The portion of roof rafter framing in a sloping roof assembly that projects beyond and overhangs an exterior wall.

REGISTERED DESIGN PROFESSIONAL. An architect or engineer, registered or licensed to practice professional architecture or engineering, as defined by the statutory requirements of the professional registration laws of the state in which the project is to be constructed.

RESIDENTIAL UNIT (applicable to CCR, Title 14 provisions only). Any building or portion thereof which contains living facilities including provisions for sleeping, eating, cooking and/or sanitation, for one or more persons. Manufactured homes, mobile homes, and factory-built housing are considered residential units. [CCR Title 14 §1270.01(w)]

RIDGELINE (topography) (applicable to CCR, Title 14 provisions only). The line of intersection of two opposing slope aspects running parallel to the long axis of the highest elevation of land; or an area of higher ground separating two adjacent streams or watersheds. [CCR Title 14 §1270.01(x)]

ROAD (applicable to CCR, Title 14 provisions only). A public or private vehicular pathway to more than four (4) residential units, or to any industrial or commercial occupancy. [CCR Title 14 §1270.01(y)]

ROOF ASSEMBLY. A system designed to provide weather protection and resistance to design loads. The system consists of a roof covering and roof deck or a single component serving as both the roof covering and the roof deck. A roof assembly can include an underlayment, thermal barrier, ignition barrier, insulation or a vapor retarder.

ROOF COVERING. The covering applied to the roof deck for weather resistance, fire classification or appearance.

ROOF COVERING SYSTEM. See "Roof assembly."

ROOF DECK. The flat or sloped surface not including its supporting members or vertical supports.

ROOF EAVE. The lower portion of a sloping roof assembly that projects beyond and overhangs an exterior wall at the lower end of the rafter tails. Roof eaves may be either "open" or "enclosed." Open roof eaves have exposed rafter tails and an unenclosed space on the underside of the roof deck. Enclosed roof eaves have a boxed-in roof eave soffit with a horizontal underside or sloping rafter tails with an exterior covering applied to the underside of the rafter tails.

ROOF EAVE SOFFIT. An enclosed boxed-in soffit under a roof eave with exterior covering material applied to the soffit framing creating a horizontal surface on the exposed underside.

SLOPE is the variation of terrain from the horizontal; the number of feet, rise or fall per 100 feet, measured horizontally, expressed as a percentage. Regardless of manufactured cut, fill or natural slope.

STATE RESPONSIBILITY AREA (SRA). Lands that are classified by the Board of Forestry pursuant to Public Resources Code Section 4125 where the financial responsibility of preventing and suppressing forest fires is primarily the responsibility of the state.

STRATEGIC RIDGELINE (applicable to CCR, Title 14 provisions only). A ridgeline identified pursuant to Title 14 §1276.02(a) that may support fire suppression activities or where the preservation of the ridgeline as undeveloped would reduce fire risk and improve fire protection. [CCR Title 14 §1270.01(dd)]

STRUCTURE. That which is built or constructed, or any piece of work artificially built up or composed of parts joined together in some definite manner.

SUBDIVISION. The division of a tract, lot or parcel of land into two or more lots, plats, sites or other divisions of land.

TREE CROWN. The primary and secondary branches growing out from the main stem, together with twigs and foliage.

UNDEVELOPED RIDGELINE (applicable to CCR, Title 14 provisions only). A ridgeline with no building. [CCR Title 14 §1270.01(ii)]

UNENCLOSED ACCESSORY STRUCTURE. An accessory structure without a complete exterior wall system enclosing the area under roof or floor above.

VERTICAL CURVE (applicable to CCR, Title 14 provisions only). A curve at a high or low point of a road that provides a gradual transition between two road grades or slopes. [CCR Title 14 §1270.01(kk)]

WILDFIRE. An uncontrolled fire spreading through vegetative fuels that threatens to destroy life, property, or resources as defined in Public Resources Code Sections 4103 and 4104.

WILDFIRE EXPOSURE. One or a combination of radiant heat, convective heat, direct flame contact and burning embers being projected by vegetation fire to a structure and its immediate environment.

WILDLAND. An area in which development is essentially nonexistent, except for roads, railroads, power lines and similar facilities.

WILDLAND-URBAN INTERFACE AREA. A geographical area identified by the state as a "Fire Hazard Severity Zone" in accordance with the Public Resources Code Sections 4201 through 4204 and Government Code Sections 51175 through 51189, and other areas designated by the enforcing agency to be at a significant risk from wildfires.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

CHAPTER 3 WILDLAND-URBAN INTERFACE AREAS

SEC. 96.2.303. FIRE HAZARD SEVERITY ZONES.

Section 303 is added to the California WUI Code to read:

The Alpine, Bonita-Sunnyside, Lakeside, San Miguel Fire Protection Districts adopt the following code amendment:

Sec. 303 Fire Hazard Severity Zones

SRA Lands - The legislative body shall designate the Wildland Urban Interface Areas within the jurisdiction. The Wildland Urban Interface Areas shall be based on the findings of fact. The Wildland Urban Interface Area boundary shall be any geographic area mapped or otherwise identified by the State or local jurisdiction as a Moderate Hazard, High Hazard, or Very High Fire Severity Zone, or as set forth by the Fire District. When the type and condition of vegetation, topography, weather, and structure density, which potentially increases the probability of vegetation conflagration, exists, such area shall be considered a Very High Fire Hazard Severity Zone. Authority cited PRC 4290 (c). This resulting in all SRA lands designated by Cal Fire as per PRC 4125 being designated now as VHFHSZ. (Enforcement of defensible space PRC 4291).

LRA Lands - The legislative body shall designate the Wildland Urban Interface Areas within the jurisdiction. The Wildland Urban Interface Areas shall be based on the findings of fact. The Wildland Urban Interface Area boundary shall be any geographic area mapped or otherwise identified by the State or local jurisdiction as a Moderate Hazard, High Hazard, or Very High Fire Severity Zone, or as set forth by the Fire District. When the type and condition of vegetation, topography, weather, and structure density, which potentially increases the probability of vegetation conflagration, exists, such area shall be considered a Very High Fire Hazard Severity Zone. Authority cited Gov Code 51179 designated by SFM as per Gov Code 51178 being designated now as VHFHSZ. (Enforcement of defensible space Gov Code 51182).

Compliance with Title 14 CCR 1270 is accomplished for all requirements 1270.01(c) found in regulations required by statute PRC 4290.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

CHAPTER 4 WILDLAND-URBAN INTERFACE AREA REQUIREMENTS

SEC. 96.2.401.3.2. FIRE APPARATUS ACCESS MODIFICATIONS.

Section 401.3.2 is added to the California WUI Code to read:

Sec. 401.3.2 Fire apparatus access modifications. Plans for the modification of fire apparatus access road shall be submitted to the fire code official for review and approval prior to construction or modification of any fire apparatus road.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.403. FIRE APPARATUS ACCESS ROADS.

Section 403 of the California WUI Code is revised to read:

Sec. 403.1 General. Fire apparatus access roads shall be provided and maintained in accordance with Sections 403.1.1 through 403.1.3.

Fire apparatus access roads shall be provided and maintained in compliance with this section and the most recent edition and any amendments thereto, of public and private road standards as adopted by the County of San Diego (San Diego County Standards for Private Roads and Public Roads, San Diego County Department of Public Works). The fire code official may modify the requirements of this section if the modification provides equivalent access.

Sec. 403.1.1 Buildings and facilities. Approved fire apparatus access roads shall be provided for every facility, building or portion of a building hereafter constructed or moved into or within the jurisdiction. The fire apparatus access road shall comply with the requirements of this section and shall extend to within 150 feet (45 720 mm) of all portions of the facility and all portions of the exterior walls of the first story of the building as measured by an approved route around the exterior of the building or facility.

Exceptions:

1. The fire code official is authorized to increase the dimension of 150 feet (45 720 mm) where any of the following conditions occur:

1.1 The building is equipped throughout with an approved automatic sprinkler system installed in accordance with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3 of the 2026 County Fire Code.

1.2. Fire apparatus access roads cannot be installed because of location on property, topography, waterways, non-negotiable grades or other similar conditions, and an approved alternative means of fire protection is provided.

1.3. There are not more than two Group R-3 or Group U occupancies.

2. Where approved by the fire code official, fire apparatus access roads shall be permitted to be exempted or modified for solar photovoltaic power generation facilities.

Sec. 403.1.2 Secondary Access. The fire code official is authorized to require more than one fire apparatus road when a new subdivision is proposed, and the maximum allowable dead-end road length is exceeded (Sec. 403.2.5.1). In addition, the fire code official may determine additional fire apparatus access roads are required on other proposed projects. This requirement is based on the potential for impairment of a single road by vehicle congestion, condition of terrain, climate conditions or other factors that could limit access. When additional fire apparatus roads are necessary as mitigation for the

exceedance of maximum allowable dead-end road length, the additional fire apparatus access road must be remote from the primary fire apparatus road as determined by the fire code official. Remoteness is in Appendix D of 2025 CFC. A subdivision as defined in California WUI is, The division of a tract, lot or parcel of land into two or more lots, plats, sites or other divisions of land.

Sec. 403.1.3 High-piled storage. Fire department vehicle access to buildings used for high-piled combustible storage shall comply with the applicable provisions of Chapter 32 of the CFC.

Sec. 403.2.1 Dimensions. The dimensions of fire apparatus access roads shall be in accordance with the following:

(a) Fire apparatus access roads shall have an unobstructed improved width of not less than 24 feet, except as provided in section 403.2.1 for single-family residential driveways serving no more than two residential parcels, which shall have a minimum of 16 feet of unobstructed improved width. Any of the following, which have separated lanes of one-way traffic: gated entrances with card readers, guard stations or center medians, are allowed, provided that each lane is not less than 14 feet wide.

(b) Fire apparatus access roads that are public or private roads which are provided or improved as a result of a Tentative Map, Tentative Parcel Map or a Major/Minor Use Permit shall have the dimensions as set forth by the County of San Diego Standards for Public and Private Roads.

(c) All fire apparatus access roads shall have an unobstructed vertical clearance of not less than 13 feet 6 inches.

(d) Vertical clearances or road widths shall be increased when the fire code official determines that vertical clearances or road widths are not adequate to provide fire apparatus access.

(e) Vertical clearances or road width may be reduced when the fire code official determines the reduction does not impair access by fire apparatus. In cases where the vertical clearance has been reduced, approved signs shall be installed and maintained indicating the amount of vertical clearance.

(f) Driveways exceeding 150 feet in length, but less than 600 feet in length, shall provide a turnout near the midpoint of the driveway. Where the driveway exceeds 600 feet, turnouts shall be provided no more than 400 feet apart.

(g) For buildings that are more than 35 feet in height, a 35-foot unobstructed fire lane shall be provided. Unless otherwise approved by the fire code official. Fire apparatus access roads shall have an unobstructed width of not less than 35 feet when within laddering distance of buildings exceeding 35 feet in height. The access road shall be set back from buildings exceeding two stories in height such that the centerline of the fire access road shall be equal to 1/4 the difference in elevation from the fire access road to the roof. The building's curbside access roads serving buildings over two stories in height but less than 44 feet in height shall be permitted to be up to 10 feet away from the building.

ADDITION OF SECTION 403.2.1.1 Dimensions

The Rancho Santa Fe, Rincon Del Diablo, San Miguel and Valley Center Fire Protection Districts adopt the following code amendment:

Sec. 403.2.1.1 Road phasing requirement for single family dwellings on existing legal parcels.		
(a) The fire apparatus access road requirement for widening an existing, improved and paved fire apparatus access roadway shall be as provided in Table 403.2.1.1. The fire apparatus access road shall be constructed to extend from the property line to the nearest public or private road.		
TABLE 403.2.1.1 –PHASING REQUIREMENT		
Fire Apparatus Access Roadway – Single Family Dwellings		
Number of Parcels Served	Unobstructed Road Width	Roadways Over 600 foot Long
1-2	16-foot, paved	Turnouts every 400 feet
3-8	20-foot, paved	Turnouts every 400 feet
9 or more	24-foot, paved	Not required
(b) The fire apparatus access road shall not be required to be improved for a non-habitable accessory structure or a residential addition or remodel less than 500 square feet if the fire apparatus access road has already been improved and paved to a minimum width of 20 feet. If the road is less than 20 feet wide, the roadway shall be widened to 20 feet. The preceding addition or remodel exception is limited to one permit per three-year period from the date of the last permit approval.		
Exception: Vertical clearances or road width may be reduced when the fire code official determines the reduction does not impair access by fire apparatus. In cases where the vertical clearance has been reduced, approved signs shall be installed and maintained indicating the amount of vertical clearance.		

Sec. 403.2.2 Authority to increase minimums. The fire code official shall have the authority to require or permit modifications to the required access widths where they are inadequate for fire or rescue operations or where necessary to meet the public safety objectives of the jurisdiction.

Sec. 403.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus (not less than 75,000 lbs. unless authorized by the fire code official) and shall be provided with an approved

paved surface so as to provide all-weather driving capabilities. The paving and sub-base shall be installed to the standards specified in the County of San Diego Parking Design Manual. A residential driveway constructed of 3½" Portland cement concrete may be installed on any slope up to 20% provided that slopes over 15% have a deep broom finish perpendicular to the direction of travel to enhance traction. The fire code official may allow a surfacing material of 6 inches of compacted decomposed granite on fire apparatus access roads with a slope of 10% or less in areas allowed by the San Diego County Standards for Private Roads.

AMENDMENT TO SECTION 403.2.3

The Bonita-Sunnyside, Lakeside, Rancho Santa Fe, Rincon Del Diablo, San Miguel, Valley Center Fire Protection Districts adopt the following code amendment:

Sec. 403.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus (not less than 75,000 lbs. unless authorized by the FAHJ) and shall be provided with an approved paved surface so as to provide all weather driving capabilities. The paving and sub-base shall be installed to the standards specified in the County of San Diego Parking Design Manual. A residential driveway constructed of 3½" Portland cement concrete may be installed on any slope up to 20% provided that slopes over 15% have a deep broom finish perpendicular to the direction of travel or other approved surface to enhance traction.

Sec. 403.2.4 Roadway radius. The horizontal inside radius of a fire apparatus access road shall comply with the County of San Diego Public and Private Road Standards. The horizontal inside radius of any public or private driveway shall be a minimum of 28 feet, as measured on the inside edge of the improvement width or as approved by the fire code official. The length of vertical curves of fire apparatus access roads shall not be less than 100 feet, or as approved by the fire code official.

Sec. 403.2.5 Dead ends. Dead-end fire apparatus access roads in excess of 150 feet in length shall be provided with an approved area for turning around emergency apparatus.

Sec. 403.2.5.1 Dead end roads turn-around required.A cul-de-sac or other approved turn-around shall be provided in residential areas where the fire apparatus access roads serve 3 or more parcels. The minimum unobstructed radius width for a cul-de-sac in a residential area shall be 36 feet paved, 40 feet graded, or as approved by the fire code official. The fire code official shall establish a policy identifying acceptable turnarounds for various project types. See Annex A & B for illustrations

Sec. 403.2.5.2 Dead-end roads. The maximum length of a dead-end road, including all dead-end roads accessed from that dead-end road, shall not exceed the following cumulative lengths, regardless of the number of parcels served:

(Title 14 SRA 1273.08 Ref.)

ZONING FOR PARCEL SERVED BY DEAD-END ROAD(s)	CUMULATIVE LENGTH OF DEAD-END ROAD(s)
Parcels zoned for less than 1 acre	800 feet
Parcels zoned for 1 acre to 4.99 acres	1,320 feet
Parcels zoned for 5 acres to 19.99 acres	2,640 feet
Parcels zoned for 20 acres or larger	5,280 feet

All lengths shall be measured from the edge of the roadway surface at the intersection where the road begins to the end of the road surface at its farthest point. Where a dead-end road crosses areas of differing zoned parcel sizes, requiring different length limits, the shortest allowable length shall apply. Where parcels are zoned 5 acres or larger, turnarounds shall be provided at a maximum of 1,320 foot intervals. Each dead-end road shall have a turnaround approved by the fire code official and constructed at its terminus.

A turnaround shall be provided to all building sites on driveways over 150 feet in length and shall be within fifty (50) feet of the building.

Sec. 403.2.6 Bridges and elevated surfaces.Where a bridge or an elevated surface is part of a fire apparatus access road, the bridge shall be constructed and maintained in accordance with AASHTO HB-17. Bridges and elevated surfaces shall be designed for a live load sufficient to carry the imposed loads of fire apparatus. Vehicle load limits and clearance limitations shall be posted at both entrances to bridges where required by the fire code official. Where elevated surfaces designed for emergency vehicle use are adjacent to surfaces which are not designed for such use, approved barriers, approved signs or both shall be installed and maintained where required by the fire code official.

Sec. 403.2.6.1 Bridges with one traffic lane.When approved by the fire code official, private bridges providing access to not more than two residential dwellings may have one 12-foot-wide travel lane and it shall provide for unobstructed visibility from one end to the other, and turnouts shall be provided at both ends.

Sec. 403.2.7 Grade. The gradient for a fire apparatus access roadway shall not exceed 15.0%. The fire code official may

allow roadway grades up to 20.0% provided that the roadway surface conforms to section 403.2.3. The fire code official may require additional mitigation measures.

Sec 403.2.7.1 Cross-Slope. The standard cross-slope shall be 2 percent; minimum cross-slope shall be 1 percent; maximum cross-slope shall be 5 percent.

Sec. 403.2.8 Angles of Approach and Departure. The angles of approach and departure for fire apparatus access roads shall not exceed 7 degrees (12 %) for the first 30' or as approved by the fire code official and shall not allow for transitions between grades that exceed 6% elevation change along any 10-foot section.

Sec. 403.2.9 Roadway Turnouts. When required by the fire code official, turnouts shall be a minimum of 12 feet wide and 30 feet long with a minimum 25-foot taper on each end. (Title 14 SRA 1273.06)

Exception: The minimum width of the turnout may be reduced to 10 feet wide when the fire code official determines the reduction does not impair access by fire apparatus.

Sec. 403.3 Marking. When required by the fire code official, approved signs or other approved notices or markings that include the words "NO PARKING FIRE LANE" shall be provided for fire apparatus access roads to identify such roads or prohibit the obstruction thereof. Signs or notices shall be maintained in a clean and legible condition at all times and be replaced or repaired when necessary to provide adequate visibility

Sec. 403.3.1 Fire Lane Designation. Where the fire code official determines that it is necessary to ensure adequate fire access, the fire code official may designate existing roadways as fire apparatus access roads as provided by Vehicle Code section 22500.1.

Sec. 403.4 Obstruction of fire apparatus access roads. Fire apparatus access roads shall not be obstructed in any manner, including the parking of vehicles. The minimum road widths and clearances established in sections 403.2.1 and 403.2.2 shall be maintained at all times.

Sec. 403.4.1 Traffic calming devices. Traffic calming devices (including, but not limited to, speed bumps, speed humps, speed control dips, etc.) shall be prohibited unless approved by the fire code official.

Sec. 403.5 Required gates or barricades. The fire code official is authorized to require the installation and maintenance of gates or other approved barricades across fire apparatus access roads, trails or other access ways, not including public streets, alleys or highways. Electric gate openers, where provided, shall be listed in accordance with UL 325. Gates intended for automatic operation shall be designed, constructed and installed to comply with the requirements of ASTM F2200.

Sec. 403.5.1 Secured gates and barricades. When required, gates and barricades shall be secured as approved by the fire code official. Roads, trails and other access ways that have been closed and obstructed in the manner prescribed by section 403.5 shall not be trespassed on or used unless authorized by the owner and the fire code official.

Exception: The restriction on use shall not apply to public officers acting within the scope of duty.

Sec. 403.5.2 School fences and gates. School grounds may be fenced and gates therein may be equipped with locks, provided that safe dispersal areas based on three square feet per occupant are located between the school and the fence. Such required safe dispersal areas shall not be located less than 50 feet from school buildings.

Every public and private school shall conform to Education Code section 32020, which states:

The governing board of every public school district and the governing authority of every private school, which maintains any building used for the instruction or housing of school pupils on land entirely enclosed (except for building walls) by fences or walls, shall, through the cooperation of local law enforcement and fire protection agencies having jurisdiction of the area, provide for the erection of gates in these fences or walls. The gates shall be of sufficient size to permit the entrance of ambulances, police equipment and fire-fighting apparatus used by law enforcement and fire protection agencies. There shall be no less than one access gate and there shall be as many of these gates as needed to ensure access to all major buildings and ground areas. If these gates are equipped with locks, the locking devices shall be designed to permit ready entrance by the use of chain or bolt-cutting devices with which the local law enforcement and fire protection agencies may be equipped.

Sec. 403.6 Security gates. No person shall install a security gate or security device across a fire apparatus access road without the fire code official's approval.

1. An automatic gate across a fire access road or driveway shall be equipped with an approved emergency key-operated switch overriding all command functions and opening the gate.

2. A gate accessing more than four residences or residential lots or a gate accessing hazardous, institutional, educational or assembly occupancy group structure, shall also be equipped with an approved emergency traffic control-activating strobe light sensor or other device approved by the fire code official, which will activate the gate on the approach of emergency apparatus.

3. An automatic gate shall be provided with a battery back-up or manual mechanical disconnect in case of power failure with "fail open" and "fail secure" options enabled to prevent entrapment.

4. An automatic gate shall meet fire department policies deemed necessary by the fire code official for rapid, reliable

access.

5. When required by the fire code official, an automatic gate in existence at the time of adoption of this chapter is required to install an approved emergency key-operated switch or other mechanism approved by the fire code official, at an approved location, which overrides all command functions and opens the gate. A property owner shall comply with this requirement within 90 days of receiving written notice to comply.

6. Where this section requires an approved key-operated switch, it may be dual-keyed or equipped with dual switches provided to facilitate access by law enforcement personnel.

7. All gates providing access from a road to a driveway shall be located a minimum of 30 feet from the nearest edge of the roadway and shall be at least two feet wider than the width of the traffic lane(s) serving the gate.

8. Electric gate openers, where provided, shall be listed in accordance with UL 325. Gates intended for automatic operation shall be designed, constructed and installed to comply with the requirements of ASTM F2200.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404. WATER SUPPLY.

Section 404 of the California WUI code is revised to read:

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.1. GENERAL.

Sec. 404.1 General. An approved water source shall have an adequate water supply for the use of the fire protection service to protect buildings and structures from exterior fire sources or to suppress structure fires within the wildland-urban interface area of the jurisdiction in accordance with this section.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.2. REQUIRED WATER SUPPLY.

Sec. 404.2 Required water supply. An approved water supply capable of supplying the required fire flow for structural fire protection and wildland fire exposure shall be provided to the premises on which facilities, buildings or portions of buildings are hereafter constructed or moved into or within the jurisdiction in accordance with Section 507 of the California Fire Code.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.3. DRAFT SITES.

Sec. 404.3 Draft sites. Approved draft sites shall be provided at natural water sources intended for use as fire protection for compliance with this code. The design, construction, location, access and access maintenance of draft sites shall be approved by the code official.

Sec. 404.3.1 Access. The draft site shall have emergency vehicle access from an access road in accordance with Section 403.

Sec. 404.3.2 Pumper access points. The pumper access point shall be either an emergency vehicle access area alongside a conforming access road or an approved driveway not longer than 150 feet (45 720 mm). Pumper access points and access driveways shall be designed and constructed in accordance with all codes and ordinances enforced by this jurisdiction. Pumper access points shall not require the pumper apparatus to obstruct a road or driveway.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.4. HYDRANTS.

Sec. 404.4 Hydrants. Hydrants shall be designed and constructed in accordance with nationally recognized standards. The location and access shall be approved by the code official. The number and spacing of fire hydrants shall be in accordance with Appendix C or CC of the California Fire Code, as applicable.

Sec. 404.4.1 Fire hydrant and fire valve location. The fire hydrant or fire valve shall be between 14 to 24 inches above grade, no closer than 4 feet nor further than 10 feet from the roadway, and 10 feet from combustible vegetation.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.5. TYPE OF WATER SUPPLY.

Section 404.5 of the California WUI Code is revised to read:

Sec. 404.5 Type of water supply. A water supply may consist of reservoirs, pressure tanks, elevated tanks, water mains or

other fixed systems, as approved by the fire code official, capable of providing the required fire flow. In setting the requirements for fire flow, the fire code official shall follow section 507.3 or Appendix B of the CFC, or the standard published by the Insurance Service Office, "Guide for Determination of Required Fire Flow".

Sec. 404.5.1 Private fire service mains. Private fire service mains and appurtenances shall be installed in accordance with NFPA 24 as referenced in Chapter 80 of CFC.

Sec. 404.5.2 Waterline Extensions. The fire code official shall require a waterline extension for the purpose of installing a fire hydrant if a water main is 1,500 feet or less from the property line.

Exception: Water tanks are only allowed as determined by the fire code official if a letter from the applicable water district is provided stating that the district would not be able to provide service (proper fire flow) if the water line were extended and a hydrant installed.

Sec. 404.5.3 Water tanks. Water tanks for private residential fire protection, when authorized by the fire code official, shall comply with Table 404.5.3 and be installed in accordance with the NFPA 22 edition referenced in Chapter 80 of CFC. Water tanks for commercial fire protection, when authorized by the fire code official, shall be installed in accordance with the NFPA 22 edition referenced in Chapter 80 of CFC. Water tanks are only allowed as determined by the fire code official if a letter from the applicable water district is provided stating that the district would not be able to provide service (proper fire flow) if the water line were extended and a hydrant installed.

TABLE 404.5.3 RESIDENTIAL WATER TANK REQUIREMENTS (with NFPA 13D Sys.)			
Building Square Feet	Gallons Per Minute Water Flow	Capacity Gallons	Duration Minutes
0 - 3600	250	7,500	30
Over 3600	250	15,000	60
When the exposure distance is one hundred feet (100') or less from an adjacent property, or where additional hazards or higher fire flow exists, the required water storage may be modified by the fire code official.			

1. Tank bottom elevation shall be equal to or higher than the fire department connection on the premises. Regardless of domestic use, all tanks shall be equipped with a device that will ensure that the tank contains the designated amount of water for fire flow duration as determined by the FAHJ. Tank size may be increased to serve multiple structures on a single parcel. The bottom of the water storage tank shall be level with or above the building pad.
 2. Supply outlet shall be at least one-4 inch in diameter from the base of the tank to the point of outlet at the fire department connection. The fire department connection shall have an approved means of controlling water flow. The fire department connection shall be at least one-4 inch National Standard Thread (male), reduced to one- 2½ inch National Standard Thread (male). Additional outlets may be required.
 3. Location of fire department outlet shall be shown on the plot plan when submitted to the FAHJ. Consideration will be given to topography, elevations, and distance from structures, driveway access, prevailing winds, etc.
 4. The outlet shall be located along a fire apparatus access roadway and shall not be closer than 50 feet or further than 150 feet from the structure unless approved by the FAHJ.
 5. All exposed tank supply pipes shall be listed for above-ground use as per the NFPA 13 edition referenced in Chapter 80 of CFC. Adequate support shall be provided.
 6. Water storage tanks shall be constructed from materials approved by the NFPA 22 edition referenced in Chapter 80 of CFC and installed per manufacturer instructions.
 7. Plans shall be submitted to the FAHJ for approval prior to tank installation. Tanks shall be installed as per County Zoning setback requirements. See "Annex F" example plan submittal.
 8. Vessels previously used for products other than water shall not be allowed.
 9. All underground piping serving the fire department connection shall be listed and approved as per the NFPA 24 edition referenced in Chapter 80 of CFC.
- (Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.6. FIRE FLOW.

Section 404.6 of the California WUI Code is revised to read:

Sec. 404.6 Fire Flow - Fire flow requirements shall be based on Appendix B of the California Fire Code or the standard published by the Insurance Services Office, "Guide for Determination of Required Fire Flow." Consideration should be given

to increasing the gallons per minute to protect buildings and structures of extremely large square footage and for such reasons as: poor access roads, grade and canyon rims, hazardous brush and response times greater than five minutes by a recognized fire department or fire suppression company. In hazardous fire areas the main capacity for new subdivisions shall not be less than 2,500 - 3,000 gallons per minute, unless otherwise approved by the fire code official. If fire flow increases are not feasible, the fire code official may require alternative design standards such as: alternative types of construction that provides a higher level of fire resistance, fuel break requirements, which may include required irrigation, modified access road requirements, specified setback distances for building sites addressing canyon rim developments and hazardous brush areas, and other requirements as authorized by this chapter and as required by the fire code official.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.7. OBSTRUCTIONS.

Sec. 404.7 Obstructions. Access to water sources required by this code shall be unobstructed at all times. The fire department shall not be deterred or hindered from gaining immediate access to water source equipment, fire protection equipment or hydrants.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.8. IDENTIFICATION.

Sec. 404.8 Identification. Water sources, draft sites, hydrants and fire protection equipment and hydrants shall be clearly identified in a manner approved by the code official to identify location and to prevent obstruction by parking and other obstructions. Each fire hydrant and access to a water supply shall be identified in accordance with one of the following:

1. Where located along a driveway, a reflectorized blue marker, with a minimum dimension of 3 inches (73 mm) shall be located on the driveway address sign and mounted on a fire-retardant post.

2. Where located along an access road:

2.1 A reflectorized blue marker, with a minimum dimension of 3 inches (73 mm), shall be mounted on a fire-retardant post. The signpost shall be within 3 feet (914 mm) of said fire hydrant with the sign no less than 3 feet (914 mm) nor greater than 5 feet (1524 mm) above ground, in a horizontal position and visible from the driveway.

2.2 As specified in the State Fire Marshal's Guidelines for Fire Hydrant Markings Along State Highways and Freeways, May 1988.

3. Fire department connections shall be identified by a reflective green marker, with a minimum dimension of 3 inches, in the center of the travel lane adjacent the water source, or by other methods approved by the fire code official.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.9. TESTING AND MAINTENANCE.

Sec. 404.9 Testing and maintenance. Water sources, draft sites, hydrants and other fire protection equipment required by this code shall be subject to periodic tests as required by the code official. Such equipment installed under the provisions of this code shall be maintained in an operative condition at all times and shall be repaired or replaced where defective. Additions, repairs, alterations and servicing of such fire protection equipment and resources shall be in accordance with approved standards.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.404.10. RELIABILITY.

Sec. 404.10 Reliability. Water supply reliability shall comply with Sections 404.10.1 through 404.10.3.

Sec. 404.10.1 Objective. The objective of this section is to increase the reliability of water supplies by reducing the exposure of vegetative fuels to electrically powered systems.

Sec. 404.10.2 Clearance of fuel. Defensible space shall be provided around water tank structures, water supply pumps and pump houses in accordance with Section 603.

Sec. 404.10.3 Standby power. Standby power shall be provided to pumps, controllers and related electrical equipment so that stationary water supply facilities within the wildland-urban interface area that are dependent on electrical power can provide the required water supply. The standby power system shall be in accordance with Section 2702 of the California Building Code, and Section 1203 of the California Fire Code. The standby power source shall be capable of providing power for not less than 2 hours.

Exceptions:

1. Where approved by the code official, a standby power supply is not required where the primary power service to the stationary water supply facility is underground.

2. A standby power supply is not required where the stationary water supply facility serves not more than one single-family dwelling.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.405. PREMISES IDENTIFICATION.

Section 405 of the California WUI Code is revised to read:

Sec. 405.1 Address identification. New and existing buildings shall be provided with approved address identification. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property.

Address identification characters shall contrast with their background. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Each character shall be not less than 4 inches (102 mm) high with a minimum stroke width of ½-inch (12.7 mm) for residential buildings, 8 inches high with a 1-inch stroke for commercial and multi-family residential buildings, and 12 inches high with a 1-inch stroke for industrial buildings. Where required by the fire code official, address identification shall be provided in additional approved locations to facilitate emergency response. Where access is by means of a private road and the building cannot be viewed from the public way, a monument, pole or other sign or means shall be used to identify the structure. Address identification shall be maintained.

Sec. 405.2 Street or road signs. Streets and roads shall be identified with approved signs. Temporary signs shall be installed at each street intersection when construction of new roadways allows passage by vehicles. Signs shall be of an approved size, weather-resistant and be maintained until replaced by permanent signs. All new public roads, all private roads within major subdivisions and all private road easements serving four or more parcels shall be named. Road name signs shall comply with County of San Diego Department of Public Works Design Standard #DS-13.

Sec 405.2.1 Traffic Access Limitations. Signs identifying traffic access limitations shall be placed at the intersection preceding the traffic access limitation, and no more than 100 feet before such traffic access limitation

Sec. 405.3 Easement address signs. A road easement which is not named differently from the roadway from which it originates shall have an address sign installed and maintained listing all street numbers occurring on that easement. The sign shall be located where the easement intersects the named roadway. The numbers on the sign shall contrast with the background and have a minimum height of 4 inches and a minimum stroke of ½-inch.

Sec. 405.4 Directory map. A lighted directory map acceptable to the FAHJ, shall be installed at the driveway entrance to a residential multi-family project or a mobile home park, with more than 15 units.

Sec. 405.5 Response map updates. Any new development which necessitates updating emergency response maps due to new structures, hydrants, roadways or similar features shall be required to provide map updates in a format compatible with current department mapping services and shall be charged a reasonable fee for updating all response maps.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.406. EMERGENCY KEY ACCESS.

Section 406 is added to the California WUI Code to read:

Sec. 406 Emergency key access. All central station-monitored fire detection systems and automatic sprinkler systems shall have an approved emergency key access box on site in an approved location. The owner or occupant shall provide and maintain current keys for any structure for fire department placement in the box and shall notify the fire department in writing when the building is re-keyed.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

CHAPTER 5 SPECIAL BUILDING CONSTRUCTION REGULATIONS

SEC. 96.2.503. IGNITION-RESISTANT CONSTRUCTION AND MATERIAL.

Section 503.1 of the California WUI Code is revised to read:

Sec. 503.1 General. Buildings and structures hereafter constructed, modified or relocated into or within wildland-urban interface areas shall meet the construction requirements in accordance with Chapter 5. Materials required to be ignition-resistant building materials shall comply with the requirements of Section 503.2.

Exceptions:

1. New accessory buildings and miscellaneous structures complying with Section 504.11.
2. Group C occupancy special buildings conforming to the limitations specified in Section 450.4.1 of the California Building Code.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.504. IGNITION-RESISTANT CONSTRUCTION.

Sec. 504.3 Protection of enclosed eaves.

Section 504.3 of the California WUI is revised to read:

The exposed underside of enclosed roof eaves and soffits shall be protected on the exposed underside by one or more of the following:

1. Noncombustible materials.
2. 2-inch (51 mm) nominal dimension lumber when tongue and grooved.
3. Materials approved for not less than 1-hour fire resistance-rated construction on the exterior side, as tested in accordance with ASTM E119 or UL263.

Facias are required and shall be ignition-resistant building materials, fire-retardant-treated wood labeled for exterior use and complying with Section 2303.2 of the California Building Code, materials approved for not less than 1-hour fire-resistance-rated construction or 3-inch (51 mm) nominal dimension lumber.

Sec. 504.3.1 Protection of open eaves.

Section 504.3.1 of the California WUI is revised to read:

The exposed roof deck on the underside of unenclosed roof eaves shall consist of one or more of the following:

1. Noncombustible material.
2. 2-inch (51 mm) nominal dimension lumber when tongue and grooved.
3. Materials approved for not less than 1-hour fire-resistance-rated construction on the exterior side, as tested in accordance with ASTM E119 or UL 263.
4. The exterior portion of a 1-hour fire-resistance-rated exterior assembly, as tested in accordance with ASTM E119 or UL 263, applied to the underside of the roof deck designed for exterior fire exposure, including assemblies using the gypsum panel and sheathing products listed in the Gypsum Association Fire Resistance Design Manual.

Facias, if provided, shall be of fire-retardant-treated wood labeled for exterior use and complying with Section 2303.2 of the California Building Code, ignition-resistant building materials, materials approved for not less than 1-hour fire-resistance-rated construction or 3-inch (51 mm) nominal dimension lumber.

Sec. 504.4 Gutters and downspouts.

Section 504.4 of the California WUI code is revised to read:

Gutters and downspouts shall be constructed of noncombustible material. Gutters shall be provided with an approved means to prevent the accumulation of leaves and debris in the gutter and shall be non-combustible.

Sec. 504.5 Exterior walls.

Section 504.5 of the California WUI is revised to read:

Shall be constructed as per 2025 California Building Code Chapter 6 and are covered with an exterior wall covering complying with Sections 504.5.2 and 504.5.2.1:

Such material shall extend from the top of the foundation to the underside of the roof sheathing.

Sec. 504.5.2 Exterior Wall Coverings

Section 504.5.2 of the California WUI is revised to read:

Exterior wall coverings shall comply with the following requirements:

1. Noncombustible material.

Sec. 504.7 Projections.

Section 504.7 of the California WUI is revised to read:

Unenclosed accessory structures attached to buildings with habitable spaces and projections, other than decks, shall be heavy timber construction or constructed of one of the following:

1. Noncombustible materials.
2. Materials approved for not less than 1-hour fire-resistance-rated construction on the exterior side, as tested in accordance with ASTM E119 or UL 263.
3. The exterior portion of a 1-hour fire-resistance-rated exterior assembly, as tested in accordance with ASTM E119 or UL 263, applied to the underside of the ceiling assembly, including assemblies using the gypsum panel and sheathing products listed in the Gypsum Association Fire Resistance Design Manual.
4. The underside of a floor projection assembly that meets the performance criteria in Section 504.7.2 when tested in

accordance with the test procedures set forth in ASTM E2957.

5. The underside of a floor projection assembly that meets the performance criteria in accordance with the test procedures set forth in SFM Standard 12-7A-3.

Sec. 504.7.1 Underside of projections.

Section 504.7.1 of the California WUI is revised to read:

The underside of projections shall be enclosed to grade in accordance with the requirements of this chapter or the underside of the exposed underfloor shall be protected by one or more of the following and at the base of all posts and walls there shall be 6" inches vertical non-combustible coverings:

Exception: Structural columns, beams, rafters, joists, and blocking are not required to be protected in accordance with Section 504.7.1. Constructed with sawn lumber or glue-laminated wood with the smallest minimum nominal dimension of 6-inch nominal for columns, 4-inch nominal for beams, rafters, and joists, and 3-inch nominal for blocking. Sawn or glue-laminated planks shall be 2-inch nominal splined, tongue-and-groove, or set close together and well spiked.

1. Noncombustible material.
2. Materials approved for not less than 1-hour fire-resistance-rated construction on the exterior side, as tested in accordance with ASTM E119 or UL 263.
3. The exterior portion of a 1-hour fire-resistance-rated exterior assembly, as tested in accordance with ASTM E119 or UL 263, applied to the underside of the floor, including assemblies using the gypsum panel and sheathing products listed in the Gypsum Association Fire Resistance Design Manual.
4. The underside of a floor assembly that meets the performance criteria in Section 504.7.2 when tested in accordance with the test procedures set forth in ASTM E2957.
5. The underside of a floor assembly that meets the performance criteria in accordance with the test procedures set forth in SFM Standard 12-7A-3.

Sec. 504.7.3.2 Decking surfaces.

Section 504.7.3.2 of the California WUI is revised to read:

The walking surface material of decks, porches, balconies and stairs shall be constructed with any of the following materials:

1. Material that complies with the performance requirements of Section 504.7.3.3 when tested in accordance with ASTM E2632 and ASTM E2726.
2. Material that complies with the performance requirements of both SFM Standard 12-7A-4 and Section 503.2.4.
3. Noncombustible material.
4. Any material that complies with the performance requirements of SFM Standard 12-7A-4A and any attached exterior wall covering is noncombustible or ignition-resistant building materials.

Exception: Wall material shall be permitted to be of any material that otherwise complies with this chapter when the decking surface material complies with the performance requirements of ASTM E84 or UL 723 with a Class B flame spread index.

5. Any material that complies with the performance requirements of Section 504.7.3.4 when tested in accordance with ASTM E2632 and any attached exterior wall covering is noncombustible or ignition-resistant building materials.

Exception: Wall material shall be permitted to be of any material that otherwise complies with this chapter when the decking surface material complies with the performance requirements of ASTM E84 or UL 723 with a Class B flame spread index.

Sec. 504.8 Exterior glazing.

Section 504.8 of the California WUI code is revised to read:

Exterior windows, window walls and glazed doors, windows within exterior doors, and skylights shall be constructed of any of the following:

1. Multilayered glazed panels with at least two panes of tempered glass complying with Section 2406 of the California Building Code.
2. Glass block.
3. Glazing with a fire-protection rating of not less than 20 minutes when tested according to NFPA 257 or UL 9, and shall be exempt from the hose stream test.

Sec. 504.9 Exterior doors.

Section 504.9 of the California WUI code is revised to read:

Exterior doors shall be constructed in accordance with any of the following:

1. Noncombustible construction.,
2. Solid-core wood not less than 1¾ inches thick (44 mm).
3. The exterior door shall be constructed of solid core wood that complies with the following requirements:
 - 3.1. Stiles and rails shall not be less than 1 3/8 inches (35 mm) thick.
 - 3.2. Raised panels shall not be less than 1¼ inches (32 mm) thick, except for the exterior perimeter of the raised panel that shall be permitted to taper to a tongue not less than 3/8 inch (10 mm) thick.
4. Have a fire protection rating of not less than 20 minutes when tested according to NFPA 252, UL 10B or UL 10C.

Windows within doors and glazed doors shall be in accordance with Section 504.8.

Sec. 504.10.4 Retrofitting Non-Compliant Vents.

Section 504.10.4 is added to the code

Sec. 504.10.4 Retrofitting Non-Compliant Vents. Where an addition, alteration, or roof modification takes place, non-compliant WUI vents shall be upgraded and/or retrofitted to resist the intrusion of flames and embers.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.507. REPLACEMENT OR REPAIR OF ROOF COVERINGS.

Section 507 of the California WUI Code is revised to read:

Sec. 507.1 General. The roof covering on buildings or structures in existence prior to the adoption of this code that are replaced or have 50 percent or more replaced in a 12-month period shall be replaced with a roof covering required for new construction specified Sections 504.2 and 504.2.1. All portions of a roof covering applied during an addition, alteration or repair to an existing structure shall meet at least a Class A fire classification.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.602. FIRE PROTECTION PLANS.

Section 602 of the California WUI Code is revised to read:

Sec. 602.1 General. The code official is authorized to require the owner or owner's authorized agent to provide a fire protection plan for either a ministerial building permit project (in accordance with Sections 602.1.1 through 602.3.2), or a discretionary project (in accordance with Section 602.4).

Sec. 602.1.1 Ministerial Building Permit Project. The fire protection plan shall be prepared to determine the acceptability of fire protection and life safety measures designed to mitigate wildfire hazards presented for the property under consideration.

The fire protection plan shall be prepared by a registered design professional, qualified landscape architect, qualified fire safety specialist or similar specialist acceptable to the code official and shall analyze the wildfire risk of the building, project, premises or region to recommend necessary changes.

The code official is authorized to require a preliminary fire protection plan prior to the submission of a final fire protection plan.

Sec. 602.2 Contents. The fire protection plan shall be based on a project-specific wildfire hazard assessment that includes considerations of location, topography, aspect, climatic and fire history.

The plan shall identify conformance with all applicable state wildfire protection regulations, statutes and applicable local ordinances, whichever are more restrictive.

The plan shall address fire department access, egress, road and address signage, water supply in addition to fuel reduction in accordance with Public Resources Code (PRC) 4290; the defensible space requirements in accordance with PRC 4291 or Government Code 51182; and the applicable building codes and standards for wildfire safety. The plan shall identify mitigation measures to address the project's specific wildfire risk and shall include the information required in Sections 602.3 through 602.3.2.

Sec. 602.3 Project information. The final fire protection plan shall be reviewed and approved prior to start of construction.

Sec. 602.3.1 Preliminary fire protection plan. When a preliminary fire protection plan is submitted, it shall include, at a minimum, the following:

1. Total size of the project.
2. Information on the adjoining properties on all sides, including current land uses, and if known, existing structures and densities, planned construction, natural vegetation, environmental restoration plans, roads and parks.

3. A map with all project boundary lines, property lines, slope contour lines, proposed structure foundation footprints, and proposed roads and driveways. The map shall identify project fuel modification zones and method of identifying the fuel modification zone boundaries.

Sec. 602.3.2 Final fire protection plan. Final fire protection plan shall include items listed in Section 602.3.1 and the following:

1. A map identifying all proposed plants in the fuel modification zones with a legend that includes a symbol for each proposed plant species. The plan shall include specific information on each species proposed, including but not limited to:

- 1.1. The plant life-form;
- 1.2. The scientific and common name; and
- 1.3. The expected height and width for mature growth.

2. Identification of irrigated and non-irrigated zones.

3. Requirements for vegetation reduction around emergency access and evacuation routes.

4. Identification of points of access for equipment and personnel to maintain vegetation in common areas.

5. Legally binding statements regarding community responsibility for maintenance of fuel modification zones.

6. Legally binding statements to be included in covenants, conditions and restrictions regarding property owner responsibilities for vegetation maintenance.

Sec. 602.4 Discretionary Project. A Fire Protection Plan shall be prepared for discretionary projects located within High and/or Very High Fire Hazard Severity Zones as identified in the map adopted by the State Fire Marshal or Fire District. A Fire Protection Plan is also required for large projects (an occupant load of 100 or more) or where the site has topographic, geographic, and/or combustible vegetation conditions that require detailed review and analysis, regardless of Fire Hazard Severity Zone, as determined by the code official.

The Fire Protection Plan for a discretionary project shall be prepared in accordance with the 2024 County of San Diego Fire Protection Plan Guidelines, and the preparer (consultant) must be on the County of San Diego CEQA Consultants List for Privately Initiated Projects for Fire Protection Planning.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.603. VEGETATION PLAN.

Section 603 of the California WUI Code is revised to read:

Sec. 603.1 General. Planting of vegetation for new landscaping shall be selected to reduce vegetation in proximity to a structure and to maintain vegetation as it matures.

Sec. 603.2 Application. All new plantings of vegetation in State Responsibility Area (SRA) and Local Responsibility Areas (LRA) designated as a Fire Hazard Severity Zone shall comply with Sections 603.3 through 603.4.2.1.

Sec. 603.3 Landscape plans. Landscape plans shall be provided to the FAHJ or a designated third party for any new construction and or addition for residential and commercial buildings or accessory thereof. Plans shall be submitted and approved prior to any framing inspection. In addition, plans shall be provided when modifications occur to any previously approved landscape plan or to the Building Ignition Zones, when required by the code official. The landscape plan shall include development and maintenance requirements for the vegetation management zone adjacent to structures and roadways, and to provide significant fire hazard reduction benefits for public and firefighting safety.

Sec. 603.3.1 Contents. Landscape plans shall contain the following:

1. Plans shall be prepared by a California Licensed Landscape Architect, Architect, or Civil Engineer. A landscape designer could prepare planting plans only (not irrigation) for a single-family residence but would need one of the above professionals to stamp the plans verifying compliance with the regulations.
2. Provide plans with a readable (Engineer or Architect) scale.
3. Delineation of fuel modification zones and Home Ignition Zones with a general description of the zone's dimensions and character.
4. Describe and show existing vegetation on plan.
5. Designate irrigated areas on the plan.
6. Include a Plant Legend with both botanical and common names for existing and proposed plant material.
7. Define all symbols, site amenities, features, and shaded areas, etc. used on the plans.
8. Draw all plant symbols of what the full mature canopy size will be.
9. Include quantities of trees and large shrubs being proposed.

Sec. 603.3.2 Landscaping Installation. All landscaping shall be installed per the approved plan by the FAHJ or their third party designee prior to final inspection for issuance of certificate of occupancy.

Sec. 603.4 Vegetation. All new vegetation shall be drought tolerant and fire-smart vegetation in accordance with this section.

Exception: Trees classified as nonfire-smart vegetation complying with Section 603.4.2.1.

To be considered fire-smart vegetation, it must meet at least one of the following:

1. Be identified as fire-smart vegetation in an approved book, journal or listing from an approved organization.
2. Be identified as fire-smart vegetation by a licensed landscape architect with supporting justification.
3. Plants considered fire-smart vegetation and approved by the local enforcing agency.

Sec. 603.4.1 Shrubs. All new plantings of shrubs shall comply with the following:

1. Shrubs shall not exceed 6 feet (1829 mm) in height.
2. Groupings of shrubs are limited to a maximum aggregate diameter of 10 feet (3048 mm).
3. Shrub groupings shall be separated from other groupings a minimum of 15 feet (4572 mm).
4. Shrub groupings shall be separated from structures a minimum of 30 feet (9144 mm).
5. Where shrubs are located below or within a tree's drip line, the lowest tree branch shall be a minimum of three times the height of the understory shrubs or 10 feet (3048 mm), whichever is greater.
6. Ornamental grasses shall be planted a minimum 5 feet from any structure.

Sec. 603.4.2 Trees. Trees shall be managed as follows within the 50'foot zone (15240 mm) of a structure:

1. New trees shall be planted and maintained so that the tree's drip line at maturity is a minimum of 10 feet (3048 mm) from any combustible structure.
2. The horizontal distance between crowns of new trees and crowns of adjacent trees shall not be less than 10 feet (3048 mm).
3. Existing trees shall be trimmed to provide a minimum separation of 10 feet (3048 mm) away from roof lines, barbecues, fire pits, other heat or flame producing devices, chimney and stovepipe outlets per California Code of Regulations, Title 14, Section 1299.03.
4. For streetscape plantings, all non-fire resistive trees shall be planted so that the center of the tree trunk is 20 feet from edge of curb. Fire resistive trees may be planted 10 feet from edge of curb to center of tree trunk.

Sec. 603.4.2.1 Nonfire-smart vegetation. New trees not classified as fire-smart vegetation, such as conifers, junipers, cypress, palms with fibrous tissues, pepper trees, acacia species, bamboo species and eucalyptus species and other species not deemed fire smart shall be permitted provided the tree is planted and maintained in accordance with one of the following:

1. The tree is planted so that the tree's drip line at maturity is a minimum of 50 feet (15240 mm) from an applicable building.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.604. MAINTENANCE OF DEFENSIBLE SPACE.

Section 604 of the California WUI Code is revised to read:

Sec. 604.1 General. Hazardous vegetation and fuels shall be managed to reduce the severity of potential exterior wildfire exposure to buildings and to reduce the risk of fire spreading to buildings as required by applicable laws and regulations.

Defensible space shall be managed around all buildings and structures in State Responsibility Areas (SRA) as required in Public Resources Code 4291. Local Responsibility Areas (LRA) as required in Government Code Section 51182 or as amended by FAHJ or by section 604.6 Fuel Modification.

Sec. 604.2 Application. Buildings and structures located in the following areas shall maintain the required hazardous vegetation and fuel management:

1. All unincorporated lands designated as a State Responsibility Area (SRA) or Local Responsibility Areas (LRA).
2. Land designated as a Very High Fire Hazard Severity Zone by a city or local agency.
3. Land as a Wildland-Urban Interface (WUI) area in ordinance by a city or local agency.

Sec. 604.3 Requirements. Hazardous vegetation and fuels around all buildings and structures shall be maintained in accordance with the following laws and regulations:

1. Public Resources Code, Section 4291.
2. California Code of Regulations, Title 14, Division 1.5, Chapter 7, Subchapter 3, Article 3, Section 1299.03.
3. California Government Code, Section 51182.
4. California Code of Regulations, Title 19, Division 1, Chapter 7, Subchapter 1, Section 3.07.

Sec. 604.4 Outbuildings. Outbuildings shall have a minimum clearance of 10 feet (3048 mm) down to bare mineral soil in all directions. Vegetation more than 10 feet (3048 mm) but less than 20 feet (6096 mm) from outbuildings shall be fire-smart vegetation.

Sec. 604.5 Disposal of flammable vegetation and fuels. The disposal, including burning or removal to a site approved by the local jurisdiction, in consultation with the fire authority, of flammable vegetation and fuels caused by site construction, road and driveway construction shall be in accordance with all applicable laws and regulations. [CCR T14 §1276.05]

Sec. 604.6 Fuel Modification. A fuel modification zone shall be required around every building that is designed primarily for human habitation or use, or a building designed specifically to house farm animals. Decks, sheds, gazebos, freestanding open-sided shade covers and similar accessory structures less than 120 square feet and 50 feet or more from a dwelling, and fences more than 5 feet from a dwelling, are not considered structures for the establishment of a fuel modification zone. A fuel modification zone shall comply with the following:

(a) When a building or structure in a hazardous fire area is located 100 feet or more from the property line, the person owning or occupying the building or structure shall maintain a fuel modification zone within 100 feet of the building or structure. See Sec. 604.12 "Home Ignition Zones" See Annex D for "Fuel Modification".

(b) The fire code official may increase the fuel modification zone more than the 100 foot minimum if fuel and/or topography are determined to increase the fire hazard severity.

(c) When a building or structure in a hazardous fire area is setback less than 100 feet from the property line, the person owning or occupying the building or structure shall meet the requirements in subsection (a) above, to the extent possible, in the area between the building or structure and the property line.

(d) The building official and the FAHJ may provide lists of prohibited and recommended plants.

(e) The fuel modification zone shall be located entirely on the subject property unless approved by the FAHJ. This required fuel modification zone may be reduced as allowed in subsection (c) above or increased as required by a fire protection plan.

(f) When the subject property contains an area designated to protect biological or other sensitive habitat or resource, no building or other structure requiring a fuel modification zone shall be located so as to extend the fuel modification zone into a protected area.

(g) **Improved Property:** Property owners shall be permitted to clear all combustible vegetation within a one hundred (100) foot radius of all buildings and structures using methods, such as mowing and trimming that leave plant root structure intact to stabilize soil. Clearing is not limited to these methods and discing, which exposes bare mineral soil, may be used if deemed necessary by the FAHJ.

a. Where the distance from the structure to the property line of the parcel on which the building is located is less than the distance required to be cleared, (100'), the adjacent parcel owner may be required to establish the required fuel break to achieve the required distance of defensible space if such requirement is approved by the Fire Code Official.

(h) **Unimproved Property:** The owner and/or responsible party of any vacant parcel 1 acre or less in size located within the District shall, at all times, maintain the vacant parcel in compliance with the standards in the section. Any parcel that does not comply with the requirements of this section is hereby declared to be a public nuisance.

a. All weeds, grasses, or similar ground vegetation shall be cleared or trimmed and maintained at a height not exceeding 4" inches. Vegetation must be maintained through methods such as mowing, thinning, trimming or by other means that leave the plant root structure intact to stabilize the soil.

b. All dead, dying, or diseased vegetation shall be removed.

c. Vacant parcels that are located adjacent to a roadway shall comply with the defensible space requirements set forth in Section 604.7.

d. Vacant parcels that are located adjacent to an improved parcel shall comply with defensible space requirements in Section 604.6 (g) as measured from the improvement on the improved parcel.

AMENDMENT TO SECTION 604.6

San Marcos Fire Protection District adopts the following code amendment:

Sec. 604.6 Fuel modification. A person owning, leasing, controlling, operating or maintaining a building or structure in or adjoining a hazardous fire area, and a person owning, leasing or controlling land adjacent to a building or structure in or adjoining a hazardous fire area shall maintain an effective fuel modification zone by removing, clearing or modifying combustible vegetation and other flammable materials from areas within 150 feet from each building or structure. The fuel modification zone may be replanted with either approved irrigated, fire-resistant planting material or approved non-irrigated, drought-tolerant, fire-resistant plant material. Replanting of the fuel modification zone may be required for erosion control.

Exceptions:

1. Single specimens of trees, ornamental shrubbery or similar plants used as ground cover, provided that they do not form a means of rapidly transmitting fire from the native growth to any structure.
2. Grass and other vegetation located more than 30 feet from a building or structure and less than 18 inches in height need not be removed where necessary to stabilize the soil and prevent erosion.
3. With the approval of the FAHJ, the width of the fuel modification zone may be reduced where ignition-resistant structures or other features are constructed. However, in no case shall the fuel modification zone be reduced to less than 100 feet. This exception shall not be construed to allow the FAHJ to require ignition-resistant construction on an existing structure with a fuel modification zone of less than 100 feet.

ADDITION TO SECTION 604.7 (Deer Springs)

The Deer Springs Fire Protection District adopt the following code amendment:

Sec. 604.7 Modification of combustible vegetation is required within 20 feet from each side of an evacuation road as designated in the Community Wildfire Protection Plan.

Sec. 604.7 Fuel modification of combustible vegetation from sides of roadways.The FAHJ may require a property owner to modify combustible vegetation in the area within 20 feet from each side of the driveway or a public or private road adjacent to the property to establish a fuel modification zone. The FAHJ has the right to enter private property to ensure the fuel modification zone requirements are met.

Exception: The FAHJ may reduce the width of the fuel modification zone if it will not impair access.

Sec. 604.8 Responsibility for Maintenance of defensible space.Any person owning, leasing, controlling, operating or maintaining a building or structure required to establish a fuel modification zone pursuant to Sec. 604.6 shall maintain the defensible space. The FAHJ may enter the property to determine if the person responsible is complying with this section. The FAHJ may issue an order to the person responsible for maintaining the defensible space directing the person to modify or remove non-fire resistant vegetation from defensible space areas, remove leaves, needles and other dead vegetative material from the roof of a building, maintain trees as required by Sec. 604.3.2 or to take other action the FAHJ determines is necessary to comply with the intent of sections 604 et seq.

Sec. 604.9 Trees. Crowns of mature trees located within defensible space shall maintain a minimum horizontal clearance of 10 feet for fire resistant trees and 30 feet for non-fire resistive trees. Mature trees shall be pruned to remove limbs to maintain a vertical separation of three times the height of the lower vegetation or 6 feet, whichever is greater, above the ground surface adjacent to the trees. Dead wood and litter shall be regularly removed from trees. Ornamental trees shall be limited to groupings of 2-3 trees with canopies for each grouping separated horizontally as described in Table 604.9.

TABLE 604.9

DISTANCE BETWEEN TREE CANOPIES

Distance between Tree Canopies by Percent Slope	
Percent of Slope	Required Distances Between Edge of Mature Tree Canopies (1)
0 to 20	10 feet
21 to 40	20 feet
41 plus	30 feet
1. Determined from canopy dimensions as described in Sunset Western Garden Book (Current Edition)	

Sec. 604.10 Orchards, Groves or Vineyards

The Alpine, Deer Springs, Rancho Santa Fe, Rincon Del Diablo, San Marcos, San Miguel, Valley Center, Vista Fire Protection Districts adopt the following code amendment:

Sec. 604.10 Orchards, groves or vineyards. All orchards, groves and vineyards shall be kept in a healthy state and free of combustible debris and vegetation, including dead or downed trees. A 10-foot firebreak shall be cleared around the perimeter of any orchard, grove or vineyard. Dead grasses between rows of trees or vines shall be mowed.

Sec. 604.11 Eucalyptus forests and oak woodlands

The Rancho Santa Fe, Rincon Del Diablo, and San Miguel Fire Protection Districts adopt the following code amendment:

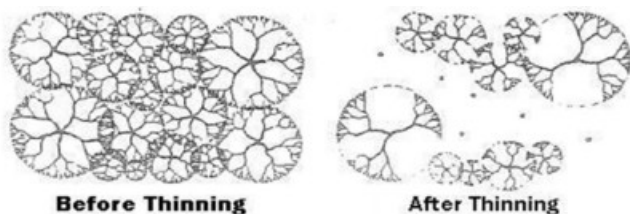
Sec. 604.11 Eucalyptus forests and oak woodlands. All forests and woodlands shall be kept in a healthy state and maintained as described below. The forest or woodlands shall be free of all dead, dying, or diseased trees (excluding tree stumps no higher than six inches above the ground). Dead, dying, or diseased trees shall include insect infested trees, no longer living, in the last stages of growth or infected by a pathogen of any type. If combustible vegetation is located underneath a tree's drip line, the lowest branch shall be at least three times as high as the understory brush or grasses, or ten feet, whichever is greater. This will reduce the build-up of "ladder" fuels. Firewood shall be neatly stacked and shall have a minimum of 30 feet of clearance (no vegetation) around the entire firewood storage area. Debris and trimmings produced by the removal process shall be removed from the site, or if left, shall be converted into mulch by a chipping machine and evenly dispersed to maximum depth of six inches.

Sec. 604.12 Building Ignition Zones:

Sec. 604.12.1 Zone 0 "Immediate Zone" 0-5' Meaning from exterior wall surface or patio, deck or attachment to building or structure extending 5 feet on a horizontal plane. This zone shall be constructed of continuous hardscape or non-combustible materials. Removal of combustible materials surrounding the exterior wall area and maintaining area free and clear of combustible materials. The use of mulch and other combustible materials shall be prohibited.

Sec. 604.12.2 Zone 1 "Intermediate Zone" from Zone 0 to 50' means from the immediate edge of Zone 0 extending out in a horizontal plane. This zone shall consist of planting of low growth, drought tolerant and fire resistive plant species. The height of the plants in this zone starts at 6" adjacent to Zone 0 and extending in a linear fashion up to a maximum of 18" at intersection with Zone 2. Vegetation in this zone shall be irrigated and not exceed 6' in height and shall be moderate in nature as per Sec. 603.4. Firewood inside this zone shall be piled a minimum of 30' away from all buildings and structures. Cords of firewood shall also be maintained at least 10' from property lines and not stacked under tree canopies drip lines.

Sec. 604.12.3 Zone 2 "Extended Zone" from Zone 1 to 100' means from the immediate edge of Zone 1 extending out in a horizontal plane for 50'. This zone consists of planting of drought tolerant and fire resistive plant species of moderate height. Brush and plants shall be limbed up off the ground, so the lowest branches are 1/3 height of bush/tree/plant or up to 6' off the ground on mature trees. This area would be considered selective clearing of natural vegetation and dense chaparral by removing a minimum of 50% of the square footage of this area.



AMENDMENT to Section 604.12 BUILDING IGNITION ZONES

The Deer Springs, North County, San Diego County Fire Protection Districts amendment to section 604.12 shall read:

Sec. 604.12.1 Zone 0 "Immediate Zone" 0-5' Meaning from exterior wall surface or patio, deck or attachment to building or structure extending 5 feet on a horizontal plane. This zone shall be constructed of continuous hardscape or non-combustible materials.

- (a) Combustible materials must be removed from the area, including but not limited to roofs, gutters, decks, porches, and stairways.
- (b) Firewood and lumber are prohibited.
- (c) Dead branches that overhang roofs, are below or adjacent to windows, or which are adjacent to wall surfaces must be removed. All branches within ten (10) feet of any chimney or stovepipe outlet must be removed.

Sec. 604.12.2 Zone 1 "Intermediate Zone" from Zone 0 to 50' means from the immediate edge of Zone 0 extending out in a horizontal plane. This zone shall consist of planting of low growth, drought tolerant and fire resistive plant species. The height of the plants in this zone starts at 6" adjacent to Zone 0 and extending in a linear fashion up to a maximum of 18" at intersection with Zone 2.

(a) Dead or dying grass, plants, shrubs, trees, branches, leaves, weeds, and pine needles must be removed from the area.

(b) Other combustible materials must not be adjacent to or under combustible decks, balconies, and stairs.

(c) Vegetation in this zone shall be irrigated and not exceed 6' in height and shall be moderate in nature as per Sec. 603.4.1.

(d) Dead branches that overhang roofs, are below or adjacent to windows, or which are adjacent to wall surfaces must be removed. All branches within ten (10) feet of any chimney and stovepipe outlet must be removed.

Sec. 604.12.3 Zone 2 "Extended Zone" from Zone 1 to 100' means from the immediate edge of Zone 1 extending out in a horizontal plane for 50'. This zone consists of planting of drought tolerant and fire resistive plant species of moderate height. This area would be considered selective clearing of natural vegetation and dense chaparral by removing a minimum 50% of the square footage of this area.

(a) Horizontal and vertical spacing among shrubs and trees must be created using fuel separation, as follows:

(1) Dead and dying woody surface fuel and trees shall be removed. Loose surface litter (consisting of fallen leaves or needles, twigs, bark, cones, and small branches) shall be permitted to a maximum depth of three (3) inches.

(2) Annual grasses and forbs must be cut down to a maximum height of four (4) inches.

Sec. 604.12.4 Requirements Applicable to Zones 1 and 2

(a) Liquid Petroleum Gas storage tanks with a greater than 50 lb. or 11.4-gallon capacity shall have a minimum of ten (10) feet of clearance from Combustible Materials. Liquid Petroleum Gas means a material composed predominantly of one or more of the following hydrocarbons: propane, propylene, butane (normal butane or isobutane) and butylene.

(b) Vegetation shall not be cleared to bare soil.

(c) Brush and plants shall be limbed up off the ground, so the lowest branches are 1/3 height of bush/tree/plant or up to 6' off the ground on mature trees.

(d) Firewood shall be stored in compliance with section 96.2.607 of this Code.

ADDITION OF SECTION 604.12.5

The Deer Springs, North County, San Diego County Fire Protection Districts adopts the following code addition:

Sec. 604.12.5 Establishment and Maintenance of a Fuel Modification Zone

(a) A fuel modification zone shall be established and maintained using methods such as mowing, cutting, grazing and trimming that leave the plant root structure intact to stabilize the soil and prevent erosion. Removed trees shall have the stumps cut no higher than eight (8) inches above the ground. Any chipping of trees or vegetation that is done onsite may be allowed to remain so long as it is dispersed over an area not to exceed six (6) inches in depth. If the Fire Code Official determines that difficult terrain, danger of erosion, or other unusual circumstances make strict compliance with this section undesirable or impractical, enforcement thereof may be suspended and reasonable alternative measures shall be provided.

(b) Areas where combustible vegetation is removed to establish a fuel modification zone may be re-planted with single specimens of trees, fire-resistant ornamental shrubbery, and other fire-resistant planting materials or cultivated ground covers that do not form a means of rapidly transmitting fire from native or landscape plants to any Improvement or other vegetation, to the Fire Code Official's satisfaction. Re-planting may be required for erosion control.

(c) The formation of a fuel modification zone shall be carried out in conformance with all federal, state and local environmental laws, regulations and agreements including, but not limited to, the Endangered Species Act, the Memorandum of Understanding between the Fish and Wildlife Service of the United States Department of the Interior, the California Department of Fish and Wildlife, the California Department of Forestry and Fire Protection, the San Diego County Fire Chiefs Association, and the San Diego County regulations regarding grading, clearing and watercourses found in Division 7 of Title 8 of the San Diego County Regulatory Code.

ADDITION OF SECTION 604.12.6

The Deer Springs, North County, San Diego County Fire Protection Districts adds the following section and reads:

Sec. 604.12.6 Violations of Sections 604.12.1 through 604.12.5

- (a) The County may use any of the following remedies to address violations of Sections 604.12.1 – 604.12.5:
- (1) Criminal prosecution as provided by State law or County Code.
 - (2) Civil action for any legal and/or equitable remedy including, but not limited to injunctive relief, declaratory relief, civil penalties, damages, restitution, site restoration, and cost recovery.
 - (3) Nuisance abatement as provided by County Code Section 16.201 et seq; and
 - (4) Administrative actions as provided by County Code.
- (b) The appeal process set forth in Section 96.2.112 shall not apply to the remedies listed in subdivision (a). Instead, the appeal process provided for those remedies by State law or County Code shall apply.

ADDITION OF SECTION 604.12.7

The Deer Springs, North County, San Diego County Fire Protection Districts adds the following section and reads:

Sec. 604.12.7 Public Nuisance Determined - Right of Entry

(a) The accumulation of combustible vegetation, dead, dying or diseased trees, green waste, rubbish, and other materials on private property is hereby found to create a condition that is a fire hazard and potentially injurious to the health, safety, and general welfare of the public. Therefore, the presence of such combustible vegetation, dead, dying or diseased trees, green waste, rubbish, and other materials on parcels or on adjacent sidewalks, parking areas, or streets, so as to endanger improvements on such parcel or neighboring property is hereby declared to constitute a public nuisance which may be abated in accordance with the provisions of this Fire Code.

No person, firm or corporation shall allow or permit the aforesaid matter to accumulate or be upon his, her or its premises or upon premises controlled by him, her or it except within buildings or in appropriate containers or receptacles.

(b) The FAHJ has the right to enter private property to determine whether such a public nuisance exists.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.607. STORAGE OF FIREWOOD AND COMBUSTIBLE MATERIALS.

Section 607 of the California WUI Code is revised to read:

Sec. 607.1 General. Firewood and combustible material shall not be stored in unenclosed spaces beneath buildings or structures, or on decks or under eaves, canopies or other projections or overhangs. Firewood piles shall be located 30 feet or more from structures unless completely covered by a fire-resistant material. Exposed wood piles located within the defensible space shall have a minimum clearance of ten feet (3048 mm) down to bare mineral soil in all directions.

AMENDMENT TO SECTION 607.1 Zones 1 and 2

The San Diego County Fire Protection District adopts the following code amendment:

Sec. 607.1 General. The following requirements apply to the storage of firewood and other combustible material. Zones 1 and 2 are defined in section 604.12.

(a) Requirements Applicable to Zone 1: Firewood and other combustible material shall not be stored unless completely covered in a fire-resistant container or enclosure.

(b) Requirements Applicable to Zone 2: Firewood and other combustible material shall be located at least 50 feet from any structure.

(c) Requirements Applicable to Both Zones 1 and 2: Firewood and other combustible material shall not be stored in unenclosed space beneath a building or structure, on a deck or under eaves, a canopy or other projection or overhang, and shall be separated by a minimum of 15 feet from the drip line of any trees, measured horizontally. Firewood and combustible materials not for use on the premises shall be stored so as to not pose a fire hazard. Wood storage shall be located on bare soil or a non-combustible material. Minimum clearance around wood storage pile shall be 10' bare soil, free of vegetation or other combustible material measured on a horizontal plane.

The maximum size of wood storage shall be 2 cords of woods with the pile dimensions no greater than 4 feet in height, 4 feet in width, and 16 feet in length.

Exception: Permit may be issued by the FAHJ for wood storage amounts in excess of this section.

Sec. 607.2 Storage for off-site use. Firewood and combustible materials not for consumption on the premises shall be stored so as to not pose a hazard. See Appendix A.

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

SEC. 96.2.608. BUILDING SITING AND SETBACKS.

Sec. 608.2.1 General fire setbacks. Buildings and structures shall be setback a minimum of 30 feet from property lines and biological open space easements unless existing permitted buildings and structures are located within 30 feet of the

property line or the County Zoning Ordinance requires a greater minimum. When the property line abuts a roadway, the setback shall be measured from the centerline of the roadway.

Exception: When both the building official and the FAHJ determine that the hazard from a wildland fire is not significant or when the terrain, parcel size or other constraints on the parcel make the required setback infeasible.

Sec. 608.2.2 Fire setbacks adjacent to protected areas. Buildings and structures shall be setback a minimum of 100 feet from any property line adjacent to a national forest, state park or open space preserve. This setback may be reduced when existing permitted buildings and structures are located within 100 feet of the property line or additional mitigation measures are employed that are satisfactory to both the FAHJ and the building official.

Sec. 608.2.3 Building and Structure setbacks from property lines. The building official shall establish the minimum setbacks for locating a building and structure on a lot in a wildland-urban interface fire area. The setbacks may be greater than the minimum setbacks provided in the County Zoning Ordinance, when necessary to protect a building and structure from an unreasonable hazard from a wildfire. Buildings and structures shall be setback a minimum of 100 feet from any onsite biological open space easement or other designated open space easement designed to protect sensitive habitat or resource, in accordance with Section 604.6(f).

AMENDMENT TO SECTION 608.2.3

The Alpine, Bonita-Sunnyside, Lakeside, Rancho Santa Fe, Rincon Del Diablo, San Marcos, San Miguel, Valley Center and Vista Fire Protection Districts adopt the following code amendment:

Sec. 608.2.3 Building and Structure setback from slope. Single-story buildings or structures shall be setback a minimum 15 feet horizontally from top of slope to the farthest projection from the structure. A single-story building or structure shall be less than 12 feet above grade, measured from plate height. A two-story building or structure shall be setback a minimum of 30 feet horizontally from top of slope to the farthest projection from the structure. A two-story building or structure shall be greater than a 12-foot plate height but shall not exceed 35 feet in total height. Buildings and structures greater than two stories may require a greater setback as determined by the fire code official. See Annex C for "Illustration of Slope".

(Added by Ord. No. 10977 (N.S.), effective 4-2-26)

DIVISION 7. COUNTY GREEN BUILDING CODE

CHAPTER 1. COUNTY ADOPTION OF THE CALIFORNIA GREEN BUILDING STANDARDS CODE WITH COUNTY AMENDMENTS

SEC. 97.1.001. ADOPTION OF COUNTY AMENDMENTS TO THE GREEN BUILDING STANDARDS CODE PORTION OF THE CALIFORNIA BUILDING STANDARDS CODE.

Every three years the State of California adopts a new California Green Building Standards Code, as part of the California Building Standards Code (CBSC). Under Health and Safety Code section 17958, the CBSC becomes effective as to the County of San Diego 180 days after publication by the California Building Standards Commission. Pursuant to Health and Safety Code sections 17958.5 and 17958.7, a county may adopt modifications or changes to the CBSC that are reasonably necessary because of local climatic, geological and topographical conditions.

This chapter adopts as the County Green Building Code, for the unincorporated area of the County, the 2025 California Green Building Standards Code portion of CBSC and the County of San Diego's modifications, additions and deletions contained in this chapter that are reasonably necessary because of local climatic, geological, or topographical conditions. Amendments the County adopts shall take precedence over the 2025 CBSC provisions. Title 9, Division 1, Chapter 1 of the County of San Diego Code of Regulatory Ordinances, which contains provisions for administration and enforcement of this chapter and other construction codes, shall also be considered a part of the County Mechanical Code.

This chapter is adopted for the protection of the public health and safety. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair, moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including their inspection and provides penalties for violation of this chapter. This chapter shall apply to all new construction and to any alterations, repairs, or reconstruction, except as provided for otherwise in this chapter.

(Added by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 97.1.002. CALIFORNIA GREEN BUILDING STANDARDS CODE.

As used in this chapter, the "California Green Building Standards Code" means Title 24, Part 11 of the California Code of Regulations.

(Added by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 97.1.003. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California Green Building Standards Code, the digits following the first three digits of the section numbers in this chapter refer to the numbering system of the California Green Building Standards Code: e.g., SEC. 97.1.4.301.1 refers to section 4.301.1 of the California Green Building Standards Code.

(Added by Ord. No. 10651 (N.S.), effective 2-28-20; repealed and adopted by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 97.1.4.303.1.4.4. KITCHEN FAUCETS.

Sec. 4.303.1.4.4 of the California Green Building Standards Code is revised to read:

Sec. 4.303.1.4.4 Kitchen faucets. The maximum flow rate of kitchen faucets shall not exceed 1.5 gallons per minute at 60 psi. Kitchen faucets may temporarily increase the flow above the maximum rate, but not to exceed 2.2 gallons per minute at 60 psi, and must default to a maximum flow rate of 1.5 gallons per minute at 60 psi.

Note: Where complying faucets are unavailable, aerators or other means may be used to achieve reduction.

(Added by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 97.1.4.303.3. APPLIANCES

Sec. 4.303.3 is added to the California Green Building Standards Code to read:

Sec. 4.303.3 Appliances. At least one qualified ENERGY STAR dishwasher or clothes washer shall be installed in each dwelling unit.

(Added by Ord. No. 10829 (N.S.), effective 3-10-23; repealed and adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

DIVISION 8. COUNTY ENERGY EFFICIENCY CODE

CHAPTER 1. COUNTY ADOPTION OF THE CALIFORNIA ENERGY CODE WITH COUNTY AMENDMENTS *

SEC. 98.1.001. ADOPTION OF COUNTY AMENDMENTS TO THE ENERGY CODE PORTION OF THE CALIFORNIA BUILDING STANDARDS CODE.

Every three years the State of California adopts a new California Energy Code. Under Health and Safety Code section 17958, the CBSC becomes effective as to the County of San Diego 180 days after publication by the California Building Standards Commission. Pursuant to Health and Safety Code sections 17958.5 and 17958.7, a county may adopt modifications or changes to the CBSC that are reasonably necessary because of local climatic, geological and topographical conditions. Pursuant to Public Resources Code section 25402.1, a county may adopt modifications to energy efficiency standards if the county determines such modifications are cost-effective and diminish energy consumption levels.

This chapter adopts as the County Energy Efficiency Code, for the unincorporated area of the County, the 2025 California Energy Code portion of CBSC and the County of San Diego's modifications, additions and deletions contained in this chapter that are reasonably necessary because of local climatic, geological, or topographical conditions. Amendments the County adopts shall take precedence over the 2025 CBSC provisions. Title 9, Division 1, Chapter 1 of the County of San Diego Code of Regulatory Ordinances, which contains provisions for administration and enforcement of this chapter and other construction codes, shall also be considered a part of the County Energy Efficiency Code.

This chapter is adopted for the protection of the public health and safety. It includes definitions, requirements for permits and inspection for installing or altering systems, regulations for the erection, construction, enlargement, alteration, repair,

moving, removal, conversion, demolition, equipment use and maintenance of buildings and structures, including their inspection and provides penalties for violation of this chapter. This chapter shall apply to all new construction and to any alterations, repairs, or reconstruction, except as provided for otherwise in this chapter.

(Added by Ord. No. 10651 (N.S.), effective 2-28-20; adopted by Ord. No. 10829 (N.S.), effective 3-10-23; adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 98.1.002. CALIFORNIA ENERGY CODE.

As used in this chapter, "California Energy Code" means Title 24, Part 6 of the California Code of Regulations.

(Added by Ord. No. 10651 (N.S.), effective 2-28-20; adopted by Ord. No. 10829 (N.S.), effective 3-10-23; adopted by Ord. No. 10982 (N.S.), effective 4-3-26)

SEC. 98.1.003. DELETIONS, REVISIONS, ADDITIONS AND NUMERICAL EXPLANATION.

When deletions, revisions and additions are made in this chapter to the California Energy Code, the digits following the first three digits of the section numbers in this chapter refer to the numbering system of the California Energy Code: e.g., SEC. 96.1.150.0 refers to section 150.0 of the California Energy Code.

(Added by Ord. No. 10651 (N.S.), effective 2-28-20; adopted by Ord. No. 10829 (N.S.), effective 3-10-23; adopted by Ord. No. 10982 (N.S.), effective 4-3-26)